



CALEB  
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MARY·IMLAY·TAYLOR





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TRENCH \*\*\*

# CALEB TRENCH





# **CALEB TRENCH**

**BY**

**MARY IMLAY TAYLOR**

**AUTHOR OF "THE REAPING," "THE  
IMPERSONATOR," ETC.**

**WITH FRONTISPIECE BY**

**EMLEN McCONNELL**

**BOSTON**

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## I

DIANA ROYALL pushed back the music-rack and rose from her seat at the piano.

“Show the person in here, Kingdom.”

The negro disappeared, and Diana moved slowly to the table at the farther end of the long room, and stood there turning over some papers in her leisurely, graceful way.

“Who in the world is it now?” Mrs. Eaton asked, looking up from her solitaire, “a book agent?”

“Caleb Trench,” Diana replied carelessly, “the shopkeeper at Eshcol.”

“The storekeeper?” Mrs. Eaton looked as if Diana had said the chimney-sweep. “What in the world does he want of you, my dear?”

Diana laughed. “How should I know?” she retorted, with a slight scornful elevation of her brows; “we always pay cash there.”

“I wonder that you receive him in the drawing-room,” Mrs. Eaton remonstrated, shuffling her cards with delicate, much be-ringed fingers, and that indefinable manner which lingers with some old ladies, like their fine old lace and their ancestors, and is at once a definition and classification. Thus, one could see, at a glance, that Mrs. Eaton had been a belle before the war, for, as we all know, the atmosphere of belledom is as difficult to dissipate and forget as the poignant aroma of a moth-ball in an old fur coat, though neither of them may have served the purposes of preservation.

The girl made no reply, and the older woman was instinctively aware of her indifference to her opinions, uttered or unexpressed. There were times when Diana’s absorption of mood, her frank inattention, affected her worldly mentor as sharply as a slap in the face, yet, the next moment, she fell easily under the spell of her personality. Mrs. Eaton always felt that no one could

look at her youthful relative without feeling that her soul must be as beautiful as her body, though she herself had never been able to form any estimate of that soul. Diana hid it with a reserve and a mental strength which folded it away as carefully as the calyx of a cactus guards the delicate bloom with its thorns. But the fact that Mrs. Eaton overlooked was still more apparent, the fact that a great many people never thought of Diana's soul at all, being quite content to admire the long and exquisite curves of her tall figure, the poise of her graceful head, with the upward wave of its bright hair, and the level glance of her dear eyes under their thick dark lashes. There was something fine about her vitality, her freshness, the perfection of her dress and her bearing, which seemed so harmoniously accentuated by the subdued elegance of the charming old room. Nature had specialized her by the divine touch of a beauty that apparently proclaimed the possession of an equally beautiful spirit; not even the flesh and blood surface seemed always impenetrable, but rather delicately transparent to every spiritual variation, like the crystal sphere of the magician. But Mrs. Eaton, pondering on her young cousin's personality from a more frivolous standpoint, took alarm most readily at her independence, and was overcome now with the impropriety of receiving a village shopkeeper in the drawing-room after dinner.

"My dear," she remonstrated again, "hadn't you better speak to him in the hall?"

Diana looked up from her paper, slightly bored. "In that case, Cousin Jinny, you couldn't hear what he said," she remarked composedly.

Mrs. Eaton reddened and put a three spot on her ace instead of a two. "I do not care to—" she began and paused, her utterance abruptly suspended by the shock of a new perception.

For, at that moment, Kingdom-Come announced Diana's unbidden guest and Mrs. Eaton forgot what she was going to say, forgot her manners in fact, and gazed frankly at the big man who came slowly and awkwardly into the room. His appearance, indeed, had quite a singular effect upon her. She wondered vaguely if she could be impressed, or if it was only the result of the unexpected contact with the lower class? She was fond of speaking of the Third Estate; she had found the expression somewhere during her

historical peckings, and appropriated it at once as a comprehensive phrase with an aristocratic flavor, though its true meaning proved a little elusive.

Meanwhile, the unwelcome visitor was confronting Miss Royall and there was a moment of audible silence. Diana met his glance more fully than she had ever been aware of doing before, in her brief visits to his shop, and, like her elderly cousin, she received a new and vital impression, chiefly from the depth and lucidity of his gaze, which seemed to possess both composure and penetration; she felt her cheeks flush hotly, yet was conscious that his look was neither familiar nor offending, but was rather the glance of a personality as strong as her own.

“You wish to speak to me?” she said impatiently, forgetting the fine courtesy that she usually showed to an inferior.

As she spoke, her father and Jacob Eaton came in from the dining-room and, pausing within the wide low doorway, were silent spectators of the scene.

“I wished to see you, yes,” said Trench quietly, advancing to the table and deliberately putting some pennies on it. “When you bought that piece of muslin this morning I gave you the wrong change. After you left the shop I found I owed you six cents. I walked over with it this evening as soon as I closed the doors. I would have left it with your servant at the door, but he insisted that I must see you in person.” He added this gravely, deliberately allowing her to perceive that he understood his reception.

Diana bit her lip to suppress a smile, and was conscious that Jacob Eaton was openly hilarious. She was half angry, too, because Trench had put her in the wrong by recognizing her discourtesy and treating it courteously. Beyond the circle of the lamplight was the critical audience of her home-life, her father’s stately figure and white head, Mrs. Eaton’s elderly elegance, and Jacob’s worldly wisdom. She looked at Trench with growing coldness.

“Thank you,” she said, “shall I give you a receipt?”

He met her eye an instant, and she saw that he was fully cognizant of her sarcasm. “As you please,” he replied unmoved.

She felt herself rebuked again, and her anger kindled unreasonably against the man who was smarting under her treatment. She went to the table, and

taking a sheet of folded note-paper wrote a receipt and signed it, handing it to him with a slight haughty inclination of the head which was at once an acknowledgment and a dismissal.

But again he met her with composure. He took the paper, folded it twice and put it in his pocketbook, then he bade her good evening and, passing Eaton with scarcely a glance, bowed to Colonel Royall and went out, his awkward figure in its rough tweed suit having made a singular effect in the old-fashioned elegance of Colonel Royall's house, an effect that fretted Diana's pride, for it had seemed to her that, as he passed, he had overshadowed her own father and dwarfed Jacob Eaton. Yet, at the time, she thought of none of these things. She pushed the offending pennies across the table.

"Cousin Jinny," she said carelessly, "there are some Peter pence for your dago beggars."

Cousin Jinny gathered up the pennies and dropped them thoughtfully into the little gold-linked purse on her chatelaine. For years she had been contributing a yearly subsidy to the ever increasing family of a former gondolier, the unforgotten grace of whose slender legs had haunted her memory for twenty years, during which period she had been the recipient of annual announcements of twins and triplets, whose arrivals invariably punctuated peculiarly unremunerative years.

"That man," she said, referring to Trench and not the gondolier, "that man is an anarchist."

Mrs. Eaton had a settled conviction that all undesirable persons were anarchists. To her nebulous vision innumerable immigrant ships were continually unloading anarchists in bulk, as merchantmen might unship consignments of Sea Island cotton or Jamaica rum; and every fresh appearance of the social unwashed was to her an advent of an atom from these incendiary cargoes.

"I hope you were careful about your receipt, Diana," said Jacob Eaton, stopping to light a cigarette at the tall candelabrum on the piano. "How far did your admirer walk to bring that consignment of pennies?"

"My admirer?" Diana shot a scornful glance at him. "I call it an intrusion."



“Did he walk over from that little shop at Cross-Roads?” Mrs. Eaton asked. “I seem to remember a shop there.”

“It’s seven miles,” said Colonel Royall, speaking for the first time, “and the roads are bad. I think he is merely scrupulously honest, Diana,” he added; “I was watching his face.”

Diana flushed under her father’s eye. “I suppose he is,” she said reluctantly, “but, pshaw—six cents! He could have handed it to a servant.”

“Do you send the servants there?” Colonel Royall asked pointedly.

“No,” she admitted reluctantly, “I suppose he rarely sees any one from here, but there was Kingdom at the door.”

“Who insisted on his seeing you, you remember,” objected her father; “the soul of Kingdom-Come is above six pennies.”

“Well, so is mine!” exclaimed Diana pettishly.

“Seven miles in red clay mud to see you,” mocked Jacob Eaton, smiling at her.

“Nonsense!” she retorted.

“I don’t see why you take that tone, Jacob,” warned his mother a little nervously. “I call it bad taste; he couldn’t presume to—to—”

“To walk seven miles?” her son laughed “My dear lady, I’d walk seventeen to see Diana.”

“My dear courtier, throw down your cloak in the mud and let me walk upon it,” retorted Diana scornfully.

“I have thrown down, instead, my heart,” he replied in a swift undertone.

But Diana was watching her father and apparently did not hear him. Colonel Royall had moved to his usual big chair by the hearth. A few logs were kindling there, for, though it was early in April, it was a raw chill evening. The firelight played on the noble and gentle lines of the colonel’s old face, on his white hair and moustache and in the mild sweetness of his absent-minded eyes. His daughter, looking at him fondly, thought him peculiarly sad, and wondered if it was because they were approaching an

anniversary in that brief sad married life which seemed to have left a scar too deep for even her tender touch.

“I don’t mind about the amount—six cents may be as sacred to him as six dollars,” he was saying. “The man has a primitive face, the lines are quite remarkable, and—” he leaned back and looked over at the young man by the piano—“Jacob, I’ve heard of this Caleb Trench three times this week in politics.”

“A village orator?” mocked Eaton, without dropping his air of nonchalant superiority, an air that nettled Colonel Royall as much as a heat-rash.

He shook his head impatiently. “Ask Mahan,” he said. “I don’t know, but twice I’ve been told that Caleb Trench could answer this or that, and yesterday—” he leaned back, shading his eyes with his hand as he looked into the fire—“yesterday—what was it? Oh—” he stopped abruptly, and a delicate color, almost a woman’s blush, went up to his hair.

“And yesterday?” asked Eaton, suddenly alert, his mocking tone lost, the latent shrewdness revealing itself through the thin mask of his commonplace good looks.

“Well, I heard that he was opposed to Aylett’s methods,” Colonel Royall said, with evident reluctance, “and that he favored Yarnall.”

Mrs. Eaton started violently and dropped her pack of cards, and Diana and she began to gather them up again, Cousin Jinny’s fingers trembling so much that the girl had to find them all.

Jacob stood listening, his eyelids drooping over his eyes and his upper lip twitching a little at the corners like a dog who is puckering his lip to show his fangs. “Yarnall is a candidate for governor,” he said coolly.

Colonel Royall frowned slightly. “I’d rather keep Aylett,” he rejoined.

“Yarnall had no strength a week ago, but to-day the back counties are supporting him,” said Eaton, “why, heaven knows! Some one must be organizing them, but who?”

Colonel Royall drummed on the arm of his chair with his fingers. “Since the war there’s been an upheaval,” he said thoughtfully. “It was like a whirlpool, stirred the mud up from the bottom, and we’re getting it now. No

one can predict anything; it isn't the day for an old-fashioned gentleman in politics."

"Which is an admission that shopkeepers ought to be in them," suggested Jacob, without emotion.

Colonel Royall laughed. "Maybe it is," he admitted, "anyway I'm not proud of my own party out here. I'm willing to stand by my colors, but I'm usually heartily ashamed of the color bearer. It's not so much the color of one's political coat as the lining of one's political pockets. I wish I had Abe Lincoln's simple faith. What we need now is a man who isn't afraid to speak the truth; he'd loom up like Saul among the prophets."

"Again let me suggest the shopkeeper at the Cross-Roads," said Jacob Eaton.

Colonel Royall smiled sadly. "Why not?" he said. "Lincoln was a barefoot boy. Why not Caleb Trench? Since he's honest over little things, he might be over great things."

"Is he a Democrat?" Jacob asked suavely.

"On my word, I don't know," replied Colonel Royall. "He's in Judge Hollis' office reading law, so William Cheyney told me."

"That old busybody!" Jacob struck the ashes from his cigarette viciously.

"Hush!" said Diana, "treason! Don't you say a word against Dr. Cheyney. I've loved him these many years."

"A safe sentiment," said Jacob. "I'm content to be his rival. Alas, if he were the only one!"

"What did you say Caleb Trench was doing in the judge's office, pa?" Diana asked, ignoring her cousin.

"Reading law, my dear," the colonel answered.

"I thought he was a poor shopkeeper," objected Mrs. Eaton.

"So he is, Jinny," said the colonel; "but he's reading law at night. It's all mightily to his credit."

"He's altogether too clever, then," said Mrs. Eaton firmly; "it is just as I said, he's an anarchist!"

“Dear me, let’s talk of some one else,” Diana protested. “The man must have hoodooed us; we’ve discussed nothing else since he left.”

“Though lost to sight, to memory dear,” laughed Jacob, throwing back his sleek dark head, and blowing his cigarette smoke into rings before his face: he was still leaning against the piano, and his attitude displayed his well-knit, rather slight figure. His mother, gazing at him with an admiration not unlike the devotion the heathen extends to his favorite deity, regarded him as a supreme expression of the best in manhood and wisdom. To her Jacob was little short of a divinity and nothing short of a tyrant, under whose despotic rule she had trembled since he was first able to express himself in the cryptic language of the cradle, which had meant with him an unqualified and unrestrained shriek for everything he wanted. She thought he showed to peculiar advantage, too, in the setting of the old room with its two centers of light, the lamp on the table and the fire on the hearth, with the well-worn Turkey rugs, its darkly polished floor, the rare pieces of Chippendale, and the equally rare old paintings on the walls. There was a fine, richly toned portrait of Colonel Royall’s grandfather, who had been with Washington at Yorktown, and there was a Corot and a Van Dyke, originals that had cost the colonel’s father a small fortune in his time. Best of all, perhaps, was the Greuze, for there was something in the shadowy beauty of the head which suggested Diana.

Colonel Royall himself had apparently forgotten Jacob and his attitude. The old man was gazing absently into the fire, and the latent tenderness in his expression, the fine droop of eyes and lips seemed to suggest some deeper current of thought which the light talk stirred and brought to the surface. There was a reminiscent sadness in his glance which ignored the present and warned his daughter of the shoals. She leaned forward and held her hands out to the blaze.

“If it’s fine next week, I’m going up to Angel Pass to see if the anemones are not all in bloom,” she said abruptly.

Colonel Royall rose, and walking to the window, drew aside the heavy curtains and looked out. “The night is superb,” he said. “Come here, Di, and see Orion’s golden sword. If it is like this, we will go to-morrow.”

But Diana, going to him, laid a gentle hand on his arm. “To-morrow was mother’s birthday, pa,” she said softly.

Mrs. Eaton looked up and caught her son's eye, and turned her face carefully from the two in the bay window. "Think of it," she murmured, with a look of horrified disapproval, "think of keeping Letty's birthday here!"

But Jacob, glancing at Diana's unconscious back, signed to her to be silent.



## II

IT was the end of another day when Caleb Trench and his dog, Shot, came slowly down the long white road from Paradise Ridge. It is a shell road, exceeding white and hard, and below it, at flood-tide, the river meadows lie half submerged; it turns the corner below the old mill and passes directly through the center of Eshcol to the city. Behind the mill, the feathery green of spring clouded the low hills in a mist of buds and leafage. The slender stem of a silver birch showed keen against a group of red cedars. A giant pine thrust its height above its fellows, its top stripped by lightning and hung with a squirrel's nest.

Trench and his dog, a rough yellow outcast that he had adopted, were approaching the outskirts of Eshcol. Here and there was a farmhouse, but the wayside was lonely, and he heard only the crows in the tree-tops. It was past five o'clock and the air was sweet. He smelt the freshly turned earth in the fields where the robins were hunting for grubs. Beyond the river the woods were drifted white with wild cucumber. Yonder, in the corner of a gray old fence, huddled some of Aaron Todd's sheep. The keen atmosphere was mellowing at the far horizon to molten gold; across it a drifting flight of swallows was sharply etched, an eddying maelstrom of graceful wings.

In the middle of the road Caleb Trench was suddenly aware of a small figure, which might have been three years old, chubby and apparently sexless, for it was clad in a girl's petticoats and a boy's jacket, its face round and smeared with jelly.

"Sammy," said Trench kindly, "how did you get here?"

"Penny," said Sammy, "wants penny!"

To Sammy the tall man with the homely face and clear gray eyes was a mine of pennies and consequently of illicit candy; the soul of Sammy was greedy as well as his stomach. Trench thrust his hand into his pocket and produced five pennies. Sammy's dirty little fist closed on them with the grip of the nascent financier.

"Sammy tired," he sobbed, "wants go to candy man's!"

Trench stooped good-naturedly and lifted the bundle of indescribable garments; he had carried it before, and the candy man was only a quarter of a mile away. He was raising the child to his shoulder when the growth of pokeberry bushes at the roadside shook and a woman darted out from behind it. She was scarcely more than a girl and pitifully thin and wan. Her garments, too, were sexless; she wore a girl's short skirt and a man's waistcoat; a man's soft felt hat rested on a tangled mass of hair,—the coarse and abundant hair of peasant ancestry. She ran up to him and snatched the child out of his arms.

"You shan't have him!" she cried passionately; "you shan't touch him—he's mine!"

Sammy screamed dismally, clutching his pennies.

"Never mind, Jean," said Trench quietly. "I know he's yours."

"He's mine!" She was stamping her foot in passion, her thin face crimson, the veins standing out on her forehead. "He's mine—you may try ter get him, but you won't—you won't—you won't!" she screamed.

The child was frightened now, and clasped both arms around her neck, screaming too.

"I was only offering to carry him to the candy man's, Jean," Trench said; "don't get so excited. I know the child is yours."

"He's mine!" she cried again, "mine! That's my shame, they call it, and preach at me, and try ter take him away. They want 'er steal him, but they shan't; they shan't touch him any more'n you shall! He's mine; God gave him ter me, and I'll keep him. You can kill me, but you shan't have him noways!" She was quivering from head to foot, her wild eyes flashing, her face white now with the frenzy that swept away every other thought.

"Hush," said Trench sternly, "no one wants to steal the child, Jean; it's only your fancy. Be quiet."

He spoke with such force that the girl fell back, leaning against the fence, holding the sobbing child tight, her eyes devouring the man's strong, clean-featured face. Her clouded mind was searching for memories. She had lost her wits when Sammy was born without a father to claim him. Trench still stood in the middle of the road, and his figure was at once striking and

homely. He was above the average height, big-boned and lean, the fineness of his head and the power of his face not less notable because of a certain awkwardness that, at first, disguised the real power of the man, a power so vital that it grew upon you until his personality seemed to stand out in high relief against the commonplace level of humanity. He had the force and vitality of a primitive man.

The girl crouched against the fence, and the two looked at each other. Suddenly she put the child down and, coming cautiously nearer, pointed with one hand, the other clenched against her flat chest.

"I know you," she whispered, in a strange penetrating voice, "I know you at last—you're him."

Trench regarded her a moment in speechless amazement, then the full significance of her words was borne in upon him by the wild rage in her eyes. He knew she was half crazed and saw his peril if this belief became fixed in her mind. Often as he had seen her she had never suggested such a delusion as was then taking root in her demented brain.

"You are mistaken," he said gently, slowly, persuasively, trying to impress her, as he might a child; "you have forgotten; I only came to Eshcol four years ago. You have not known me two years, Jean; you are thinking of some one else."

A look of cunning succeeded the fury in her eyes, as she peered at him. "It's like you ter say it," she cried triumphantly at last, "it's like you ter hide. You're afeard, you were always afeard—coward, coward!"

Trench laid his powerful hand on her shoulder and almost shook her. "Be still," he said authoritatively, "it is false. You know it's false. I am not he."

She wrenched away from him, laughing and crying together. "'Tis him," she repeated; "I know him by this!" and she suddenly snatched at the plain signet ring that he wore on his left hand.

Trench drew his hand away in anger, his patience exhausted. "Jean," he said harshly, "you're mad."

"No!" she shook her head, still pointing at him, "no—it is you!"

She was pointing, her wild young face rigid, as a carriage came toward them. Trench looked up and met the calm gaze of Colonel Royall and

Diana, who occupied the back seat. In front, beside the negro coachman, Jacob Eaton leaned forward and stared rudely at the group in the dust.

“What is the matter, Jacob?” the old man asked, as the carriage passed.

The young one laughed. “The old story, I reckon, Colonel,” he said affably, “begging Diana’s pardon.”

“You needn’t beg my pardon. It was Jean Bartlett, pa,” she added, blushing suddenly.

“Poor girl!” The colonel touched his lips thoughtfully. “By gad, I wish I knew who was the father of her child—I’d make him keep her from starving.”

“You do that, pa,” said Diana quietly.

“I reckon the father’s there now,” said Jacob Eaton, with a slight sneer.

Diana flashed a look at the back of his head which ought to have scorched it. “It is only the shopkeeper at Eshcol,” she said haughtily.

“Are shopkeepers immune, Diana?” asked Jacob Eaton, chuckling.

“I am immune from such conversations,” replied Diana superbly.

Jacob apologized.

Meanwhile, the group by the wayside had drawn nearer together. “I will take your child home, for you are tired,” said Trench sternly, “but I tell you that I do not know your story and you don’t know me. If you accuse me of being that child’s father, you are telling a falsehood. Do you understand what a falsehood is, Jean?”

His face was so stern that the girl cowered.

“No,” she whimpered, “I—I won’t tell, I swore it, I won’t tell his name.”

“Neither will you take mine in vain,” said Caleb Trench, and he lifted the sobbing Sammy.

Cowed, Jean followed, and the strange procession trailed down the white road. Overhead the tall hickories were in flower. The carriage of Colonel Royall had cast dust on Trench’s gray tweed suit and it had powdered Shot’s rough hair. The dog trailed jealously at his heels, not giving precedence to

Jean Bartlett. The girl walked droopingly, and now that the fire of conviction had died out of her face, it was shrunken again, like a thin paper mask from behind which there had flashed, for a moment, a Hallowe'en candle. They began to pass people. Aaron Todd, stout farmer and lumberman, rode by in his wagon and nodded to Trench, staring at the child. Jean he knew. Then came two more farmers, and later a backwoodsman, who greeted Trench as he galloped past on his lean, mud-bespattered horse. Then two women passed on the farther side. They spoke to Trench timidly, for he was a reserved man and they did not know him well, but they drew away their skirts from Jean, who was the Shameful Thing at Paradise Ridge.

Strange thoughts beset Caleb; suddenly the girl's accusation went home; suppose he had been the father of this child on his arm,—would they pass him and speak, and pass her with skirts drawn aside? God knew. He thought it only too probable, knowing men—and women. He was a just man on occasions, but at heart a passionate one. Inwardly he stormed, outwardly he was calm. The dog trailed behind him; so did the girl, a broken thing, who had just sense enough to feel the women's eyes. They passed more people. Again Caleb answered salutations, again he heard the girl whimper as if she shrank from a blow.

At her own door, which was her grandmother's, he set down the child. A shrill voice began screaming. "Is the hussy there? Come in with you, you thing of shame; what d'ye walk in the road for? The Ridge is fair screamin' with your disgrace, you trollop. Jean, Jean!"

The old woman was childish, but she knew the tale and retained it. There was also a half-foolish brother; it seemed as if, in the making of this luckless family, the usual three pints of wits had been spilled to a half pint and then diluted to go around. Zeb Bartlett came to the door, shambling and dirty, but grinning at the sight of Trench. Sammy ran from him shrieking, for he feared the theft of his spoils. Zeb towered in righteous wrath as Jean appeared.

"Get in, Shameless!" he commanded.

The girl shrank past him sobbing.

"My God!" said Caleb Trench and turned away.

He did not heed an appeal for help to get work that Zeb shouted after him; he was, for the moment, deaf. Before him lay the broad fields and sloping hills, the beauty of earth and sky, drenched in sunset; behind lay a girl's purgatory. He forgot his anger at her senseless accusation, he forgot the peril of it, in his wrath; he hated injustice. Only the yellow dog followed at his heels and his heart was full of strange thoughts. Five years of isolation and injustice must tell in a man's life, and the purposes born there in solitude are grim. The great trial that was to divide Eshcol against itself was growing, growing out of the sweet spring twilight, growing beyond the song of the thrush and the cheep of the woodpecker, growing in the heart of a man.

Meanwhile, Jacob Eaton had called Trench the father of Jean Bartlett's child, and old Scipio, who drove the colonel's bays, heard it and told it to Kingdom-Come Carter, who had been butler at Broad Acres for fifty years, and had carried Diana in his arms when she was two weeks old. Kingdom-Come told it to Aunt Charity and Uncle Juniper, coal-black negroes of the cabin, and thus by kitchens and alley-doors the story traveled, as a needle will travel through the body and work its way to the surface. The reputation of a man is but the breath on a servant's lips, as man himself is compared to grass and the flower of it.

### III

TRENCH walked slowly homeward. Colonel Royall's place, the largest of its kind in the neighborhood of Eshcol, was on a hill above the town, and Trench's nearest path lay not by the highroad but past the Colonel's gates along a lovely trail that led through a growth of stunted cedars out into the open ground above the river, and thence by a solitary and wooded path known sometimes as the Trail of the Cedar-bird, because those little birds haunted it at certain seasons of the year.

It was now broad moonlight, and Trench, who was peculiarly susceptible to the sights and sounds of Nature, was aware of the beauty of every tremulous shadow. The chill spring air was sweet with the aromatic perfume of pines and cedars, and, as he turned the shoulder of the hill, his eye swept the new-plowed fields. He could smell the grapevines that were blooming in masses by the wayside, promising a full harvest of those great purple grapes that had given the settlement its name. Below him the river forked, and in its elbow nestled the center of the village, the church at the Cross-Roads, and the little red schoolhouse where Peter Mahan had fought Jacob Eaton and whipped him at the age of twelve, long before Caleb Trench had even heard of Eshcol. To the left was the Friends' Meeting-House, Judge Hollis' home, and the lane which led to Trench's shop and office. Beyond, he discerned the little old white house where Dr. William Cheyney lived, but that was where Eshcol lapped over on to Little Paradise, for they had bridged the creek ten years before. Across the river lay the city, big and smoky and busy, its spires rising above its shining roofs.

A light mist, diaphanous and shimmering, floated over the lowlands by the water, and above it the dark green of the young foliage and the lovely slope of clovered fields seemed to assume a new and beautiful significance, to suggest mysterious unfoldings, buds and blossoming time, the gathered promise of a hundred springs, that mysterious awakening of life which stirred the lonely man's imagination with a thrill of pleasure as poignant as it was unusual. To him these lonely walks at sunrise and moonrise had been his greatest solace, and there was a companionship in the slight hushed



sounds of woodland life which approached his inner consciousness more nearly than the alien existence that circumstances had forced upon him. He was a stranger in almost a strange land. He had been born and brought up in Philadelphia, and his family belonged to the Society of Friends. Personally, Caleb Trench was not orthodox, but the bias of his early training held, and the poverty that had followed his father's business failure had tended to increase the simplicity of the boy's narrowed life. When death had intervened and taken first his father, whom business ruin had broken, and then his mother and sister, Caleb had severed the last tie that bound him to the East and started West to make his fortune, with the boundless confidence of youth that he would succeed. The lodestar that has drawn so many on that fantastic quest had drawn him, and failing in first one venture and then another, because it is easier to buy experience than to accumulate wealth, he had come at last to the little shop at Eshcol and the study of law. Wherein lay the touchstone of his life, though he knew it not.

Pausing now, a moment, to view his favorite scene, the lowlands by the river under their silvery mantle of vapor, he turned and took the sharp descent from the bluff to the old turnpike. A cherry tree in full bloom stood like a ghost at the corner of Judge Hollis' orchard, and the long lane was white with the falling petals. A light shone warmly through the crimson curtains of Judge Hollis' library window, and Caleb took the familiar path to the side door. The latch was usually down, but to-night he had to knock, and the judge's sister, Miss Sarah, opened the door.

"Is that you, Caleb?" she said, in her high thin voice; "wipe your feet. I wish men folks were all made like cherubs anyway, then there wouldn't be all this mud tracked over my carpets."

"We might moult our wing feathers, Miss Sarah," Caleb ventured unsmilingly, while he obeyed his instructions to the letter.

"I'd as lief have feathers as pipe ashes," she retorted; "in fact I'd rather—I could make pillows of 'em."

"You can't complain of my pipe ashes, Miss Sarah," Trench said, a slow laugh dawning in the depths of his gray eyes. "Is the judge at home?"

"Can't you smell tobacco smoke?" she replied, moving in front of him across the entry, her tall figure, in its plain green poplin with the turn-down

collar of Irish lace, recalling to Trench, in the most extreme of contrasts, the other tall figure in its beautiful evening dress, that had stood so haughtily in Colonel Royall's drawing-room, seeming to him the most perfect expression of beauty and charming grace that he had ever seen, though he still felt the sting of Diana's glance and the sarcasm of her receipt. He had carried the money back in good faith, for his Quaker training made six cents as significant to him as six hundred cents, but, under all his strong and apparently unmoved exterior, there was a quick perception of the attitude of others toward his views and toward himself. In the strength of his own virile character he had not fully realized where he stood in her eyes, but after that night he did not forget it. Meanwhile, Miss Sarah had opened the study door.

"Judge," she called to her brother, "Caleb's here."

There was no response, and she went away, leaving Caleb to find his own welcome. He went in and closed the door. Judge Hollis was sitting at his desk smoking a long black pipe and writing carefully in a hand as fine and accurate as a steel engraving.

The room was low, papered with old-fashioned bandbox paper and filled with bookcases with glass doors, every one of which hung open. In the corner was a life-sized bust of Daniel Webster. As Caleb entered, the judge swung around in his revolving chair and eyed him over his spectacles. He was a big man with a large head covered with abundant white hair, a clean-shaven face with a huge nose, shaped like a hawk's and placed high between the deep-set eyes.

"Trench," he said abruptly, "if they elect Aylett they'll have to stuff the ballot-boxes. What'll you do then?"

"Take the stuffing out of them, Judge," Trench replied promptly and decisively.

The judge looked at him, a grim smile curling the corners of his large mouth. "They'll tar and feather you," he said.

Trench sat down and took up a calf-bound volume. "I'm enough of a Quaker still to speak out in meeting," he observed.

"The only thing I know about Quakers makes 'em seem like Unitarians," said the judge, "and a Unitarian is a kind of stylish Jew. What have you

been doing with the backwoodsmen, Caleb? Mahan tells me they're organized—" the judge smiled outright now—"I don't believe it."

Caleb Trench smiled too. "I don't know much about organizing, Judge," he said simply. "When men come into my shop and ask questions I answer them; that's all there is about it."

"We'll have to shut up that shop, I reckon," the judge said, "but then you'll open your darned law office and give 'em sedition by the brief instead of by the yard. I deserve hanging for letting you read law here. I've been a Democrat for seventy years, and you're a black Republican."

Trench closed the law book on his finger. "Judge," he said slowly, "I'm a man of my own convictions. My father wouldn't stand for anything I do, yet he was the best man I ever knew, and I'd like to be true to him. It isn't in me to follow in the beaten track, that's all."

The judge twinkled. "You're an iconoclast," he said, "and so's Sarah, yet women, as a rule, are safe conservatives. They'll hang on to an old idea as close as a hen to a nest-egg. Perhaps I'm the same. Anyway I can't stand for your ways; I wash my hands of it all. I wish they'd drop Yarnall; his nomination means blood on the face of the moon. There's the feud with the Eatons, and I wouldn't trust Jacob Eaton to forget it, not by a darned sight; he's too pesky cold-blooded,—the kind of man that holds venom as long as a rattler."

"Then, if you don't like Yarnall, why not vote for Mahan?" Trench was beginning to enjoy himself. He leaned back in his chair with his head against a shelf of the bookcase, the light from the judge's lamp falling full on his remarkable face, clean-shaven like his host's, on the strong line of the jaw, and on the mouth that had the faculty of locking itself in granite lines.

"Because, damn it, I'm a Democrat!" said the old man angrily.

"By conviction or habit?"

The judge scowled. "By conviction first, sir, and by habit last, and for good and all, anyway!"

Caleb Trench laughed softly. "Judge," he said, "what of Jacob Eaton?"

The judge shot a quick look from under scowling brows. "Seen him lately?"

The younger man thought a moment. "Yes, last night. I owed Miss Royall some change and took it to the house. Eaton was there."

"How much change?" asked Hollis abruptly.

"Six cents."

"What!"

Trench reddened. "Six cents," he repeated doggedly.

"And you took it up there and paid Diana Royall?"

"Certainly, Judge, in the drawing-room; she gave me a receipt."

The judge exploded with laughter; he roared and slapped his knee.

Caleb Trench bore it well, but the color of his eyes, which was blue-gray, became more gray than blue. "I owed it," he said.

At which the judge laughed more. Then he dropped back into his old attitude and wiped his eyes. "You walked up there—seven miles—to see Diana?"

Trench stiffened. "No," he said flatly, "I did not; I've got more sense. I know perfectly how Miss Royall estimates a shopkeeper," he added, with a bitterness which he could not suppress.

The judge looked at him curiously. "How do you know?" he asked.

Trench returned his look without a word, and Judge Hollis colored; it was not the first time that the young man had rebuked him and let him know that he could not trespass on forbidden ground. The old lawyer fingered his brief an instant in annoyed silence, then he spoke of something else.

"I'll tell you about the feud," he said irrelevantly; "it began seventy years ago over a piece of ground that lay between the two properties; Christopher Yarnall claimed it and so did Jacob Eaton, this man's grandfather. There was a fence war for years, then Yarnall won. Winfield Mahan, Peter's grandfather, won by a fifteen-hour speech. They said the jurymen all fell asleep in the box and voted in a nightmare. Anyway he got it, and Mahan got more money for the case than the whole place was worth. That was the beginning. Chris Yarnall's son married a pretty girl from Lexington, and she fell in love with Eaton, Jacob's father. There was a kind of fatality about the

way those two families got mixed up. Everybody saw how things were going except Jinny Eaton, his wife. She was playing belle at Memphis, and Jacob was about a year old. Eaton tried to run away with Mrs. Yarnall, that's the size of it, and Yarnall shot him. There was a big trial and the Eatons claimed that Eaton was innocent. Young Mrs. Yarnall swore he was, and fainted on the stand, but the Yarnalls knew he wasn't innocent, and they got Yarnall off. He wouldn't live with his wife after that; there was a divorce and he married a Miss Sarah Garnett. This Garnett Yarnall, they want to run, is his son. Of course the whole Eaton clan hate the Yarnalls like the devil, and Jacob hates Garnett worse than that, because he's never been able to run him. Jacob likes to run things in a groove; he's a smart fellow, is Jacob."

Trench said nothing; he had filled his pipe and sat smoking, the law book closed on his finger. The judge swung back in his chair and clasped his hands behind his head.

"Of course he'll marry Diana Royall. They're fourth cousins; Jinny is the colonel's second cousin, on his mother's side; there's a good deal of money in the family, and I reckon they want to keep it there. Anyway, Jacob's set his mind—I'm not saying his heart, for I don't know that he's got one—on getting Diana; that's as plain as the nose on a man's face, but Diana—well, there's a proposition for you!" and the judge chuckled.

Trench knocked the ashes from his pipe very carefully into a little cracked china plate that Miss Sarah provided for the judge, and the judge never used. "Eaton is interested in some speculating schemes, isn't he?" he asked, without referring to Diana.

The judge nodded. "He's president of a company developing some lands in Oklahoma, and he's connected in Wall Street; Jacob's a smart fellow."

"Colonel Royall is interested, too, I suppose," Trench suggested tentatively.

"Yep, got pretty much all his spare cash in, I reckon; the colonel loves to speculate. It's in the blood, one way or another. His grandfather kept the finest race-horses in the South, and his father lost a small fortune on them. Of course David has to dip in, but he's never been much for horses. Besides, he had a blow; his wife—" The judge stopped abruptly and looked up.

The door of the study had been opening softly and closing again for the last few minutes. As he paused it opened wider, and a woolly head came in cautiously.

“What is it, Juniper?” he asked impatiently. “Don’t keep a two-inch draught on my back; come in or stay out.”

The old negro opened the door wide enough to squeeze his lean body through and closed it behind him.

“Evenin’, Jedge,” he said; “evenin’, Marse Trench.”

“What do you want now?” demanded the judge, taking off his spectacles to polish them. There was the ghost of a smile about his grim lips.

Juniper turned his hat around slowly and looked into the crown; it was a battered old gray felt and he saw the pattern of the carpet through a hole in it. “I’ve laid off ter ask yo’ how much it wud cost ter git er divorce, suh?”

Judge Hollis put on his spectacles and looked at him thoughtfully. “Depends on the circumstances, Juniper,” he replied. “I suppose Aunt Charity is tired of you at last?”

“No, suh, *she* ain’t, but I ez,” said Juniper indignantly; “she done b’haved so onerary dat I’s sho gwine ter be divorced, I ez, ef it don’ cost too much,” he added dolefully.

The judge’s eyes twinkled. “You’ll have to pay her alimony,” he said.

“What’s dat?” Juniper demanded with anxiety.

“So much a week out of your wages,” explained Trench, catching the judge’s eye.

“I ain’t gwine ter do it, noways,” said Juniper firmly.

“Don’t you have to support her now?” Trench asked mildly.

Juniper looked up at the ceiling thoughtfully. “I’s allus been proud ob de way she done washin’, suh,” he said; “she sho do mek money dat away, an’ I ain’t gwine ter complain ob noffin but de way she behaved ’bout Miss Eaton’s silver teapot, dat Miss Jinny done gib me fo’ a birthday present.”

“Silver teapot?” Caleb Trench looked questioningly at the judge.

“Juniper had a birthday,” Judge Hollis explained grimly, “and Aunt Charity gave him a birthday party. I reckon we all sent Juniper something, but Jinny Eaton gave him a silver-plated teapot, and there have been squalls ever since. Who’s got that teapot now, Juniper?”

“She hab,” said Juniper indignantly. “I locked dat teapot in my trunk, Judge, an’ I done tole her dat she couldn’t hab it when I died bekase she’d gib it ter dat mean trash son ob hers, Lysander, an’ when I wus out she done got a locksmith ter gib her a key ter fit dat trunk, an’ she got dat teapot, an’ she’s gwine ter gib tea ter Deacon Plato Eaton, an’ he hab er wife already, not sayin’ noffin ’bout concubines. I ain’t gwine ter hab him drinkin’ no tea outen dat silver teapot dat Miss Jinny done gib me. I’s gwine ter git divorcement an’ I wants dat teapot.”

“Why don’t you settle it with Uncle Plato?” asked the judge. “Assault and battery is cheaper than divorce.”

Juniper rubbed the back of his head thoughtfully. “De fact ez, Jedge,” he said, “I ain’t sho dat I’s gwine ter whip him.”

“Juniper,” said the judge, “you tell Uncle Plato from me that if he drinks tea out of that teapot you’ll sue him for ten thousand dollars damages for alienating your wife’s affections.”

Juniper looked at him admiringly. “I sho will, Jedge,” he said. “Alyanatying her ’fections! I sho will! Dat sounds mos’ ez bad ez settin’ fire ter de cou’t-house. I ’low Plato ain’t gwine ter cotch et ef he kin help it. I sho ez grateful ter yo’ all, Jedge.”

The judge swung his revolving chair around to his desk. “Very good,” he said grimly; “you can go now, Juniper.”

The old man turned and shuffled back to the door; as he opened it he bowed again. “Alyanatying her ’fections! I ’low I ain’t gwine ter fergit dat. Evenin’, gentermen,” and he closed the door.

The judge looked across at Caleb. “That’s one of the Eaton faction,” he remarked grimly. “Yarnall has to contend with that kind of cattle. Juniper’s sold, body and soul, to the Eatons, and that old fool, Jinny Eaton, gave him a silver-plated teapot for his birthday. You might as well give a nigger a diamond sunburst or a tame bear. He and his wife have been at swords’

points ever since, but as sure as the first Tuesday in November comes, that whole black horde will vote the Eaton ticket.”

Caleb Trench regarded the judge thoughtfully. “You’d like to disfranchise the negro,” he remarked.

Hollis grunted. “You’re a black Republican,” he said bitingly.

Trench shook his head. “No, sir, a conservative,” he replied, “but an honest man, I hope. I haven’t much more use for the ignorant black vote than you have, but that question isn’t the one that hits me, Judge.”

The judge looked keenly at the grim composure of the face opposite. “What does?”

“Dishonesty, fraud, and intimidation,” Trench answered.

“And you propose to oppose and expose them?” The old man was keenly interested, his heavy brows drawn down, his eyes sparkling.

“I do.”

Judge Hollis rose and went over to the younger man. He laid his hand on his shoulder. “You’re a poor man, Trench; they’ll ruin you.”

“So be it.”

“You’re alone; they’ll kill you,” warned the judge.

Trench rose, and as his tall figure towered, the fine width of his brow and the peculiar lucidity of his glance had never seemed more striking. Judge Hollis watched him in grim admiration.

“I’ve got but one life,” he said, “and, as God sees me, I’ll live that life in fear of no man.”

The judge walked slowly back to his seat, took off his spectacles and laid them down beside his brief. “Reckon Jacob Eaton’s got his match at last,” he said, “and, by the Lord Harry, I’m glad of it!”



## IV

DIANA ROYALL turned her horse's head from the highroad and began to descend the Trail of the Cedar-bird. It was late afternoon, and the glory of the west was suddenly obscured with a bank of purple clouds; the distant rumble of thunder jarred the stillness, and a moisture, the promise of heavy rain, filled the air. Long streamers of angry clouds drifted across the upper sky, and far off the tall pines stirred restlessly.

Regardless of these threatenings of Nature, Diana rode on, under the interlacing boughs, swaying forward sometimes in her saddle to avoid a sweeping branch, while her horse picked his way in the narrow path, often sending a loose stone rolling ahead of them or crackling a fallen limb. Through long aisles of young green she caught glimpses of the river; now and then a frightened rabbit scurried across the path or a squirrel chattered overhead. She loved the voices of the wild things, the fragrant stillness of the pinewoods, the perfume of young blossomings. She brought her horse to a walk, passing slowly along the trail; even the soft young leaves that brushed against her shoulder were full of friendships. She loved the red tips of the maples, and the new buds of the hemlocks; she knew where she ought to hear the sweet call—"Bob White!"—and once, before the clouds threatened so darkly, she caught the note of a song-sparrow. Life was sweet; there was a joy merely in living, and she tried to crowd out of her mind that little angry prick of mortification that had stung her ever since she met the eyes of Caleb Trench across her receipt. He had known that she mocked him, had scorned to notice it, and had showed that he was stronger mentally than she was. In that single instant Diana had felt herself small, malicious, discourteous, and the thought of it was like the taste of wormwood. She resented it, and resenting it, blamed herself less than she blamed Trench. Why had he come on such a silly errand? Why had he tempted her to rudeness? The question had fretted her for weeks; for weeks she had avoided passing the little old house at the Cross-Roads where Caleb had lived now for three years. Yet, when she came to the opening in the cedars, she drew near unconsciously and looked down at the old worn gable of his roof. It faced northeast, and there was moss on its shingles; she saw a little

thin trail of smoke clinging close to the lip of the chimney, for the atmosphere was heavy.

Then she turned impatiently in the saddle, breaking her vagrant thoughts away from the solitary man, secretly angry that she had thought of him at all. Her glance fell on a mass of blossoming wild honeysuckle, and the loveliness of its rose tintings drew her; she slipped to the ground and patting her horse, left the bridle loose on his neck. She had to gather up her skirts and thread her way through a bracken of ferns before she reached the tempting flowers and began to gather them. She broke off a few sprays and clustered them in her hands, pausing to look out across the newly plowed fields to her right; they had been sown to oats, and it seemed to her that she saw the first faint drift of green on the crests of the furrows. The next moment a crash of thunder shook the air, the trees overhead cracked and bent low before the onrush of the sudden gust. Her horse, a restive creature, shied violently and stood shivering with fear. Diana, grasping her flowers, started through the ferns, calling to him, but a blinding flash followed by more thunder forestalled her; the horse rose on his haunches and stood an instant, quivering, a beautiful untamed creature, his mane flying in the wind, and then plunged forward and galloped down the trail.

Diana called to him again helplessly and foolishly, for her voice was lost in the crackling of boughs and the boom of thunder; she was alone in the lonely spot, with the wind whistling in her ears. It ripped the leaves from the trees overhead and she stood in a hail of green buds. The fury of the gale increased, the black clouds advanced across the heavens with long streamers flying ahead of them, the light in the upper sky went out, darkness increased; suddenly the woods were twilight and she heard no sound but the mighty rush of the wind. As yet no rain fell, only leaves, broken twigs, and, at last, great branches crashed. The lightning tore the clouds apart in fearful rents.

It was a long way home, seven and a half miles, and already big drops spattered through the trees. Strangely enough, a thought of Caleb's walk with the six cents flashed in upon her and she resented it. Yet the nearest shelter was the little shop at the Cross-Roads. It made no difference, she would face the storm; and she started boldly down the trail though the bushes whipped against her skirt and the boughs threatened her. Once a rolling stone nearly threw her down, but she kept resolutely on. If the horse

went home riderless, what would they think? She could only dimly conjecture Colonel Royall's distress, but she would not go to the little shop to telephone; she would walk home!

She kept steadily on. Twice the force of the wind almost drove her back; twice she had to stop and steady herself against a tree trunk. The thought came to her that she had been foolish to stay out so long, but she scarcely heeded it now, for the wind had torn her hat off and loosened her hair, and it was whipping her clothes about and tearing at her like a malicious spirit. She reached the end of the path and came into the turnpike just as the rain came in a blinding sheet, white as sea-spray, and closed down around her with a rush of water like a cloudburst. She kept on with difficulty now, scarcely seeing her way, and another rolling stone caught her foot. She stumbled and nearly fell, straightening herself with an agony darting through her ankle; she had given it a sharp twist and it no longer bore her weight without anguish. She reeled against a fence at the wayside and held to it, trying to be sure that she was in the road. Then another flash showed her the shop at the Cross-Roads, not twenty feet away. An hour before she could not have imagined her joy at seeing it, now she had only the hope that she could reach it. The pain in her ankle increased, and her drenched clothes clung to her; she pulled herself forward slowly, clinging to the fence. The roar of the wind filled the world, and the rain drove in her face.

She did not see the man in the door of the shop; she did not know that, looking at the storm, he saw a figure clinging to the fence, but she suddenly felt herself lifted from the ground and borne forward in strong arms. Then something seemed to snap in her brain, she swam in darkness for a moment, with the throb of pain reaching up to her heart, before she lost even the consciousness of that.

Afterwards, when light began to filter back, she was being carried still, and almost instantly full comprehension returned. She was aware that it was Caleb Trench who carried her, and that he did it easily, though she was no light burden. He was taking her from the shop into his office beyond when she recovered, and she roused herself with an effort and tried to slip to the floor.

"Be careful," he said quickly, with an authority in his tone which, even at that moment, reached her; "you may have sprained or broken your ankle, I

do not know which.” And he carried her to a plain old leather lounge in the corner and put her gently down. “Are you in pain?” he asked, turning up the lamp which he had already lighted.

The light fell on his face as well as upon hers, and as she looked up, Diana was impressed with the vivid force, the directness, the self-absorption of the man’s look. If her presence there meant anything to him, if he had felt her beauty and her charm as she lay helpless in his arms, he gave no sign. It was a look of power, of reserve, of iron will; she was suddenly conscious of an impulse to answer him as simply as a child.

“It is nothing,” she said; “I don’t believe I’m even hurt much. Where did you find me?”

“Almost at my door,” he replied, moving quietly to a kind of cupboard at the other side of the room and pouring some brandy into a glass. “You must drink this; your clothing is soaked through and I have nothing dry to offer you, but if you can, come to the fire.”

Diana took the liquor and drank it obediently, unconsciously yielding to the calm authority of his manner. Then she tried to rise, but once on her feet, staggered, and would have fallen but for his arm. He caught her and held her erect a moment, then gathered her up without a word, and carried her to a seat by the little open stove into which he had already thrown some wood. Diana sank into his old armchair with crimson cheeks. She was half angry, half amused; he was treating her like an injured child, and with as little heed of her grand-dame manners as if she had been six years old.

“I have telephoned to Dr. Cheyney,” he said simply, “but, of course, this storm will delay him.”

“I am not ill,” Diana protested. “I am not even badly hurt; my horse ran away, and I—I think I sprained my ankle.”

“You were clinging to the fence,” Trench said, without apparent emotion, “and you fainted when I lifted you.”

She sickened at the memory, yet was woman enough to resent the man’s indifference. “I’m sorry you ’phoned for poor old Dr. Cheyney,” she said stiffly; “please ’phone to my people to send for me.”

“I tried,” he replied, undisturbed by her hauteur, “but the storm must have interfered. I can’t get them, and now I can’t get Dr. Cheyney.”

“How long was I unconscious?” she asked quickly, trying to piece together her recovery and all that he had done.

“Ten minutes,” he answered. “I saw the horse going by riderless and went out to look. It seemed a long time before I saw you coming and carried you into the shop. I thought you were not coming to, and you were so soaked with water that I had lifted you to bring you to the fire when you recovered.”

“I hope Jerry got home,” she said thoughtfully. “It was my folly; I saw how black the clouds were, and I ought to have gone home.”

Trench stooped for more wood and fed the fire, the glow lighting up his face again. “Where were you?” he asked simply, and then “I beg your pardon—”

“I was up the trail,” she said quietly. “I stayed too long. It was beautiful; all the young things are budding. I dismounted to gather some wild honeysuckle—and it is gone!”

For the first time his eyes met hers with a glow of understanding. “Did you notice the turn above the river?” he asked, still feeding the fire.

She smiled reluctantly. “How white the cucumber is,” she answered, “and did you see the red tips of the maples? How glossy the new green leaves look!”

“There is a place there, where the old hickory fell, where you can see the orchard and that low meadow by the lane—” His face was almost boyish, eager for sympathy, awakened, changed.

“It is beautiful,” Diana replied, nodding, “and one hears the Bob White there.”

“Ah!” he breathed softly, “you noticed?”

Diana leaned her elbow on the worn arm of his chair and nestled her chin in her hand, watching him. After all, what manner of man was he?

The storm, still raging in all its fury, shook the house to its foundation; a deafening crash of thunder seemed to demolish all other sounds. She

glanced covertly about the little room, seeking some explanation there. A village shopkeeper who was by nature a poet and a mystic, and of whom men spoke as a politician—there was a paradox. Something like amusement touched the edge of her thought, but she tried for the first time to understand. The room was small and lined on two sides with rough bookshelves made of unstained pine, yet there was a picturesqueness in the medley of old books, grouped carelessly about them. There were a few old worn leather chairs and the lounge, a faded rug, a table littered with papers and pens around the shaded lamp, beside which lay his pipe. His dog, Shot, a yellow nondescript, lay across the threshold, nose between paws, watching her suspiciously. The place was homely yet severe, clean but disorderly, and the strangest touch of all was the big loose bunch of apple-blossoms in an old earthen jar in the corner, the pink and white of the fragile blooms contrasting charmingly with the dull tintings of the earthenware, and bringing the fragrance of spring into the little room. Their grouping, and the corner in which he had placed them, where the light just caught the beauty of the delicate petals, arrested Diana's thought.

"You are an artist," she remarked approvingly; "or else—was it an accident?"

He followed her glance and smiled, and she noticed that, in spite of the rugged strength and homeliness of his face, his rare smile had almost the sweetness of a woman's. "Not altogether accident," he said, "but the falling of the light which seems to lift them out of the shadows behind them. Isn't it fair that I should have something beautiful in this shabby place?"

Diana colored; had he noticed her survey and again thought her discourteous? She could say nothing to refute its shabbiness and, for the moment, her usual tact deserted her. She sat looking at the apple-blossoms in silence while he rose from his place as fire-feeder, and, going to the kitchen, came back with a cup of hot tea.

"You had better drink this," he advised quietly; "I'm afraid you'll take cold. I hope the tea will be right; you see I am 'the cook and the captain too.'"

She took the cup, obediently again, and feeling like a naughty child. "It is excellent," she said, tasting it; "I didn't know a mere man could make such good tea."

He laughed. "Once or twice, you know, men have led a forlorn hope. I sometimes feel like that when I attack the domestic mysteries."

"Courage has its own rewards—even in tea, then!" she retorted, wondering if all the men who lived thus alone knew how to do so many things for themselves? In her experience it had been the other way. Colonel Royall was as helpless as a baby and needed almost as much care, and Jacob Eaton had a scornful disregard of domestic details, only demanding his own comforts, and expecting that his adoring mother would provide them without annoying him with even the ways and means. It occurred to Diana that, perhaps, it was the wide difference in social position, that gentlemen might be helpless in matters where the humbler denizens of the earth had to be accomplished; that, in short, Caleb Trench must make his own tea or go without, while Jacob Eaton could pay for the making of an indefinite succession of cups of tea. Yet, was this man entirely out of her class? Diana tasted the tea, with a critical appreciation of its admirable qualities, and quietly viewed the tea-maker. He was seated again now in the old armchair by the table, and she observed the strong lines of his long-fingered muscular hands, the pose and firmness of the unquestionably intellectual head. There was nothing commonplace, nothing unrefined in his aspect, yet all her training went to place between them an immeasurable social chasm. She regarded him curiously, as one might regard the habitant of another and an inferior hemisphere, and he was poignantly aware of her mental attitude. Neither spoke for a while, and nothing was audible in the room but the crash and uproar of the storm without. In contrast, the light and shelter of the little place seemed like a flower-scented refuge from pandemonium. Diana looked over her teacup at the silent man, who seemed less ill at ease than she was.

"I think you are a stranger here, Mr. Trench," she said, in her soft voice; "at least, we who have been here twenty years call every one else a stranger and a sojourner in the land."

"I have been here only three years," he replied, "but I do not feel myself altogether a stranger—to backwoodsmen," he added ironically.

She glanced up quickly, recalling the talk between her father and Jacob Eaton. "Is it you who are organizing them?" she asked lightly.

Her question took him by surprise, and he showed it; it seemed like an echo of old Judge Hollis. "I'm no organizer, Miss Royall," he replied simply, stooping to caress the dog, who had come to lay his rough head against his knee.

She smiled; something in his manner, an indefinable distinction and fineness, began to make her feel at ease with him. "Is that mere modesty?" she asked. "I wish you would tell me—I love politics and," she laughed gently, "I'm profoundly ignorant."

His rare smile lighted the repose of his strong face again. "I am not a desirable teacher for you, Miss Royall," he replied; "I'm that abnormal thing, that black sheep in the neighborhood, a Republican."

She leaned over and set her empty cup on the table. "I am immensely interested," she said. "A Republican is almost as curious as the famed 'Jabberwock.' It isn't possible that you are making Republicans up in the timberlands?"

"Some one must have told you so," he retorted quietly, a flicker of humor in his grave eyes; "they look upon me here as they would on a fox in a chicken-yard."

She colored; she did not want to speak of her father or her cousin. "You see what a busy thing rumor is," she said.

"You divine how harmless I am," he went on, stooping again to throw another stick into the blaze; "a single Republican in a wilderness of Democrats. I'm no better than one old woodchuck in a cornfield."

"A little leaven will leaven the whole lump," she laughed.

Her new tone, which was easy now and almost friendly, touched him and melted his reserve; he looked up smiling and caught her beauty and warmth, the lovely contour of her face. Her hat had been lost, and the fire was drying her moist hair, which was loosened in soft curls about her forehead. Her presence there began to reach the man's inner consciousness, from which he had been trying to shut her out. He was fighting to bar his thought against her, and her lovely presence in his room seemed to diffuse a warmth and color and happiness that made his pulses throb more quickly. Even the dog felt her benign influence and looked up at her approvingly. Trench steadied his mind to answer her banter in her own tone.



“The lump will reject the leaven first, I fear,” he said lightly; “I never dreamed of such vivid convictions with so little knowledge,” he added. “I come from a race of calm reasoners; my people were Quakers.”

“Oh!” She blushed as the exclamation escaped her, for she had suddenly remembered the six cents and understood the absurdity of his seven-mile walk; it was the Quaker in him. “I know nothing in the world about Quakers beyond their—their—”

“Hats?” he laughed; “like cardinals, they have that distinction.”

“Do you think me very ignorant?” she asked, unconscious that she was bridging the social chasm again and again, that she had, indeed, forgotten it in her interest in the man. His dog had come over now and laid his head in Diana’s lap, and she caressed it unconsciously; the dumb overture of friendship always touched her.

Trench turned. The firelight was on both their faces, and he met her eyes with that luminous glance which seemed to compel hers. “It would be very difficult for me to tell you what I think of you,” he said deliberately, but with a humorous kindness in his voice.

Diana drew back; she was not sure that she was annoyed. It was new, it was almost delightful to meet a primitive person like this. She could not be sure of social banalities here; he might say something new, something that stirred her pulses at any moment. It was an alarming but distinctly pleasurable sensation, this excursion into another sphere; it was almost as exciting as stealing pears. She looked at him with sparkling eyes.

“Couldn’t you try?” she asked daringly, and felt a tremulous hope that he would, though she could not believe it possible that he would calmly cross the social Rubicon again, and make her feel that all men were and are “of necessity free and equal.”

“You do not really wish me to try,” he retorted; “to you this is an adventure, and I”—he smiled, but a deeper emotion darkened his eyes—“I am the dancing bear.”

Her cheeks reddened yet more deeply, and her breath came quickly. What had she done? Opened the way for a dilemma? This man would not be led; he was a new and alarming problem. She was trying to collect her thoughts to answer him, to put back the old tone of trivial banter, to restore the lost

equilibrium, but happily she was spared the task. The tempest had lulled unnoticed, while they talked, and they were suddenly aware that the shop-door had opened and closed again, and some one was coming toward them. The next moment Dr. Cheyney appeared at the threshold, and Diana sank back into the shelter of the old chair with a feeling of infinite relief.

## V

HALF an hour later Caleb Trench was helping his two guests into the doctor's old-fashioned, high-topped buggy.

"That'll do, Caleb; I've got her safely tucked in," Dr. Cheyney said, as he gathered the reins up and disentangled them from old Henk's tail. "I reckon Henk and I can carry her all right; she isn't any more delicate than a basket of eggs."

Diana smiled in her corner of the carriage. "Thank you again, Mr. Trench," she said gently; "it's nice to have some one considerate. Dr. Cheyney has always scolded me, and I suppose he always will."

"Think likely," the doctor twinkled; "you mostly deserve it, Miss Royall."

"He's worse when he calls me names," Diana lamented, and bowed her head again to Caleb as old Henk started deliberately upon his way.

The hood of the vehicle shut off her view, and she did not know that Trench stood bareheaded in the rain to watch the receding carriage, until the drenched green boughs locking over the road closed his last glimpse of it in a mist-wreathed perspective, beautiful with wind-beaten showers of dogwood bloom.

The two inside the buggy were rather silent for a while. Diana was watching the light rainfall. The sun was breaking through the clouds, and the atmosphere became wonderfully translucent. Great branches were strewn by the way, and a tall pine, cleft from tip to root, showed the course of a thunderbolt. The stream was so swollen that old Henk forded with cautious feet, and the water lapped above the carriage step.

"Drowned out most of the young crops," Dr. Cheyney remarked laconically.

"What sort of a man is Caleb Trench?" Diana asked irrelevantly.

Dr. Cheyney looked around at her with quizzical eyes. "A shopkeeper," he replied. "I reckon that's about as far as you got before to-day, wasn't it?"

She colored. "I suppose it was," she admitted, and then added, "Not quite, doctor; I saw that he was odd."

The old man smiled. "Di," he said, "when you were no higher than my knee you'd have been more truthful. You know, as well as I do, that the man is above the average; he's keeping shop and reading law down at Judge Hollis' office, and he's trying to teach the backwoodsmen honest politics. Taken out a pretty large contract, eh?"

Diana looked down at her fine strong hands lying crossed in her lap; her face was deeply thoughtful. "I suppose he's bent on rising in politics," she said, with a touch of scorn in her voice; "the typical self-made man."

"You didn't happen to know that he was a gentleman," Dr. Cheyney remarked dryly.

She met his eye and smiled unwillingly. "I did," she said; "I saw it—to-night."

"Oh, you did, did you?" The old man slapped Henk with the reins. "Well, what else did you see?"

"Very little, I imagine," she replied. "I suppose I thought he had 'a story'; that's the common thing, isn't it?"

"Maybe," admitted the doctor, "but it isn't so, as far as I know. Caleb Trench comes of good old stock in Pennsylvania. His father lost a fortune just before Caleb left college; the old man's dead, and his wife, too. Trench has had to work and work hard. He couldn't take his law course, and he's never complained. He got together a little money and had to pay it all out for his sister; she was dying of some spinal trouble, and had to be nursed through a long illness and buried. Trench gave every cent; now he's making a new start. Hollis likes him, so does Miss Sarah."

Diana smiled. "It's something to please Miss Sarah."

"I never did," said William Cheyney calmly; "she declares I tried to poison her last time she was laid up with sciatica. She's taking patent medicines now, and when she's at the last gasp she'll send for me and lay the blame on my shoulders."

"It's hard to be a doctor after all, isn't it?" laughed Diana; then she leaned forward and caught the blossoming end of a vagrant dogwood and broke off

the flowers as they passed. “Dr. Cheyney,” she went on, after a long moment, “I’ve wanted you to see father again; I don’t believe he’s well.”

“Why not?” asked the doctor, his eyes on the mist of rain that seemed to move before them like the pillar of cloud before the Israelites.

“He’s moody,” she said, “he’s almost sad at times and—and he spent an hour in the Shut Room—” She paused and looked questioningly at the old man beside her, but he made no comment.

In the pause they heard the slush of Henk’s hoofs in the muddy road.

“I wish he wouldn’t,” Diana continued; “it’s beautiful—his devotion to my mother’s memory, but I—I’m jealous of that Shut Room, it makes him so unhappy. Couldn’t I break it up by taking him away?”

The doctor shook his head. “Better not, Diana,” he cautioned her, “better not. You can’t uproot an old tree. Let him fight his battle out alone.”

“I can’t bear that he should be alone,” she protested tenderly. “I can’t bear to be shut out even from his griefs. Pa and I are all in all to each other. Why does he never speak of mother? Is it his sorrow?”

Dr. Cheyney nodded, pursing his lips. Henk jogged on.

“It’s a long time,” said Diana, “I was only three years old.”

“Let it be, my girl,” the old man counseled; “we can’t enter the upper chamber of the soul, you know. David’s got to fight it out. Sometimes”—the doctor let the reins go so slack that old Henk walked—“sometimes grief is like a raw cut, Diana, and we can’t put in a few stitches either; got to leave that to Providence.”

“He isn’t well,” Diana insisted.

“He’d be no better for my meddling,” Dr. Cheyney retorted, unmoved.

“I wanted him to go East with me,” she continued, “to go to New York.”

Dr. Cheyney glanced up quickly. “And he wouldn’t?”

Diana shook her head.

“Don’t you ask it,” cautioned the old man. “It’s the time of year when your father’s full of notions; let him be.”

“The time of year”—Diana met the doctor’s kindly eyes—“when mother died?”

William Cheyney turned red. The girl, looking at him, saw the dull red stealing up to the old man’s white hair and wondered.

“Yes,” he said.

“Do I look like her?” Diana asked, after a moment of perplexed thought.

“No!” said Dr. Cheyney shortly.

Old Henk had climbed the last hill,—the one that always seems to meet the sky until you have climbed it,—and there, below it, unfolded the wide valley with the brown of new-plowed fields and the long strips of lovely foliage. The mist of the rain was molten gold now, and a rainbow spanned the sky.

“I wish I did!” Diana sighed regretfully.

“You’re the handsomest woman in the State,” the old doctor retorted tartly. “What more do you want?”

“The kingdoms of earth,” replied Diana, and laughed softly.

Dr. Cheyney disentangled the rein again from old Henk’s tail, and they turned the corner.

“Diana,” he said abruptly, “did you happen to ask Caleb Trench to call?”

“I?” Diana flushed crimson. “No,” she said reluctantly, “I didn’t.”

Dr. Cheyney shook with silent laughter. “That’s the way you treat the good Samaritan,” he said. “I’d rather be the Levite, Di.”

She leaned back in her corner of the carriage, blushing but resentful, a line between her brows. “It wouldn’t be any use,” she said. “I—I couldn’t make him feel welcome there.”

“You mean that Cousin Jacob would insult him,” Dr. Cheyney said bluntly.

She stiffened. “I should protect my own guests,” she retorted hotly.

“Could you?” asked the doctor dryly.

Diana met his eyes indignantly; then a throb of pain in her ankle made her wince.

“I reckon it does hurt, Di.” The old man smiled compassionately. “I’ll bandage it when we get you home. Don’t be capering off your horse again in thunder-storms.”

“I’d be sure to break my neck next time, I suppose,” she said ruefully.

“Let it be a leg, Di,” advised the doctor, “that would give me a job; the other would all go to the undertaker. He told me once,” he added, with a twinkle, “that we worked so much together we ought to have a common interest. I believe he wanted to found a trust—‘doctors’ and undertakers’ amalgamated protected’—or something of that sort. I begged off on the ground of injury to my profession. I told him it wouldn’t do for a poor man like me to go into a trust with a rich planter.”

“Dr. Cheyney,” Diana interrupted, “I don’t want you to think that Jacob Eaton rules our house; he has more influence with father than I wish he had, but he can’t rule father.”

“I suppose you’ll marry him in the end,” William Cheyney remarked reflectively.

Diana, leaning back in her corner, looked thoughtful. “No,” she said slowly, “I don’t believe I will.”

The doctor slapped Henk again with his loose rein. “Why not?” he asked dispassionately.

She thought a moment, a gleam of mischief deepening in her glance. “For one thing, his eyes are too near together,” she said at last.

“There’s no telling but what you could get them spaced better,” he replied, twinkling; “science is advancing, and so is wireless telegraphy.”

Diana laughed. “Some one will like them as they are,” she said, “and Jacob thinks them handsome.”

“Sleek young cub!” said the doctor, turning in at the gate that led to the old white house with its two wings and its belvedere. “I’d like you to marry a real man, Di.”

Diana leaned her head back in the corner and closed her eyes, as the throbbing pain held her breathless again. Then she smiled. “Dr. Cheyney,”

she said, “do you remember the time I cried because you wouldn’t give me the pink capsules?”

“You were seven,” replied the doctor placidly. “I remember. They would have killed you, but you screamed for them; you raised Cain about them.”

“I wanted my own way,” said Diana, “and I want it still. I think I’d better be an old maid.”

Old Henk was jogging up the path, and before the doctor could reply a negro stableman came running breathless, and stopped at the sight of Diana.

“Fo’ de Lawd, Miss Di!” he said, “I’se glad ter see you. Jerry done come home drenched, an’ we ’se been out searchin’—scared ter tell de col’nel.”

“You old rogue!” said the doctor, “he was the first one to tell. Miss Diana has sprained her ankle.”

“He was right,” said Diana promptly; “father would have been out in the storm and never found me. Texas, go on up and tell the colonel that I’ve hurt my ankle; I won’t have him worried, and I can’t walk well enough to deceive him.”

The doctor looked at her quizzically. “That’s right, Di,” he said, driving on; “you’ve spoilt him, but I reckon he can stand it if I can.”

“He began it,” she laughed softly; “he spoilt me first.”

Dr. Cheyney laughed too. “Perhaps he did,” he admitted gently,—“perhaps he did, but I’m not sure; you’ve got to have your trial, Diana.”

They were at the door now, and she laid her hand suddenly over the old man’s. “Dr. Cheyney,” she said, “won’t you thank Caleb Trench and tell him I’d be glad to have him come up here? I want to thank him again properly.”

“No,” said Dr. Cheyney promptly, “I won’t.”

Diana’s eyes opened. “Why?” she demanded, flushing hotly, half indignant.

The doctor looked over the top of his spectacles. “He wouldn’t come, Diana,” he said; “you wouldn’t either, in his place.”

She did not answer, but turned away abruptly and reached out both hands to Texas, who helped her down. “Good-bye, doctor,” she said coolly, standing



with one hand on the negro's shoulder.

The doctor climbed out. "Go to!" he said, smiling grimly; "I'm coming in to bandage your ankle. Don't cry for the pink capsules again, Di."

And Diana turned crimson with anger.

## VI

IN the weeks that followed, while Diana nursed her sprained ankle in enforced retirement, changes were taking place at the Cross-Roads. Caleb Trench did not close his little shop, but he put out the new sign: "Caleb Trench, Attorney-at-law."

The little rear room, into which he had carried Diana, was converted into an office, with a new table and another bookcase. Shot, the yellow mongrel, moved from the rear door to the front, and the great metamorphosis was complete. If we could only change our souls as easily as we do our surroundings, how magnificent would be the opportunities of life!

Caleb Trench had opened his law office, but as yet he had no clients, that is, no clients who were likely to pay him fees. The countrymen who traded with him and knew him to be honest came by the score to consult him about their difficulties, but they had no thought of paying for Caleb's friendship, and Caleb asked them nothing. Yet his influence with them grew by that subtle power that we call personal magnetism, and which is, more truly, the magnetism of vital force and sometimes of a clear unbiased mind.

For the most part Caleb and the dog sat together in the office, and their friendship for each other was one of the natural outcomes of the master's life. The solitary man loved his dog, and the dog, in turn, adored him and lay content for hours at his feet. It was the seventh week after he had carried Diana into his little shop, and as he sat there, by his desk, the moving sunshine slanting across the floor of the office, he recalled the instant when her head lay unconsciously on his shoulder and her cheek touched his rough coat. For one long moment his mind dwelt on it, and dwelt on her by his fire, with the glow of it in her eyes, her soft voice, her sweet manners, in which there was just a suggestion of condescension, until she forgot it and spoke to him naturally and freely. He saw her plainly again, as plainly as he saw the swaying boughs of the silver birch before his window. Then he thrust the thought resolutely away and turned almost with relief to face the shambling country youth who had entered without knocking.

"Well, Zeb?" he said shortly, but not unkindly.

“I stopped by ter see yo’, Mr. Trench,” Zeb Bartlett drawled slowly; “I thought mebbe yo’d help me out.”

Trench glanced at him and saw that he had been drinking. He was a lean, lank boy of nineteen, with a weak face that gave evidence of a weaker brain, and he bore a strong resemblance to his half-sister; he was accounted almost an idiot by the gossips of Eshcol, and was always in trouble, but, as he was the only grandson of a poor old woman, he escaped his deserts.

“What do you want now, Zeb?” Trench asked dryly, turning back to his papers; he was still studying law with a zeal that was later to bear fruit in the case that divided Eshcol.

“I want two dollahs,” Zeb said with a whine. “I haven’t had any work fer a week, an’ Jean’s starvin’ agin. Gimme two dollahs, Mr. Trench, an’ I’ll return it with—with interes’ on Saturday night, sho’,” he said, triumphing at the end, and pulling off his soft felt hat to rub his head helplessly.

“Not two cents,” said Caleb; “you’d get drunk.”

“I sure won’t!” protested Zeb, his mouth drooping and his hands falling weakly at his sides, as if he had suddenly lost the starch necessary to keep his lines crisp. “I ain’t seen liquor fer a month.”

“What have you been drinking then?” Trench asked, with the ghost of a smile.

“Water,” said Zeb, rallying, “water—ef it warn’t fer that I’d be dry ez punk. ’Deed, Mr. Trench, I needs money. Jean’s mighty sick.”

“No, she isn’t,” said Caleb. “I spoke to her at the market this morning.”

Zeb’s mouth opened again, like a stranded fish, and he stared; but he wanted the money. “She wuz took sick after that,” he explained, brightening, “she asked me ter git it. Gimme er dollah, Mr. Trench.”

“No,” said Caleb.

“Fifty cents,” whined Zeb, but a sullen look was coming into his light eyes.

“No!”

“Twenty-five cents!” pleaded the borrower, wheedling, but with angry eyes.

“Not a cent; you’d spend it on whiskey,” Caleb said.

Zeb's face changed, the cringing attitude of a seeker of a favor fell from him, he snarled. "You're a low-down, mean, sniveling shopkeeper!" he began. "I believe Jean's tellin' on yo', sure enough, I—"

Caleb rose from his seat, his great figure towering over the drunkard, as he took him by the collar and thrust him out the door. "Go home," he said, "and don't you ever come here again!"

Zeb fell out of his hand and shambled up against the silver birch, sputtering. He hated Trench, but he was afraid to give voice to his wrath. Besides, Shot was between them now, every hair erect on the ridge of his spine. Zeb shook his fist and trembled.

"Go home," said Trench again, and then to the dog, "Come, Shot!" and he turned back contemptuously.

As he did so, a tall farmer in brown homespun, with a wide-brimmed straw hat, drove up in his light wagon and got down to speak to him. The newcomer's eyes fell on Zeb. "Drunk again," he remarked.

Trench nodded, and the two went into the office.

Zeb Bartlett sank down under the trees and wept; he was just far enough gone to dissolve with self-pity. He believed Trench to be a monster who owed him two dollars for his very existence. He sat under the silver birch and babbled and shook his fist. Then his thirst overcame him, and he gathered himself together again and shambled down the road toward the nearest public house. He usually earned his drinks by scrubbing the floors, but this morning he had not felt like scrubbing and, because scrub he must, he hated Caleb Trench yet more, and turned once in the road to shake his fist and weep.

Meanwhile Trench was going patiently through the papers of his new visitor, Aaron Todd. The stout mountaineer owned timberlands, had a sawmill and grew corn on his fertile lower meadows for the city markets. Todd was considered rich, and his money was sought for new investments. The get-rich-quick machines thrive upon the outlying districts. Todd had been asked to put more money in the Eaton Land Company; he had some there already and was suddenly smitten with a caution that sent him to Caleb. The lawyer was new, but the clear brain of the shopkeeper had been tested. Todd knew him, and watched as he turned the papers over and read

the glowing circular of the Land Company, its capital, its stock and its declared dividends. It was alluring and high sounding, a gilt-edged affair.

Trench looked up from the long perusal, the perpendicular line between his brows sharp as a scar. "Are you all in?" he asked abruptly.

Todd shook his head. "No," he said tersely, "about five thousand. I could put in ten, but that would strip me down to the ground. The interest's large and I need it if I'm to run that sawmill another year."

"Don't do it," said Trench.

As Todd took back the papers and strapped them together with an India-rubber band, his face was thoughtful. "Why not?" he asked at last; "you've got a reason."

Trench nodded.

Todd looked at him keenly. "Mind tellin' it?" he asked.

"Why, yes," said Caleb, "it's not proven, but I'm willing to show you one objection; this scheme is offering abnormal interest—"

"And paying it," threw in Todd.

"And paying it now," admitted Trench, "but for how long? Why can they pay ten per cent when the others only pay four and a half? I'd put my money in the four and a half per cent concerns and feel safe. When a firm offers such an inducement, it's not apt to be sound; it isn't legitimate business, as I see it."

Todd put the papers slowly back into his pocket. "Mebbe you're right," he admitted, "but they're all in it; I reckon the whole East Mountain district's in it, an' half of Eshcol. They say it's Jacob Eaton's."

Trench strummed lightly on the desk with his fingers. "So they say," he assented without emotion.

Todd ruminated, cutting off a piece of tobacco. "Eaton's bent on lickin' Yarnall out of the nomination, an' we don't want Aylett again. I believe I'll take to your ticket," he remarked.

Trench looked at him, and his full regard had a singularly disconcerting effect; Diana herself had felt it. "Vote for Peter Mahan," he said coolly.

“See here, Trench,” said Todd abruptly, “I believe you’d make a man vote for the devil if you looked at him like that!”

Caleb laughed, and his laugh was as winning as his smile; both were rare. “I’m only suggesting Mahan,” he said.

“We’ve never had a Republican, not since five years before the war. That was before I was born,” Todd replied. “It would sweep out every office-holder in the State, I reckon.”

“Where’s your civil service?” asked Trench dryly.

“It’s rotten,” said Todd. “There ain’t a man in now that ain’t an Eaton or an Aylett runner. I’d a damned sight rather hunt a flea in a feather-bed than try to catch Jacob Eaton when he’s dodging in politics.”

“Yet Mr. Eaton has you all in the hollow of his hand,” said Trench. “You don’t like his methods; you’re all the time reviling his politics, but there isn’t a man among you that dares vote the Republican ticket. It’s not his fault if he is your boss.”

Todd rubbed the back of his head. “There’s a pesky lot of truth in that,” he admitted reluctantly, “but—well, see here, Mr. Trench, about three quarters of the county’s his, anyway, and the rest of it belongs to men who’ve invested with him an’ they’re afraid to run against him.”

“This Land Company seems to be about the biggest political engine he has,” Caleb remarked. “Twenty-nine out of every thirty tell me the same story. Practically, then, Mr. Eaton hasn’t bought you, but he’s got your money all in his control, you elect his underlings and through them he governs you, speculates with your money, and, in time, you’ll send him to the United States Senate. As a matter of fact, if the same system worked in the other States, he could be President.”

“By George, so he could! I hadn’t thought of it,” said Todd, letting his heavy fist fall on the table with a force that made every article on it dance. “Mr. Trench, I want you to put that before the people up to Cresset’s Corners. There’s going to be a town meeting there on Friday night. If you’ll let me, I’ll post it in the post-office that you’ll speak on the Republican ticket. You can just drop this in as you go along.”

Caleb thought hard, drawing a line on the table with his paper-cutter. "I'm perfectly willing to speak for the Republican ticket," he said, amused, "but this is not germane to that subject. If they ask questions I'll answer them, but I wouldn't start out to attack Mr. Eaton personally without grounds. I've said all I want to say here and now; of course I'll say it over again in public, but I can't throw Mr. Eaton's method into the Republican ticket."

"I'll ask all the questions," said Todd. "What I want is, to get the facts out. Everybody's for Eaton because everybody's scairt, an' really Yarnall's the best man we've got."

"Then vote for Yarnall," Trench advised coolly.

"He ain't Republican, an' you want the Republican ticket," protested Todd, a little bewildered.

"We can't elect it," said Caleb; "even with the Democratic Party split, we can't get votes enough. If you're a Democrat vote for Yarnall."

Todd folded his tobacco pouch and thrust it into his trousers' pocket, with burrowing thoughtfulness, then he pulled the crease out of his waistcoat. "How many have you said that to?" he asked.

Trench smiled. "To every man who has asked me," he replied, "the Republican ticket first and Yarnall next."

Todd rose and picked up his broad hat. "I reckon we'll have Yarnall after all," he drawled, "but you'll speak Friday, Trench?"

Trench nodded.

Just then some one came into the shop with the frou-frou of ruffled skirts. Caleb went out, followed by Shot first and Todd last. Shot greeted the newcomer with uplifted paw. Miss Kitty Broughton bowed and shook hands with the dog, laughing; she was very pretty, and in a flowered muslin, with a broad-brimmed saucy straw, she looked the incarnation of spring. No one would have imagined that she was a granddaughter of old Judge Hollis and a grandniece of Miss Sarah.

She went up to the counter and pushed a square white envelope across to Caleb. Meanwhile, Aaron Todd had gone out to his wagon and was climbing into it. Trench took the envelope, smiling back into Miss Kitty's laughing blue eyes, and opened it.

“So you’re ‘out,’ are you, Miss Broughton?” he asked, “or is this only the first alarm?”

“It’s my first really and truly ball,” said Kitty, “and Aunt Sarah’s going to lead the Virginia Reel!” She clapped her hands delightedly. “You’ll come, Mr. Trench?”

“I haven’t been to a ball in six years,” replied Caleb, smiling, “I wouldn’t know a soul. You’re good to me, Miss Broughton, and I’ll send a bouquet.”

“You’ll come!” said Kitty.

He shook his head, still smiling. “Shot would be better fun,” he said; “you mustn’t invite shopkeepers, Miss Kitty.”

Kitty pouted, but a red streak went up to her hair. She knew she would be teased by her intimates later for that very thing. Yet Caleb was a gentleman, and Judge Hollis loved him; Kitty was not sure that she could not love him herself if he tried to make her, but he never did, and he looked as detached now as a pyramid of Egypt, which was a nettle to her vanity.

“Will you come?” she demanded, leaning on the counter and nestling her little round chin into the hollow of her hands. Something in the gesture made him think of Diana—if Kitty had but known it!

“Can’t you let me off?” he asked good-naturedly.

She shook her head. “Please come,” she said. “I bet Judge Hollis a dollar that I’d make you—and I’ll have to go without my dollar if you refuse; he swore you would.”

“Suppose you let me pay the debt, Miss Kitty?” Caleb smiled.

She shook her head. “Oh, it’s more than the money,” she protested. “He’ll say I couldn’t get you to come. I’ve got some pride about it; I hate to be laughed at.”

“So do I,” sympathized Trench, “and they’ll laugh at me for going. They’ll call me the Yankee shopkeeper—but I’ll go.”

She clapped her hands delightedly. “Really? Honor bright?”

“Honor bright,” he affirmed; “will you dance with me, Miss Broughton?”



“The very first dance,” laughed Kitty. “You’re the captive of my bow and spear. You’ll be angry, too, for everybody wants to dance first with Diana Royall. She’s the belle, and her sprained ankle’s well again. Was it true that you carried her in out of the rain?” she asked curiously, her blue eyes dancing.

“I didn’t know you gossiped,” parried Trench.

“Oh, I love it!” she protested, “and Diana won’t tell me. It sounds so romantic, too. I’ll know, though—because you’ll ask her to dance next if you did.”

“I don’t think you will know,” said Caleb.

She looked across the counter at him, her head on one side. “Why won’t you tell me?”

“Ask Miss Royall,” he suggested quietly.

“I know it’s true now!” Kitty cried.

“Go home and mind your own business, you minx!” said Judge Hollis, suddenly appearing, his large figure filling the door. “Don’t let her waste your time, Caleb,—the idlest little girl in the county.”

“I’ve won my dollar!” cried Kitty, presenting an ungloved little hand, the pink palm up; “pay your debts, sir.”

The judge laughed and drew out a silver dollar. “Are you going, Caleb?” he asked. “I won’t pay till I’m certain; the baggage fleeces me.”

“I’ve promised,” said Caleb, smiling; “she’s fairly earned it, Judge.”

“There it is, miss,” said the judge and kissed her. “Now go home!”

Kitty laughed. “I can’t,” she said, “I’ve got a dollar more to spend at Eshcol. I’m going into town. Good-bye, and be sure you come, Mr. Trench.”

“He will,” said the judge firmly, “or you’ll refund that dollar.”

“I’ll go, Miss Broughton,” Caleb said, though in his heart he dreaded it; he had a proud man’s aversion to meeting discourtesy from those who despised his poverty, and he had observed the red when it stained Kitty’s cheek. But, after all, it was a small matter, he reflected; to one of Caleb’s habits of

thought the social part of life was a small matter. Yet it is the small things which prick until the blood comes.

## VII

A WEEK from that day Caleb Trench addressed a crowd of backwoodsmen and some of the Eshcol farmers at the town hall at Cresset's Corners. Even if a reporter had not been there, it would have passed by word of mouth all over the county, and, later, through the State.

There are moments when the eloquence of man consists in telling the truth, the whole truth, and nothing but the truth. The fact that the countrymen had not heard it for nearly fifteen years clothed it with spell-binding powers. For half an hour Caleb Trench talked to them with extraordinary simplicity and directness; when he had finished they knew how they were governed and why. He had the power of making his argument clear to the humblest, and yet convincing to the most learned, which is the power that men call persuasion. In that half-hour they found that they had raised up the Golden Calf themselves, and that it had smitten them. Jacob Eaton suddenly appeared like a huge spider whose golden web had immeshed the entire State, while they themselves were hung in it like wounded flies. Yet, yesterday, Jacob Eaton had been a young man of fine family and immense influence. That night they went home disputing and lay awake, in the agonies of reflection, trying to find a way to withdraw themselves from his investments; that they could not find it involved them in still deeper distress. All this while, the figure of Caleb Trench began to stand out sharply and suddenly, like the silhouette thrown on the sheet by the lamp of the stereopticon.

He made no effort to keep himself before them; having told them the truth, he acted as if he had performed his mission and went about his own business, which was chiefly, just then, keeping shop and reading law only at night. The summer trade was on, the roads were good, and customers more plentiful than clients.

Thursday night was the date of Kitty Broughton's ball; Wednesday, of the previous week, brought Caleb his first client. The two events afterwards fixed many things in his memory, for at this time he was trying to forget that Miss Royall had ever sat in his old armchair by the stove. The

peculiarly haunting qualities of some individuals, who are not spooks, is past explanation. Caleb felt that there was no more pricking misery than to see eternally one face and one figure in his favorite chair, when neither of them could ever possibly belong there, and it was to his interest to forget them. There should be, by the way, a method for exorcising such ghosts and compelling their rightful owners to keep them labeled in a locked cabinet instead of projecting them upon the innocent and the defenseless. Caleb's method consisted, at present, in turning the old chair upside down in the closet back of the kitchen, which ought to have discouraged any self-respecting ghost, yet Wednesday morning he got it out again and put it reverently in its place, with a sheepish feeling of having committed a crime in trying to dishonor it.

It was after the ceremony of restoration that Juniper arrived with a long face. He had been temporarily reconciled to Aunt Charity and was shouldering her chief responsibility, her son Lysander.

"De judge, he sent me down ter see yo', suh," Juniper explained, twisting his battered hat as usual. "I'se in a po'erful lot ob trouble an' so ez de ole woman."

Caleb moved a little impatiently. "The silver teapot?" he asked dryly.

"No," said Juniper, without embarrassment, "no, suh; de folks up ter de Corners ez gwine ter hab Lysander 'rested. I reckon dey hez had him 'rested a'ready. Dey says he dun stole der chickens on Monday. Et wuz de dark ob de moon, suh, an' dat make it seem ez if dey got er case. De judge, he tole me ter come ter yo'."

Caleb felt that Judge Hollis was enjoying his first case. He almost heard the shouts of Homeric laughter from that inner office. "You'll have to prove that he didn't steal the chickens," he said. "In the first place, who are the people?"

"Mr. Todd's folks," Juniper replied, "an' dey ses et wuz two pullets an' er cockerel."

Trench knew where Aaron Todd lived and recalled, less vividly, the presence of a large chicken-yard. "How do they suppose he could have carried them off undiscovered, even at night?" Caleb argued. "If I remember where the chicken-yard is, you could hear a commotion among

the fowls at any time, particularly at night. It will be a simple matter, Juniper, when we prove an alibi.”

Juniper rubbed the back of his head thoughtfully. “Dat’s so, suh,” he replied; “I ’low dat I don’ wanter pay his fine, an’ Charity, she don’; she sho’ won’t pay et bekase she say I oughter, an’ ef Lysander goes up fo’ sixty days an’ works on de roads, he ain’t gwine ter do anodder stroke all de year; dat’s Lysander; I knows ’im.”

“What time do they say the chickens were stolen?”

“Monday mawnin’, ’bout two o’clock.” Uncle Juniper rubbed his sleeve thoughtfully across his forehead.

“Then we must prove an alibi,” said Caleb, swinging around in his chair to view his client more directly. “The point is clear; where was Lysander at two o’clock Monday morning?”

“I specks he wus up dar, suh,” said Juniper cheerfully. “He ain’t let on ter me dat he wuz anywhere else.”

Caleb got up abruptly and threw open the door into the shop; he had seen Colonel Royall coming. Then he dashed off a note to Aaron Todd, enclosing a cheque for the two pullets and the cockerel, and gave it to Juniper.

“Take that up to the Corners,” he said briefly, “and I think Lysander will get off without arrest, but tell him if he steals any more I’ll thrash him.”

“Yes, suh,” said Juniper, expectant but unbelieving.

Later, however, when Todd took the money and let Lysander off, he was convinced, and, like all new converts, he became a zealot, and went about telling of the miracles wrought by the new lawyer. Thus did Caleb’s fame go abroad in the byways and alleys, which is, after all, the road to celebrity.

Meanwhile, Colonel Royall, very inconsiderately, sat in Diana’s chair. He had heard of the speech at Cresset’s Corners, and knew that Trench was supporting Yarnall for the Democratic nomination. Yet the colonel admired Trench, the force of whose convictions was already bearing fruit.

Eight weeks before, Colonel Royall had made a formal call on Caleb to thank him for his courtesy and service to Diana. He was a Southern gentleman of the old school, and he had done it without allowing even a

drop of condescension in his manner. Moreover, he liked Trench and was trying to put together the modesty of the man, who had colored at his acknowledgments, with the incendiary ability that could rouse and hold a meeting of backwoodsmen on a subject that was as foreign to their understanding as it was alarming. Admitted, for the first time, into the inner office, the colonel gazed about with almost as much curiosity as Diana, and he drew conclusions not unlike hers, but more pregnant with the truth.

The colonel's own face in repose was infinitely sad, yet when he spoke and laughed his expression was almost happy. But he had been twenty years turning the key on his inner self, and the result was an exterior that reminded an observer of an alabaster chalice in which the throbbing pulse of life lay clasped and all but crystallized. His face in repose had almost the sweetness of a woman's, and only when the blue eyes blazed with sudden wrath was there ever cause to fear him. That he was a dreamer of dreams was apparent at a glance; that he could keep an unhappy secret twenty years seemed more improbable. He leaned back in his chair, clasping his hands on top of the stout hickory stick he carried.

"Mr. Trench," he said slowly, with his Southern drawl, "I congratulate you on your success in politics."

Caleb turned red. He was aware of the universal prejudice against his politics in Colonel Royall's class. "Thank you, Colonel," he said formally, rising to look for glasses in his cupboard. "I can't offer you fine old wine, sir, but I have some Kentucky whiskey that Judge Hollis sent me."

"After the speech at Cresset's?" The corners of the colonel's mouth twitched.

Caleb poured out the whiskey and handed the glass to his guest. "You know the judge well, sir," he remarked, and his composure under the jest won upon the colonel.

He tasted the whiskey with the air of a connoisseur. "In Virginia, Mr. Trench, we should make this into juleps," he said appreciatively; "the judge was raised in the Kentucky mountains and he knows a good thing when he sees it. I read the report of your speech, sir, and I admired it, but"—the colonel let his hand fall a little heavily on the arm of the chair where Diana's elbow had rested,—he little knew the enormity of his action—"if I

thought it was all true I should have to change my coat. I don't—but I believe you do.”

“Thank you,” said Trench quietly, “I do.”

“Very good, sir,” said Colonel Royall; “then you did right, but you’ve made more enemies than you could shake a stick at. Jacob Eaton’s my cousin, a young man yet, but mighty clever, and I reckon he’ll remember all you said. There isn’t any call for me to resent things for Jacob! No, sir, I honor you for your courage, if those are your convictions, but Yarnall can’t be elected here.”

“I think he can, Colonel,” Caleb replied, unmoved. The lines about his mouth straightened a little and there was a glint in his gray eyes; otherwise his composure was unruffled.

Colonel Royall set down his empty glass and waved aside the proffered bottle. “No more, sir, it’s too good to be safe; like most fine things, a little goes a long way. What makes you think you can nominate Yarnall? Of course you can’t elect a Republican, so I see your point in trying to influence the Democrats. By gum, sir, it’s the first time it’s been attempted, and it’s knocked the organization into splinters; they’re standing around waiting to see what you’ll do next!” The colonel laughed softly.

“They’ll nominate Yarnall and they’ll elect him,” said Caleb; “Aylett can’t get two votes out of ten. I’m sorry to go against your candidate, Colonel,” he added, smiling.

“Eh?” said the colonel; he was, in fact, suddenly aware of the charm of Caleb’s rare smile. He had not known that the man could smile like that.

“I’m afraid I appear an interloper in a fenced, no-trespass field,” Caleb continued pleasantly. “I’m a Republican, of course, and”—his eyes twinkled—“something of a Yankee, but, as we can’t elect a Republican, you must forgive me for choosing the less instead of the greater evil.”

Colonel Royall picked up his broad-brimmed Panama and twirled it thoughtfully on the top of his stick. “What’s your objection to Aylett?” he asked meditatively.

Trench was momentarily embarrassed, then he plunged boldly. “In the parlance, we would call him a machine man,” he said; “he was elected by

the same system that has ruled this State for years; he's bound hand and foot to it, and his reelection means—a continuance of the present conditions.”

It was now Colonel Royall's turn to smile. “You mean a continuance of Jacob Eaton? Well, I expect it will, and I don't know but what it's a good thing. You haven't converted me to your heresy, Mr. Trench, but I've tasted of your hospitality, and if you don't come and taste mine I'll feel it a disgrace. Why have you not come to see me, sir? I asked you when I came here to acknowledge your courtesy to my daughter.”

Trench reddened again. “I'm coming, Colonel,” he said at once, “but”—he hesitated—“are you sure that a man of my political faith will be entirely welcome?”

Colonel Royall straightened himself. “Sir, Mr. Eaton does not choose my guests. I appreciate your feeling and understand it. I shall be happy, sir, to see you next Sunday afternoon,” and he bowed formally, having risen to his full height.

Caleb took his proffered hand heartily, and walked with him to the door. Yet he did not altogether relish the thought of a call at Broad Acres; he remembered too vividly his visit there to refund Diana's money, and reddened at the thought of a certain receipt which he still carried in his pocket. He had set out to restore her change because he did not wish her to think she had been overcharged, and it was not until he had fairly embarked upon the interview that he had regretted not sending it by mail, and had reached a point where stealing it would have seemed a virtue! The fact that the Broad Acres people seldom, if ever, came to his shop had made its return in the natural course of events doubtful, and the matter had seemed to him simple and direct until Diana met it. The Quaker in him received its first shock that night, and he recoiled from giving them another opportunity to mortify his pride. Before that he had regarded Miss Royall as supremely and graciously beautiful; since then he had realized that she could be both thoughtless and cruel.

He stood in his door watching the old colonel's erect figure walking up the long road under the shadow of the great trees that lined it at intervals. There was something at once stately and appealing in the old man's aspect, yet there was power in his eyes and the pose of his white head. He reminded



Caleb of an old lion, sorely stricken but magnificent; some wound had gone deep. As yet the younger man had no notion of it; when he did know he marveled much at the strange mingling of knight-errantry and tenderness in the breast of one of Nature's noblemen. As it was, he was supremely conscious that he liked Colonel Royall and that Colonel Royall liked him, but that the colonel was vividly aware that the shopkeeper at the Cross-Roads was not his social equal; Caleb wondered bitterly if he went further, and considered that the gentleman of good blood and breeding was his equal when in law and politics?

He turned from the door with a whimsical smile and patted his dog's uplifted head; then, as his eyes lighted on the worn leather chair in which the colonel had just sat, he turned it abruptly to the wall.

## VIII

BEFORE Sunday Caleb's settlement of his first case was celebrated in Eshcol. Judge Hollis got the facts from Juniper and spread the story abroad. It was too good to keep. The cockerel was valued at three dollars, being rare, and the pullets cost seventy-five cents each. The attorney for the defendant had paid the costs without pleading the case at the bar.

The judge asked if he intended to settle all difficulties on the same plane? If so, he could send him enough clients to form a line down the Mississippi from St. Louis to New Orleans. Juniper was telling it too, without grasping the judge's point of view. As a lawyer, Juniper claimed that Caleb Trench could out-Herod Herod. He protested that the mere paying for the fowls had saved Lysander from being tarred and feathered; for Aaron Todd's indignant threats were magnified by memory, and no one but Mr. Trench would have thought of so simple and efficacious a remedy.

The settlement of Lysander's difficulties coming after the famed Cresset speech created a sensation between wrath and merriment among Caleb's political opponents. What manner of man was he? Caleb Trench, Quaker, posted on his door might have explained him to some, but to the majority it would have remained Greek. Besides, Caleb was not orthodox; he had always leaned to his mother's religion, and she had been an Episcopalian; between the two creeds he had found no middle course, but he had a profound respect for the faith that brought Diana to her knees with the simplicity of a child in the little old gray stone church where the new curate had installed a boy choir.

It was long past church time, and after the early Sunday dinner, when he sat on the porch with Colonel Royall at Broad Acres. The colonel was a delightful host, and this time he did not discuss politics; he talked, instead, about his father's plantation in Virginia before the war, a subject as safe as the Satires of Horace, yet Trench fidgeted a little in his chair. He was conscious that Diana was passing through the hall behind him, and that, after her first correctly courteous greeting, she had avoided the piazza. He was, in fact, distinctly the colonel's guest.

Diana was more vividly aware of social distinctions than her father, and less forgetful of them; she was only twenty-three, and the time was not yet when she could forgive a man for doing anything and everything to earn his bread. There were so many ways, she thought, that did not embrace the village yardstick! Besides, she rather resented the Cresset speech. Jacob Eaton was her cousin, three times removed it was true, but still her cousin, and that held. Diana could not reconcile herself to the freedom of political attacks, and Caleb Trench's cool, unbiased criticisms of Eaton and his methods seemed to her to be mere personalities, and she had gone as far as quarreling with the colonel for asking him to call.

"I don't like his attack on Jacob, pa," she had said hotly; "he's no gentleman to make it!"

The colonel meditated, his eyes twinkling. "He's a good deal of a man though, Di."

And Diana had turned crimson, though she did not know why, unless she remembered suddenly her own impression of him in his little office, when the flare of the burning wood fell on his face. All these things made her angry and she had received him with an air that reminded Trench of the receipt for six cents, yet Diana was superbly courteous. Neither Mrs. Eaton nor Jacob appeared; they lived about three miles away, and Mrs. Eaton had refused absolutely to visit Cousin David on Sunday if he intended to entertain the lower classes. She had only a very nebulous idea of the political situation, but she thought that Trench had vilified Jacob.

But with the colonel Caleb was happily at home; even the colonel's slow drawl was music in his ears, and he liked the man, the repose of his manner, the kindly glance of his sad eyes, for his eyes were sad and tender as a woman's. Yet Colonel Royall had shot a man for a just cause thirty years before, and it was known that he carried and could use his revolver still. The fire of the old-time gentleman sometimes sent the quick blood up under his skin and kindled his glance, but his slow courtesy made him ever mindful of others. Sitting together, with the sun slanting across the lawns and the arch of the horse-chestnuts shadowing the driveway, Caleb told the colonel the story of his father's failure and, more lightly, something of his own struggles. Then he got down to reading law with Judge Hollis.

“A pretty costly business for you, sir,” the colonel said wickedly, and then laughed until the blue veins stood out on his forehead.

Caleb laughed too, but colored a little. “Juniper is an old rogue,” he said amusedly. “I should have bribed him to hold his tongue.”

Colonel Royall straightened his face and rubbed his eyeglasses on a dollar bill, which, he held, was the only way to clean them. “Lysander is the rogue,” he said, “and old Aunt Charity has been known to steal Juniper’s clothes for him to wear. She dressed him in Juniper’s best last year and sent him to the fair with all the money from her washing. Meanwhile the old man had nothing but his blue jeans and a cotton undershirt, and wanted to go to the fair, too. There was a great row. Of course Lysander got drunk and was sent up for thirty days in Juniper’s Sunday clothes. Lordy!” the colonel laughed heartily, “you could hear the noise down at the embankment. Juniper wanted a ‘divorcement’ and his clothes, principally his clothes. Judge Hollis and I had to fit him out, but he and Aunt Charity didn’t speak until there was another funeral; that brings niggers together every time; there’s a chaste joy about a funeral that melts their hearts.”

The colonel laughed again reminiscently, but Caleb, being a young man and human, was aware that Diana had crossed the hall again, and that she must have heard her father laughing at him. It was not long after this that he made his adieux, and he did not ask to see Miss Royall. The colonel walked with him to the gate and pointed out the magnificent promise of grapes on his vines.

“It will be a plentiful season, Mr. Trench,” he said, “and I hope a good harvest; let us have peace.”

Caleb understood the tentative appeal, and he liked the old man, but to a nature like Trench’s truth is the sling of David; he must smite Goliath. “Colonel Royall,” he said, “no man desires peace more than I do, but—peace with honor.”

Colonel Royall stood in the center of his own gateway, his thumbs in the armholes of his waistcoat, his white head bare. “Mr. Trench,” he said, “I understand that we are not to have peace.”

Thursday night Kitty Broughton gave her ball. Her father was dead, and Judge Hollis stood beside her mother to help Kitty receive her guests.

Everybody who was anybody in the city came out, and all Eshcol was there. Mrs. Eaton declared that it was the most mixed affair she ever saw, when she recognized Caleb Trench. She told all her friends not to allow any presuming person to present him to her, and in an hour she had made all the guests painfully aware that there was a black sheep in the fold. Then Kitty Broughton added fuel to the fire by dancing the first dance with him, and it was discovered, by all the girls present, that he danced exceedingly well, and quite as if he had always gone to entertainments. This surprised those who criticized Mrs. Broughton for asking him; yet not to have had him would have been to have the banquet without the salt. For Jacob Eaton was there, too, and though he wore an inscrutable face, it was exciting to wonder how he felt, and what would happen if they met?

Meanwhile, the dancing went on, and Mrs. Broughton had presented Trench to several of the young girls from the city, who admired his dancing, so he had partners; but he was aware of the frigidity of the atmosphere and he had not asked Miss Royall to dance. Instead, Diana had danced twice with her cousin and once with young Jack Cheyney, a nephew of the doctor. She was very beautiful. Trench looked across the ballroom at her and thought that no sculptured figure of nymph or dryad had ever excelled the beauty of her tall young figure, its slender but perfect lines, and the proud pose of her head. She wore a white brocade flowered with pink, like apple-blossoms, and Trench thought of her and the spring buds in his lonely office. The splendid diamond that shone like a star above her forehead reminded him of the wide divergence in their fates.

Judge Hollis found him and laid a fatherly hand on his shoulder. "Glad to see you out, Caleb," he said heartily; "a change will do you good. Mouldy old law-books and old men pall on a young fellow like you. I saw you lead off with Kitty. The minx is pretty and dances well. Have you asked Diana to dance?"

"No," said Trench; "Miss Royall has too many partners to accept another, I fancy."

"Better ask her," counseled the judge; "the lady is something of a tyrant. Don't get on her black books too early, sir; besides, courtesy demands it. Didn't she accept your care and hospitality?"

"She had to," said Trench dryly.

“Precisely,” smiled the judge; “now ask her to dance and give her the chance to say ‘no,’ then she’ll forgive you.”

“I fancy there are more things to forgive than that,” replied Caleb musingly; “Mrs. Eaton has let me feel the weight of my social position.”

“My dear boy, Jinny is the biggest cad in the world,” said the judge, drinking a glass of punch; “go and do as I tell you or I’ll drop your acquaintance. By the way, Caleb, how much are cockerels now?” and the old man’s laughter drew all eyes.

But it was after supper that, very much against his determinations, Caleb found himself asking Diana to dance. He has never known how it happened, unless it was the compelling power of her beauty in the corner of the ballroom when the music began again.

“May I have the honor?” he asked.

Diana hesitated the twentieth part of a second; it was almost imperceptible, but it sent the blood to the young man’s forehead. Then she smiled graciously. “With pleasure,” she said in a clear voice.

It happened that they swept past Eaton, her skirt brushing against him, and in another moment they were going down the old ballroom together. All eyes followed them and returned to Jacob Eaton, who was standing discomfited for an instant. It was only one instant; the next Jacob was more suave and smiling than ever, and an heiress from Lexington danced with him. However, in that one instant, his face had startled the groups nearest him. People suddenly remembered that it was said that Eaton carried firearms at all times, and was one of the straightest shots that side of the Mississippi.

Later, when Diana was driving home with her father, she spoke her mind. “I wish you’d make Jacob Eaton behave himself, pa,” she said; “he acts as if I belonged to him and he could choose my—my friends! I don’t like his manners up at Broad Acres, either; he said the other day that the cold grapery should be pulled down, and that he didn’t believe in owning a race-horse.”

Colonel Royall rubbed the back of his head thoughtfully; his eyes were troubled.

“His manners are becoming insufferable,” Diana went on, without heeding the silence.

“If he’s rude to you, Diana,” the colonel said quietly, “just say so and I’ll thrash him.”

“I sometimes wish you would!” she retorted wrathfully, and then, reaching up in the dim carriage, she patted the colonel’s cheek. “You’re an old dear,” she said fondly, “but you do get imposed on, and Jacob never does!”

## IX

DR. CHEYNEY'S old gig traveled up the hill just behind Mrs. Eaton's carriage, and both turned into the gateway of Broad Acres.

That was the morning after Kitty Broughton's ball. The doctor had not been there, having had a bad case on his hands in Eshcol, and he was full of excitement over a new review of the Cresset speech published in New York, in a great metropolitan daily. It seemed that Caleb Trench was going to be celebrated and old William Cheyney had championed him. He had the paper in his pocket and wanted to show it to Colonel Royall, but there was Mrs. Eaton, and when the doctor climbed down from his high seat she was already delivering her opinion to Diana and her father, and she did not suppress it on account of Dr. Cheyney.

"I can't imagine what has come over you, Colonel Royall!" that lady was saying with great indignation; "you must be out of your senses to allow Diana to dance in public with a common shopkeeper, a—a kind of hoodlum, too!"

This was too much for Dr. Cheyney, who shook with silent laughter; and there was a twinkle in Colonel Royall's eye.

"My dear Jinny," he said pleasantly, "have you lived all these years without knowing that it's Diana who bosses me?"

"I call it a shameful exhibition," continued Mrs. Eaton hotly. "I never have believed in mixing the classes—never! And to see my own cousin, and a young girl at that, dancing with that—that fellow! As far as it looked to other people, too, she enjoyed it."

"Did you, Diana?" queried Dr. Cheyney mildly, standing with his hands in his pockets, and a queer smile on his puckered old face.

"I did," said Diana, very red.

"Whoopee!" exclaimed the doctor, and went off into convulsions of laughter.



Mrs. Eaton's wrath passed all bounds. "At your age," she said loftily to Diana, "I should have been ashamed to confess it."

"I am," said Diana.

"I'm truly glad of it!" cried Mrs. Eaton.

"Let's get the stuffing out of it, Jinny," suggested the colonel mildly.

"I don't know what you mean," said Mrs. Eaton stiffly. "I should call that an extremely vulgar expression. I'm very glad that Diana is ashamed, and I only hope it will never occur again. In my day, young ladies of social prominence were careful who they danced with. I'm sure I can't see any reason for Diana dancing with Mr. Trench. Any one who reads that abominable speech of his at Cresset's can see, at a glance, that he's an anarchist."

"Don't you think that's going some, Jinny?" argued the colonel mildly; "you might have said socialist, and still been rather strong."

"I never could see any difference," retorted the lady firmly, settling herself in the most comfortable wicker armchair. "An anarchist blows up everything, and a socialist advises you to blow up everything; the difference is altogether too fine for me!"

"Just the difference between cause and effect, eh, madam?" suggested the doctor delightedly, "and all ending in explosion."

"Exactly," said Mrs. Eaton, with an air of finality. "Diana, why in the world did you dance with him?"

"Because you and Jacob didn't want me to," Diana replied calmly.

Both the old men chuckled, and Mrs. Eaton reddened with anger. "You are very unnatural, Diana," she said severely. "Jacob and I have your interests at heart. He didn't consider the man a proper person for you to be acquainted with!"

Diana opened her lips to reply, but the colonel forestalled her, anticipating trouble. "He's been my guest, Jinny," he remarked placidly.

Mrs. Eaton teased her head. "You'd entertain Tom, Dick and Harry for charity's sake, Cousin David," she retorted; "the first time I saw him here he brought six cents in change to your daughter."

“He’s honest, Mrs. Eaton,” said the doctor, twinkling; “he’s a Quaker.”

“I don’t know anything about Quakers,” she replied stiffly, “I never met one!” and her tone signified that she did not want to.

“Well, they’re not anarchists, Jinny!” observed the colonel; “perhaps, you’ve heard of William Penn.”

“I’m not quite a fool, David,” she retorted in exasperation.

Dr. Cheyney was enjoying himself; he had taken the rocker by the steps and was swaying gently, his broad straw hat on his knee. He took the New York paper out of his pocket and unfolded it. “Perhaps you’d like to read a review of the Cresset speech, madam?” he said amiably; “they’ve got it here, and they speak of Trench as a young lawyer who has suddenly roused a State from apathy.”

“Thank you,” said Mrs. Eaton, with overwhelming politeness, “you are too kind. Probably Diana would like to read it.”

Diana was rosy with anger, and her eyes sparkled. “Cousin Jinny, I don’t like the man any better than you do!” she declared, “and I detest and loathe that Cresset speech; I’ve breakfasted on it, and dined on it, and supped on it, until—until I hate the name of it!”

“Diana,” said Dr. Cheyney, “you’ll need those pink capsules yet!”

“I can’t see what you all admire in that man!” protested Mrs. Eaton irritably; “he keeps a shop and he goes to vulgar political meetings; if that isn’t enough, what is?”

“Why, the truth is, Jinny, that he’s a real live man,” said the colonel, putting on his spectacles to read the New York version of the Cresset speech.

“I prefer a gentleman,” said Mrs. Eaton crushingly.

Dr. Cheyney twinkled. “Madam,” he said superbly, “so do I.”

Colonel Royall, meanwhile, was following the speech, line by line, with his finger. Half-way down the column, he lowered the paper. “After all, he was advocating the Australian ballot,” he remarked thoughtfully.

“He wants to go to the people for the election of senators,” said Dr. Cheyney; “he doesn’t believe in our legislatures when the great

corporations are interested. Yes, I suppose he does like the Australian ballot."

"I should think he would," said Mrs. Eaton promptly; "I've always looked upon Australia as a penal settlement."

Dr. Cheyney shook with silent laughter again. "Madam," he said, "do you think him a possible ticket-of-leave man?"

"I am disposed to think anything of a man who can and does support Garnett Yarnall for governor," she replied frigidly.

Dr. Cheyney's face sobered suddenly, and Colonel Royall rustled the paper uneasily. After all, she had cause; a Yarnall had shot her husband. The two men felt it less keenly than Diana. She rose suddenly and offered her elderly relative her arm.

"Cousin Jinny, let's go and see my new rose stocks," she said mildly; "they've been set out in the south garden."

Mrs. Eaton rose, propitiated, and accepted Diana's arm, the two moving off together in apparent amity. Dr. Cheyney's eyes followed them, and then came back to meet the peculiar sadness of Colonel Royall's.

"Do you think she's—she's like—" The colonel's voice trailed; he was looking after Diana.

"No," said Dr. Cheyney sharply, "no, she's like your mother."

The wistful expression died in the other man's eyes, and he forced a smile. "You think so? Perhaps she does. Mother was a good woman, God bless her memory," he added reverently, "but a month ago"—he leaned forward, and the hands that gripped the arms of his chair trembled slightly—"a month ago I caught her looking at me; her eyes are hazel, and"—he avoided the doctor's glance, and colored with the slow painfulness of an old man's blush—"her eyes were just like her mother's."

Dr. Cheyney got up abruptly and laid his hand on his shoulder. "Wake up, David," he said sharply, "wake up—you're dreaming."

"I haven't breathed it to any one else, William," Colonel Royall said, "not in eighteen years—but I've seen it all the time."

His old friend eyed him grimly. "And it's frightened you?"

The colonel drew a deep breath. "William," he said, "do you know how a starving man would feel when he saw his last crust in danger?"

The old doctor paced the broad veranda; beside it a tree of heaven spread its graceful limbs, every branch still double tipped with the rosy leaves of its spring budding. Before him stretched the tender green of the south lawn, shaded by the grove of horse-chestnuts; beyond he caught a distant glimpse of the river.

"David," he said uncompromisingly, "Diana has a noble heart, but—Jinny Eaton is a fool."

"I know it," said the colonel thoughtfully, "but she's been a mother to the girl and she loves her."

"She wants to marry her to Jacob," snapped the doctor.

"I know it," said the colonel.

"He's not fit to tie her shoe," retorted the doctor. "Jacob's the slickest critter in the county, but I haven't got any more use for him than Caleb Trench has—if he is your cousin."

The colonel looked thoughtful. "He's very clever, William," he protested, "and he's very much in love."

"Fiddlesticks!" said the doctor.

Colonel Royall laughed a little in spite of himself. "You love Diana, too," he remarked.

"I do," said William Cheyney, "and I don't believe Jacob will make her happy. But, Lord bless me, David, you and I won't do the choosing—Miss Di will! In my opinion it won't be Jacob Eaton, either." Then he added briskly: "This young lawyer of ours is right about Aylett; he's a machine man and the machine is rotten. We want Yarnall; I wish you'd come to think so, too."

Colonel Royall thought, putting the tips of his fingers together. "The truth is, the Eatons are too near to me," he admitted quietly; "you know Jinny can't forget that a Yarnall shot her husband, and I don't know that I could ask it of her."

"Her husband was guilty," said the doctor flatly.

“I’m afraid he was,” admitted Colonel Royall, “though Mrs. Yarnall denied it; the jury justified Yarnall.”

“I can’t forgive one man for shooting another for an unworthy woman!” said the doctor fiercely, forgetting many things.

The slow red crept up to Colonel Royall’s hair. “I ought to have done it,” he said simply; “but—but I let him live to marry her.”

“Just so,” said William Cheyney; “solidly right, too; that’s purgatory enough for most of ’em,” he added, under his breath, as he took the long turn on the veranda.

Colonel Royall did not hear him; his head was bare, and the light breeze stirred his white hair; it had turned suddenly, twenty years before. “It would be against all precedent for any of the family to favor a Yarnall,” he remarked slowly.

“Jacob won’t,” said the doctor shortly, a dry smile crinkling the wrinkles around his kindly, shrewd old eyes.

“Nor would you, in Jacob’s place,” countered the colonel, tapping the floor with his stick.

A negro appeared promptly at the door.

“Two juleps, Kingdom,” he ordered.

Dr. Cheyney ceased his promenade and sat down. “This State’s got to be cleaned up, David,” he said maliciously; “we’ve got too much machine. I’m all for Trench.”

“I’m not sure I know what ails us,” objected the colonel humorously; “we’re either bewitched or hypnotized. In a fortnight we’ve set up Caleb Trench, and I reckon he’s more talked of than the volcano in the West Indies.”

“He will be later,” said the doctor; “there’s a man for you!”

“They say he began by getting hold of the backwoodsmen; they go down to his shop and discuss politics once a week; he organized them into a club and made them take a pledge to vote for Yarnall.”

“All rot,” said William Cheyney fiercely; “do you think the man’s a damned rogue? He’s talked straight politics to ’em, and he’s showed up some of the machine methods. By the way, David, he’s set his face against Jacob Eaton’s get-rich-quick games. I don’t believe in ’em myself; when that young bounder, Macdougall, came at me about them the other day in the bank, I told him I kept all my money tied up in a stocking. I reckon he thinks I do,” twinkled the doctor, “because I’ve nothing in their bank. David, I hope you’re not favoring Jacob’s schemes too heavily?”

Colonel Royall looked perplexed. Kingdom-Come had just brought out a tray with two tinkling glasses of iced mint julep, and he watched the white-headed negro set them out deftly on the little portable basket tea-table of Diana’s.

“How are you feeling, Kingdom?” Dr. Cheyney asked genially, eying the juleps.

“Right po’ly, Doctah,” Kingdom replied, showing his ivories, “but I manages ter keep my color.”

“Eh?” said the doctor, startled.

Kingdom-Come beamed. “But I’s got er mis’ry in my chest, an’ I reckon I’s got vertigo an’ congestion ob de brain; I hez dese er dizzy turns, suh.”

“Take some castor oil, Kingdom,” said the doctor, placidly stirring his julep, “and put a mustard plaster on your stomach.”

“Yass, suh, thank yo’,” said Kingdom, a little weakly. “I’s done took two doses ob oil this week, an’ I’s been rubbin’ myse’f wid some ob dis yer kittycurah.”

“Good Lord!” said Dr. Cheyney, “take a pint of whiskey and go to bed.”

“William,” said Colonel Royall, after Kingdom had gone, “I don’t see why you set your face so flatly against Jacob Eaton’s investments. Who has talked this up?”

“Caleb Trench,” said the doctor.

“Heavens!” ejaculated Colonel Royall, “is there no end?”

“To him?” Dr. Cheyney twinkled, “No, sir, not yet. He’s taken the packing out of Jacob; he says that more than half these countrymen vote with the

Eaton faction because they've put all their money in the Eaton Investment Company, and I'll be hanged, sir, if he doesn't state it fairly."

Colonel Royall got up and stood, a towering figure of a man, his blue eyes kindled. "William," he said hoarsely, "that doesn't sound honorable."

"David," retorted the old man uncompromisingly, "I tell the truth and shame the devil—I've got an eighty-mile circuit in this county, sir, and it's true!"

"Then, sir," said Colonel Royall, "this county's rotten."

William Cheyney leaned back in his chair and smiled quietly. "It's the same way in the State; the Eaton Company's offering bigger interest than any other company this side of the Mississippi; it hasn't cut its rate, even in the panic, and it's getting new investors every day—or it did till Caleb Trench got up at Cresset and cut the thing in two."

"Caleb Trench?" repeated the colonel slowly. "William, that young man's creating a sensation. I begin to doubt him; does he mean it, or is he bidding for notoriety?"

Dr. Cheyney smiled grimly. "David," he said, "you ask Judge Hollis; he believes in him and so do I."

"I don't know why I shouldn't believe in Jacob," said the colonel stiffly; "he's my own blood, and we might as well believe in one young man as another. What's the difference between them?"

"Well," replied the doctor slowly, "when I go into a grocery store and see one basket of eggs labelled 'Box eggs, fresh, thirty-two cents,' and the other basket, 'Hen's eggs, forty-five cents,' I'm kind of naturally suspicious of the box eggs. Not that I want to bear too hard on Jacob."

## X

MEANWHILE Jacob Eaton rode out with Diana in the early mornings, before even Dr. Cheyney had his breakfast. Jacob had no taste for sunrise or the lark, but if Diana rode in the first freshness of morning, he rode stubbornly beside her, more stubbornly than she cared to admit.

After all, Jacob was her third cousin, and the propinquity, with the close family relations which Mrs. Eaton jealously maintained, made him seem even nearer. Without liking him very much, Diana had tolerated his constant presence for so many years that it had become a habit. No doubt we could grow happily accustomed to a hippopotamus as a pet, if we could keep it long enough in our individual bathtubs. Usage and propinquity! How many recalcitrants have been reconciled to an unwelcome fate by these two potent factors in life!

Diana, riding up the hill through clustered masses of rhododendrons, was happily indifferent to Jacob at her bridle rein. Jacob was useful, rather pleasant to talk to, and paid her the constant homage of undisguised admiration. After all, it was pleasant to be with one to whom she meant so much. She could hold him lightly at arm's length, for Jacob was too wise to hazard all for nothing, yet she was aware that her lightest wish had its weight. It was only when he tried to assume the right of an elder brother to meddle with her affairs, as he had at Kitty Broughton's ball, that she resented his interference.

Jacob had, indeed, slipped into her ways with a tame-cattiness which, no matter how it accorded with his sleek appearance, was in direct contradiction to the character behind the mask. Diana, flouting him in her girlish coquetry, was but sowing the wind; if she married him later, she would reap the whirlwind, yet half her relations desired it. Thus wisely does the outsider plan a life.

Diana stopped abruptly and, bending from the saddle, gathered a large cluster of pink rhododendrons; the dew was on them still and it sparkled in the sunshine.



“Why didn’t you let me break it for you?” Jacob asked mildly; “sometime when you bend that way from your saddle you’ll lose your balance and—”

“Take a cropper,” said Diana. “I hope I shan’t break my nose.”

“Or your head, which would mean my heart,” he retorted.

She laughed; she was very charming when she laughed and, perhaps, she knew it. Diana was very human. “Which is harder than my head,” she said; “in fact, I have heard something of the nether millstone.”

“You would find it very brittle if you turned the cold shoulder,” said Jacob calmly, flicking the young shrubs with his crop.

“A piece of broken crockery,” mocked Diana; “you will have it mended when I marry some one else.”

“On the contrary,” he retorted, unmoved, “to quote the romancer: *‘Je vais me fich’ à l’eau.’*”

“What?” she questioned, with lifted brows.

“It’s French,” he explained.

“So I supposed,” replied Diana, “but not as I learned it.”

“Nevertheless it is forcible,” said Jacob; “it means, inelegantly, that I will pitch myself into the river.”

“Inelegant and untruthful then,” said she.

“I got it from a book,” he said, “a recent one, and famous. I am quoting the modern novelists.”

They had reached the crest of a low ridge, and through a growth of red cedars could see the flash and leap of the river. Diana drew rein and turned her face fully toward her companion.

“Jacob,” she said abruptly, “why did you give all that money to Juniper?”

Jacob smiled, his eyelids drooping; in the sunshine his clear smooth skin looked waxy, as though it would take the impression of a finger and keep it. “There’s an instance of my heart, Diana,” he said sententiously.

She studied him attentively. “Was it altogether that?” she demanded, the straight line of her brows slightly contracted.

“What else?” he asked lightly, leaning forward to break off a cedar berry and toss it away again. “Look here, Di, you’re down on me—what’s the matter?”

“I want to understand you,” she replied slowly; “fifty dollars is too large a sum to give all at once to a negro; you’ll corrupt a member of the church, a brand snatched from the burning. Juniper has experienced religion.”

Jacob laughed. “Been stealing chickens lately, I reckon.”

“No, it was Lysander,” corrected Diana demurely.

“The shopkeeper lawyer can defend him again,” said her cousin; “all the fools are not dead yet.”

“No, indeed,” she agreed, so heartily that he looked up quickly.

“I really meant to help the old nigger,” he said frankly; “he’s always begging, and he’s been sick and out of work. I’m sorry if you think fifty too much.”

Diana touched her horse lightly, and they moved on. “Too much at one time,” she said more gently. “He’ll spend it in an enormous supply of tobacco, watermelons and whiskey, and probably go to the workhouse. If he does, you’ll have to bail him out, Jacob.”

“Isn’t there a bare possibility that the watermelons might kill him?” he suggested meekly.

“A negro?” Diana laughed. “Jacob, why didn’t you give it to Aunt Charity?”

“She has, at present, purloined the silver teapot,” said Jacob; “my soul loves justice.”

She looked sharply at him, her young face severe. “I believe you had another motive. Are you sure that it was for his good, and only for his good?”

“Cross my heart,” said Jacob devoutly. “See here, Diana, why should I fritter away my substance? Of what use on earth could that old nigger be to me?”

She looked thoughtful. The horses moved on evenly abreast. “None that I can see,” she admitted honestly; “after all, it was good of you; forgive me.”

“After all, there is some good in me,” he replied, paraphrasing. “I’m worth noticing, my fair cousin!”

“When you come directly across the horizon!” laughed Diana.

Below them now was the highroad, and as they looked along the white bend of its elbow, below the ash and the young maples, they both saw the tall straight figure of Caleb Trench. He did not see them; he passed below them, and turned the shoulder of the hill. Diana said nothing; her eyes had reluctantly followed him.

“There goes a fool,” remarked her cousin, “or a knave.”

“Why is it,” asked Diana, “that a man, failing to agree with another, calls him names?”

He laughed, his cheek reddening. “Why should I agree with that shyster?”

“Why should that shyster agree with you?” she mocked, a light kindling in her clear eyes.

Jacob chuckled unpleasantly. “I hope you’ve never claimed that six cents again,” he commented; “he’s got your receipt, you know.”

It was her turn to redden. “You are jealous of his growing reputation,” she flung at him.

He shrugged a shoulder. “Of that beautiful speech at Cresset’s, in which he painted me as the devil and all his works?”

“I admired the Cresset speech!” she exclaimed, a sentiment which would have amazed Mrs. Eaton.

Jacob laughed. “So do I,” he said, “it was first-class campaign matter, but—well, Di, personal abuse is a little vulgar, isn’t it, just now?”

“Not if you deserved it,” she said defiantly.

“I’d take any amount if you’d promise not to dance with him again.”

“I’m the best judge of my partners,” said Diana, with indignant dignity; “if any one speaks it should be my father.”

“Aptly said,” he admitted suavely, “and the colonel is one in a thousand, but you wind him around your little finger.”

“You do not know Colonel Royall,” said Colonel Royall’s daughter, with just pride.

Jacob lifted his hat. “*Vive le Roi!*” he said.

She gave him an indignant glance. “You are a mocker.”

“On my soul, no!”

“Jacob,” said Diana, “your soul, like the rich man’s, may scarcely pass through the eye of a needle.”

“My dear cousin, my soul has been passing through it under your rebukes. What shall I do to please you?”

Diana rode on, her chin up. The path was narrow, and Jacob, falling behind, had only the privilege of admiring the long slim lines of her athletic young back, and the way she sat her horse. Beyond the cedars the path forked on the road, and he came up again.

“I am chastened,” he said; “shall I be forgiven?”

She laughed softly, then her mood changed. “Jacob,” she said, quite seriously, “you are sure that you’ll renominate Governor Aylett?”

“My dear Di, I am sure of nothing in this world but death,” he retorted dryly, “but I’ll be—”

“Cut it out, Jacob,” she cautioned, her eyes twinkling.

“I won’t have Yarnall!” he finished lamely.

She nodded. “I understand, but what is this about the backwoodsmen being organized?”

“Your friend, the shyster,” he mocked, “he has that line of politics; he speaks well on top of a barrel. I suppose he can empty one, too.”

“Not as easily as you could, Jacob,” she retorted ruthlessly.

He raised his eyebrows. “I’ve been in love with you these many years, and thus do you trample on my feelings!”

“I wish you had feelings,” said Diana calmly; “you have mechanism.”

“Upon my word!” he cried; “this is the last straw.”

“You should be a successful politician,” she continued; “you are a successful business man. Success is your Moloch; beware, Jacob!”

“I am willing to sit at the feet of the prophetess,” he protested. “I’ve served seven years, I—”

“Jacob,” said Diana, “don’t be silly. There’s Kingdom-Come at the gate; they are waiting to turn the omelet. Come!” and she galloped down to the high gateway, the rhododendrons clustering at her saddle-bow and the sunshine in her face.

Kingdom-Come grinned. “Fo’ de Lawd, Miss Di, I reckon yo’ clean forgot dat folks eats in de mawnin’.”

## XI

THE next morning Judge Hollis walked into Caleb Trench's little back room.

In the broad daylight the judge was a stately figure, tall, stout, white-haired, with a high Roman nose and a mouth and chin like a Spartan's. He always wore an old-fashioned, long frock coat, a high pointed collar and stiff black tie; in summer his waistcoat was white marseilles, with large buttons and a heavy watch-chain; he carried a gold-headed cane and he took snuff.

He found Trench in his shirt sleeves, plodding over some papers, his face flushed and his jaw set, a trick he had in perplexity. The judge eyed him grimly. "Well," he said, "what's the price of cockerels to-day?"

Trench, who had not noticed his entrance, rose and gave the old man a chair. "To-day I'm figuring out the price of men," he replied; "every single investor in the Eaton Land Company has been notified—in one way or another—that only Aylett men are to go to the Democratic Convention."

The judge whistled softly.

"It's true," said Trench, throwing back his head with a peculiar gesture of the right hand that was at once characteristic and striking. "I'm ashamed for you Democrats," he added.

The judge squared his massive shoulders and gripped his gold-headed cane. "You young black Republican agitator," he retorted bitterly, "produce your evidence."

Trench brought his palm down sharply on his desk. "It's here," he said; "Aaron Todd has been threatened, but he did not put in his last savings and is standing firm; the rest are like frightened sheep. Because I pointed out this lever in my Cresset speech they seem to think it's a fulfillment, and they've poured in on me to-day to beg me to get their investments out for them! Meanwhile the company has declared that no dividends will be paid until after election, neither will they refund. If I carry the cases into court against Eaton, he'll take advantage of the bankruptcy law. The investors in

the country are frightened to death, and they'd vote for Satan for governor if they thought it would insure their money. Yarnall's an honest man, but there are fifty hand-bills in circulation accusing him of everything short of arson and murder. That's your Democratic campaign."

"And your Republican one is to stir up the niggers," thundered the judge. "Peter Mahan's been out in the Bottoms speaking to ten thousand blacks! By the Lord Harry, sir, I wish they were all stuffed down his throat!"

Whereat Caleb Trench laughed suddenly. "Judge," he said, "if Peter Mahan could be elected, you'd have a clean straight administration."

"He can't be, sir," snapped the judge, "and I'm glad of it!"

"You'll be sorry," Trench remarked calmly, "unless you nominate Yarnall."

"I'm for Aylett," the judge said soberly. "I shall vote for Aylett in the convention; Yarnall will split the party. That's what you want, you young cub!"

Caleb smiled. "I'm interested to know how much money it will take to nominate Aylett," he said; "you're for Aylett, judge, but you're not strong enough to defeat Yarnall."

"Neither are you strong enough to nominate him," said the judge sharply. "You look out for the blood feud, Caleb; these fellows behind Jacob Eaton haven't forgotten that the Yarnalls drew the last blood. They're mighty like North American Indians, and your Cresset speech stirred up a hornet's nest. I'm for Aylett and peace."

Trench folded the papers on his desk reflectively. "I can't make out Jacob Eaton," he said.

The judge chuckled. "He's a mighty queer package," he said grimly, "a cross between a mollycoddle and a bully. Jinny Eaton raised him in jeweler's cotton for fear he'd catch the measles, and he went to college with a silver christening mug and a silk quilt. When he got there he drank whiskey and played the races, and some poor devil, who was working his way through college, coached him for his exams. He got out with a diploma but no honors, and enough bad habits to sink a ship. Then Jinny introduced him to society as the Model Young Man. He's been speculating ever since, and he's got the shrewd business sense that old man Eaton had. He doesn't

care two cents for Aylett, but he's going to fight Yarnall to the knife. He—What the devil's the matter with Zeb Bartlett?" the judge suddenly added, stooping to look out of the window. "He's been walking past the front door, back and forth, four or five times since I've been sitting here, and he's making faces until he looks like a sculpin."

Trench laughed grimly. "He does that at intervals," he replied, "because I won't lend him a dollar to get tipsy on."

The judge grunted, his head still lowered to command a view of the shambling figure of the idiot. Then he rose suddenly and went to the window, thrusting his hand into his pocket. "Here, Zeb!" he shouted, in his stentorian tones, "take that and get drunk, and I'll have you arrested," and he flung out fifty cents.

Bartlett groveled for it in the dust, found it and grinned idiotically. Then, retreating a few steps, he looked back and kissed his hand, still gurgling. The judge watched him out of sight, then he sat down and took snuff. "Don't let that fool hang around here," he said sharply; "it will get a crank into his head and the Lord knows how it's going to come out. Give him a quarter and let him go."

"I won't," said Caleb dryly. "I'd rather give it to his grandmother; she'll need it."

"To be sure," said the judge ironically, "and she'd give it to him with a dime on top of it; that's a woman down to the ground. If there's anything worthless within a hundred miles, they'll adore it!"

As he spoke, there was a rustle in the outer shop and Miss Sarah suddenly thrust her head in the door. She always wore the most extraordinary bonnets, and the one to-day had a long green plume that trembled and swayed behind her head like the pendulum of an eight-day clock.

"Judge," she said, "I wish you'd get up and go home. It sounds rude, Caleb, but he's always insisting on dinner at one o'clock sharp, because his grandmother had it, and he's never there until the roast is overdone or the gravy is spoiled! Besides, I'm alarmed; I've discovered something about Juniper." Miss Sarah came in and shut the door and put her back against it, her air conveying some deep and awful mystery. "He's got fifty dollars."



The judge brought down his heavy brows over his high nose in a judicial frown, but his eyes snapped. "What's the nigger been up to?" he asked calmly; "been negotiating law business for him, Trench?"

Caleb shook his head, smiling.

"He's been stealing," said Miss Sarah with conviction.

"Think likely," said the judge, "but from whom? Not me, Sarah; if it had been from me it would have been fifty cents."

"I never thought it was from you," she retorted scornfully, "but I've hunted the house over to see if he could have pawned anything and—"

The judge brought his hand down on his knee. "The silver teapot, Sarah!"

She shook her head. "Aunt Charity's got it; she gave a supper last night and they had their usual fight and she locked him out. He sat on the step all night and came to our house for something to eat; then he showed the fifty-dollar bill. Of course he stole it."

The judge meditated, looking grim.

It was Trench who made the suggestion. "Isn't that rather large for campaign money?" he asked mildly.

The judge swore, then he got up and reached for his hat. "I'll make him take it back," he said viciously.

"Take it where?" demanded Miss Sarah vaguely.

"To Ballyshank!" retorted the judge, jamming his hat down on his head.

They all emerged into the outer room just as Miss Royall appeared in the shop-door. She was dressed in a pink muslin with a wide straw hat trimmed with pink roses, and looked like a woodland nymph. The judge swung off his hat.

"We've been having a political tournament," he said, "and now comes the Queen of Love and Beauty."

Diana liked the old man and smiled her most charming smile. Miss Sarah went up and pecked her cheek, a rite that elderly ladies still like to perform in public. Trench, longing to play the host but too proud to risk a rebuke, bowed silently. Something in Diana's eye warned him that she was minded

to make him repent the dance she had given him; the scoldings she had received were rankling in her mind. Unhappily, too, something in the judge's manner said, "So ho! is this a flirtation?" Her cheeks burned.

The judge blundered. "Let me offer a chair," he said, with old-fashioned courtesy, "then we will ask you to help us solve a riddle of Sarah's. She has found that Juniper is unusually rich, a kind of ebony John Jacob Astor, the proud possessor of fifty dollars."

Diana declined the chair. "Juniper?" she repeated. "Oh, yes, I know all about it!"

"Did he steal it from you, dear?" Miss Sarah asked excitedly.

"Jacob Eaton gave it to him," Diana replied simply, "he thought he needed it; he's been out of work, and you know what a nuisance Lysander is."

"But fifty dollars, my dear!" protested Miss Hollis faintly.

Diana caught the glances between the judge and Trench and stiffened. "My cousin is generous," she said.

The judge took snuff.

Poor Caleb fell into the snare. "Miss Royall, do sit down," he urged, pushing forward the chair.

Diana's chin went up; her eyes sparkled. "Thank you, I only came for that bolt of pink ribbon," she said grandly, indicating it with her parasol, and then, opening her purse, "How much is it?"

"It's sold," said Trench, and shut his lips like a steel trap.

Diana turned crimson. "Oh," she said, then she swung around and drew her arm through Miss Sarah's thin black silk-clad elbow, that was like the hook of a grappling iron. "I think you were going?" she cooed.

The old lady hesitated, confused. "I—I—" she began.

"Here's the carriage," said Diana sweetly, and drew her out of the door; "there's room for you, judge," she called back, not even glancing at Trench.

"I'll walk," said the judge, "I'm a young man yet; don't you forget it, my girl!"

Diana laughed. "The youngest I know, in heart," she said, and waved her hand as they drove off.

The judge looked at Caleb soberly. "You've done it, young man," he said quietly.

A slow painful blush went up to Caleb's hair. "So be it," he said bitterly. "I'm human and I've borne all I can," and he turned away. "My God!" he added, with a violence so unusual and so heartfelt that it startled the judge, "does that girl think me the dirt under her feet because I've sold ribbon? I'm a gentleman; I'm as well-born and as well-bred as she is, but she won't recognize it—more than half an hour. One day she's—she's an angel of courtesy and kindness, the next she insults me. She and Eaton have made my life here a hell!" He clenched his hands until the nails bit into the flesh.

"She's young," said Judge Hollis slowly, "and ill advised."

Trench struggled to be calm; his face paled again, the light died out of his eyes. "Let her leave me in peace!" he cried at last.

The judge drew a pattern on the floor with his stick. "She admires you immensely," he said deliberately, "and she respects you."

Trench laughed bitterly.

The judge put on his hat again and held out his hand. "I'll give you the odds on the money, Caleb," he said, "but I'd like to know—by the Lord Harry, I'd like to know—what Eaton's buying niggers for at this late date?"

He got no answer. Caleb's face was as set as flint.

## XII

SOMETIMES early in the morning, and often at evening, Caleb Trench took long walks alone with his dog. It was after sunset, in the sweet long twilight of July, that he came up through the woods behind Colonel Royall's place, and approached the long elbow of the road, shadowed by the tall walnuts and hickories, and clothed here and there with the black-jack oak. Before him lay the beautiful valley. He could see the curl of the mist below Paradise Ridge, and beyond, the long gray folds of the distant mountains. He looked up toward the beaten trail that led to Angel Pass, and he could perceive the fragrance of wild magnolias.

Shot, who was running ahead, stopped suddenly and stood at attention, one shaggy ear erect. Then Caleb saw the gleam of a white dress, and Miss Diana Royall appeared, walking toward them. Over her head the green boughs locked, and in the soft light she had a beauty that seemed to Trench more than the right of a girl so apparently heartless. He would have passed by the other road, merely raising his hat, but she called to him.

"Good evening, Mr. Trench," she said, with that bewitching little drawl of hers, which made her voice almost caressing and deceived the unwary. "Your dog remembers me more often than you do."

Caleb's face stiffened. Oh, the mockery of women! "I remember you more often than you remember me," he replied courteously.

Diana bit her lip. She had not expected this, and she hated him for it; yet he had never looked so strong and fine as he did to-night. In the soft light the harsh lines were softened, the power remained, and something of sweetness in the eyes. "Oh," she said, "have I ever failed to remember you?"

Trench made no direct reply, but smiled. Something in her way, at the moment, was very girlish, the whim of a spoiled child. She had been gathering some ferns, and she arranged them elaborately, standing in the path. His attitude vexed her, his manner was so detached; she was accustomed to adulation. She swept him a look from under her thick dark

lashes. "I remember dancing with you at Kitty Broughton's ball," she observed.

"You were very kind," he replied at once, "I remember it, too; you danced with me twice."

"Because I promised to dance if you asked me; I promised Judge Hollis," she said demurely.

"But the second?" Caleb was human, and his heart quickened under the spell of her beauty. "I hope that was on my own account."

"The second?" Diana rearranged the ferns. "I danced then because my cousin did not wish me to," she said.

Trench reddened. "I am sorry that you felt compelled to do it—twice," he said involuntarily, for he was angry.

"You are very rude," replied Diana, unmoved.

"I beg your pardon," he said stiffly, aware that he had been foolish and lost his temper; "pray forgive me."

"It's a matter of no consequence," she said sweetly.

His heart was filled with sudden wrath. Why need the girl be so brutal? He did not know that Diana had been goaded by Mrs. Eaton and Jacob until she was beyond reason; besides, his manner, which defied her, was like tossing the glove at her feet. He had no appreciation of her condescension, and he did not bear her flouting with meekness. Yet, all the while, his strength and his repose made him immeasurably more interesting than the young men of her acquaintance, which, of course, was another reason to be unreasonable.

"I did not see you at the Wilton-Cheyneys," she said agreeably, pressing the ferns against her cheek.

"Quite naturally," he replied coolly; "I was not asked."

"Oh!"

There was a silence. The sweet soft twilight seemed to enfold them with a touch like velvet; a Bob White whistled once in the stillness.

"Miss Royall."

She looked up with her soft little smile, but his face froze it on her lips. He looked stern and cold. "Yes?" she said, faintly startled.

"Why do you say such things to me? You know that I'm not asked, that I'm an outsider. A poor Yankee shopkeeper, I believe your set calls me; I do not know. Certainly I do not care; a man must live, you know, even out of your class. I have a right to live. I also have a right to my own pride. I am a gentleman."

They stood looking at each other, the width of the woodland path between them, and that indefinable, impalpable thing which is neither sympathy nor antagonism but which, existing once between two souls, can, never be forgotten,—a white flame that burns at once through all barriers of misunderstanding, the divine spark of a love that is as far beyond commonplace passion as the soul is above the body that it must leave forever. The man felt it and bowed reluctantly before it; the girl struggled and resisted.

"If I did not know that you were," she said, as quietly as she could, "I would not be here talking to you now. I'm afraid you think me very ill mannered. The last was really thoughtlessness."

He looked at her relentlessly. "But the first?"

She blushed scarlet. "I—I did not mean it."

His eyes still searched her, but there was no tenderness in them; they were cold and gray. "That is not quite true, Miss Royall."

Diana winced; she felt ten years old and knew it was her own fault. "I think it is you who are rude now," she said, rallying, "but"—it choked her, she held out her hand—"let us be friends."

He shook his head slowly. "No," he said, "that can't be until you are sure I am your equal. I've picked up crumbs long enough, Miss Royall,—forgive me."

She experienced a curious feeling of defeat, as her hand dropped at her side. She was angry, yet she admired him for it. She remembered that night when he brought the hateful six pennies and she had behaved disgracefully. Would he always put her in the wrong? "I am sorry," she said haughtily; "I was offering you my friendship."

He smiled bitterly. "Were you, or mocking me with it?"

"Mr. Trench!"

"Forgive me," he said, in a low voice, but with less self-control, "I came here a poor man; it was necessary to make my bread, and I would have swept offices to do it. I asked nothing and I received"—he smiled with exceeding bitterness—"nothing. Then, unhappily, Judge Hollis found out that I was well-born; he told a few people that I was a gentleman. It was a serious mistake; I have been treated like a dog ever since." He was thrashing the wayside brush with his stick, and unconsciously beheaded a dozen flowers; they fell at Diana's feet, but neither of them looked down. "I do not wish to force myself upon your acquaintance, Miss Royall," he went on, the torrent of pent-up passion unspent. "I understand the reason of your condescension at the ball, but couldn't you have found a more agreeable way to chastise your cousin? I must have been insufferable?"

The intensity of the man's wounded pride had forced itself upon Diana; she was crimson with mortification, yet she understood him—understood him with a temperamental sympathy that sent a thrill of alarm through her consciousness. "I never knew before how very bad my manners were," she said simply.

He turned and looked at her. All that was womanly and beautiful in her face was crystallized in the colorless atmosphere; her eyes dwelt upon him with a kindness that was at once new and wholly unbearable. "I'm a cub!" he retorted harshly; "how you must hate me!"

"On the contrary," she said very sweetly, "I like you."

Their eyes met with a challenge of angry pride, then a whimsical smile quivered at the corners of her mouth, and she clasped her hands innocently over her ferns. "When you begin to like me we shall be friends," she said.

There was an instant of awkward silence, and then they both laughed, not happily, but with a nervous quiver that suggested hysterical emotion.

"I do not know when I began—to dislike you," he said.

"I deserved it from the first, I fancy," she retorted, hurrying on with her determination to show her repentance; "I have behaved like a snob."

He did not reply; he stooped, instead, to pick up the flowers that he had broken. "My mother would never step on a flower or leave it to die in the road," he explained simply; "whenever I remember it I pick them up. As a boy I recollect thinking that there was some significance in it, that I must not leave them to die."

Diana looked at him curiously, from under her lashes. What manner of man was he? "It is a sweet thought," she said, "in a woman—a tenderness of heart."

"Her heart was as tender as her soul was beautiful," said Caleb Trench; "she died when I was twenty years old."

Diana held out her hand. "Will you give me the flowers?" she asked simply.

He gave them with a slight flush of surprise. "They are poor and broken," he apologized lamely.

"I see that you think I have neither a heart nor a soul," she replied.

He smiled. "I do not let myself think of either, Miss Royall," he said; "I fancy that a wise man will always avoid the dizzy heights, and even a foolish one will see a precipice."

Diana was silent; that she understood him would have been apparent to the initiated, for her little ears were red, but the proud curve of her lips remained firm and the steady glance of her eyes rested on the darkening valley. The hills had purpled to gray, the sky was whitening, and in the west the evening star shone like a point of flame.

Out of the stillness her voice sounded unusually soft and sweet. "I'm going to have some friends to tea to-morrow afternoon, Mr. Trench," she said; "will you come?"

"No," he replied, and then added: "Pardon me, that seems discourteous, but I am not going out again here, Miss Royall."

Almost involuntarily she smiled. "We are playing the game of tit-for-tat, Mr. Trench, and you've won."

"I have been a bear," he replied, "but—Miss Royall, it's growing dark; let me take you home."



“I am waiting for my cousin,” she replied, and then blushed hotly. “I promised to wait five minutes,” she explained hastily, “while he talked to Mr. Saxton at the farm. I suppose it’s politics; we’ve been here long enough to quarrel three times.”

Trench assumed her engagement to Jacob Eaton and would not offer his escort a second time. “I am taking the dog through the woods,” he said; “shall we walk as far as the farm gate?”

Diana laughed merrily. “I never went in search of a lost knight in my life,” she said. “I’m going on; it’s quite light and beautiful yet—good evening.”

Trench swung around. “I will go with you,” he said at once, “if you will permit me.”

But at that moment Jacob Eaton came up. As he recognized Trench, he stopped short and stared. Then he joined Diana without acknowledging her companion. “Sorry to keep you waiting,” he said, “but the old fool was deaf. We may as well go on, Diana.”

But Diana stood still. “This is Mr. Trench,” she said.

The two men looked at each other. Eaton had just heard more of what Caleb Trench thought of the Land Company, but he knew Diana.

“How d’ye do,” he said curtly.

Trench made no reply. Diana gathered up the soft white folds of her skirt and took two steps away. “Good-night, Jacob,” she said sweetly, “Mr. Trench will see me home. Tell Cousin Jinny I’ll bring over the terrapin recipe in the morning.”

Jacob said nothing, and Trench whistled to Shot. The dog came bounding and followed his master and Miss Royall down the path.

Jacob stood stock-still and regarded what seemed to him the beginning of miracles. Was it possible that Diana was in open rebellion against society? That Diana should be in open rebellion against him was not amazing. She was wont to let him know that he was a mere speck on the horizon, but that he regarded as pretty coquetry, and of no consequence, because he intended to marry Diana. But that Diana should, a second time, prefer Caleb Trench to him was beyond belief, and that she should do it after certain revelations that he had just heard, was adding insult to injury, for Jacob had suddenly

found that the poor Yankee shopkeeper lawyer was a foe worthy of his steel. He remained a long time motionless, his heavy lids drooping over his eyes and his brows meditative. He was, after all, a gentleman of resources, and it was merely a question of how to use them.

## XIII

IT was midnight and storming hard when Dr. Cheyney stopped at Caleb's door. Trench heard the wheels and opened it as the old man climbed down from his high buggy.

"Caleb, I've come for brandy; got any?" the doctor said briefly, coming in with his head bent in the rain; his rubber coat was drawn up to his ears, and the tails of it flapped against his thin legs.

Trench had been reading late, and there was a fire in the stove in the kitchen. "Go in and get dry a moment, Doctor," he said, "while I get brandy. It's no night for you, and at this hour too; your friends must remonstrate."

"Damn it, sir, am I not the doctor?" said the old man, lowering.

"You're that and something more, I take it," Caleb replied, smiling.

"More?" Dr. Cheyney was out of temper. "Nay, nay, I'm just a plain doctor, and I can take care of both your big toes. These new-fangled ones can't, sir, that's all! It's the fashion now to have a doctor for your nose and another for your toes and a third for your stomach. Very good, let 'em! I do it all and don't get paid for it; that's the difference."

"They do," said Caleb, producing a flask of brandy.

The doctor took it and thrust it deep into his big outside pocket. "I'll pay you when I get ready," he said dryly.

Trench laughed. He heard the swirl of the rain against the window-panes; it was nearly as bad as the day he had sheltered Diana. He looked keenly at the worn little old man and saw the streams of water that had streaked his coat. "I have a great mind to shut you up and keep you all night," he remarked.

"For a ransom?" said the doctor grimly; "you wouldn't get it. Caleb, that poor girl, Jean Bartlett, is dying."

Trench was startled. "I didn't know she was ill," he replied; "Zeb came here and whined for money when the grandmother died so suddenly, but he said

nothing of Jean.”

“He never does,” said Dr. Cheyney, “the young brute!”

“Are you going there now?” Caleb asked.

“Yep,” replied the doctor briefly; “I wanted more brandy, for I’m like to catch my death, but I must be about,—she’s dying. She may pull through until morning. Pneumonia—a cold that last bad storm. She lay out in the field half the night. She’s done it a hundred times when they harried her; this time it’s killed her. She’s not twenty.”

Caleb reached for his hat. “I’m going with you,” he said simply.

Dr. Cheyney threw him one of his shrewd looks. “Afraid to trust me alone in the wet?” he asked dryly.

Caleb smiled. “To tell you the truth I was thinking of Sammy. The poor little dirty beggar appeals to me, he’s thoroughly boy, in spite of his curious clothes, and Zeb is a drunken brute.”

The doctor grunted and went out, making room for Caleb at his side in the buggy. “I’m going to send Sammy to St. Vincent’s,” he said.

“Poor Sammy!” said Caleb.

The doctor clucked, and old Henk moved off, splashing through muddy water up to his fetlocks. The road was dark, and the doctor had swung a lantern between the back-wheels, a custom dear to rural communities; it swung there, casting a dismal flare under the buggy, which looked like a huge lightning-bug, with fire at its tail.

“Good enough for him!” continued the doctor bluntly, referring to Sammy and the foundling asylum.

“Plenty,” assented Caleb, unmoved.

This angered the doctor, as Caleb knew it would.

“Little brat!” growled William Cheyney fiercely, “what was he born for? Foundling asylum, of course!”

“Of course,” agreed Caleb, and smiled in the darkness.

“Damn!” said the doctor.

They traveled on through the night; the wind swept the boughs down, and the rain drove in their faces even under the hood.

“I can’t take him, drat it!” the old man broke out again fiercely. “I’ve boarded for sixty years; women are varmints, good women, I mean, and the Colfaxes wouldn’t take Sammy for a day to save his soul; he’s a child of shame.”

Caleb laughed silently; he felt the doctor’s towering wrath. “After all, wouldn’t it be a purgatory for a small boy to live with the Colfaxes?” he asked.

“Yep,” said the doctor, “it would. Miss Maria pins papers over the cracks in the parlor blinds to keep the carpet from fading, and Miss Lucinda dusts my office twice a day, for which she ought to be hung! I reckon they’d make divided skirts for Sammy and a frilled nightgown.”

“There are the Children’s Guardians in the city,” suggested Caleb thoughtfully.

“There’s the Reform School,” retorted the doctor biting.

Meanwhile old Henk traveled on, gaining in speed, for part of the road was on his way home and he coveted the flesh-pots of Egypt. The splashing of his feet in the mire kept time with the sob of the gale. Nearer and nearer drew the light in Jean Bartlett’s window.

“I told the Royalls she was dying,” Dr. Cheyney said, “and to-day Diana was there. She sat with her an hour and tried to quiet her. Jean was raving and, at last, I ordered the girl away; she’d no business worrying in such a scene as that; then she told me she would take Sammy! She—Diana!” the old man flung out his free hand and beat the air, “that girl! I wanted to shake her. Yet, it’s like her; she’s got heart.”

Caleb Trench, sitting back in his corner, summoned up a picture of the old man and Diana, and could not quite reconcile it with the Diana he knew. “You did not shake her,” he said; “what did you do?”

“Sent her home,” said the doctor bluntly, “drat it! Do you think a girl of her age ought to start a foundling asylum for charity’s sake? I told her her father would have her ears boxed, and she laughed in my face. David Royall worships her, but, Lordy, not even David would tolerate that!”

A low bough scraped the top of the carriage and they jogged on. Presently, old Henk stopped unwillingly and they got down, a little wet and stiff, and went silently into the house. It was stricken silent, too, except for the ticking of a clock in the kitchen, and that sounded to Caleb like a minute gun; it seemed to tick all through the house,—the three small rooms below, the rickety stairs and the attic above. There was a light in the kitchen, and there, on top of some old quilts in a packing box, lay Sammy asleep.

In the room beyond the kitchen, in the middle of the great, old-fashioned four-poster, that was worn and scratched and without a valance, lay Jean Bartlett. Her fair hair streamed across the pillow, her thin arms lay extended on either side, her chin was up, she lay as if on a cross, and she was dead.

From the far corner rose the woman whom the doctor had left to watch her. “She’s just gone, doctor,” she said laconically, without emotion.

Dr. Cheyney shot a look at her from under his eyebrows, and went over to look at Jean. The light from the poor little lamp fell full on her thin small-featured face and showed it calm; she was as pretty as a child and quite happy looking.

“Thank God!” said the doctor, “that’s over. Where’s Zeb?”

“Up-stairs, drunk,” said the woman; “if it warn’t raining so hard I’d go.”

The doctor looked over his spectacles. “Then you’ll take the child along,” he said gravely.

“That I won’t!” said she, “I’ve children of my own. I won’t have none such as him.”

“Oh, you won’t?” exclaimed the old man.

“I thought you’d take him,” said she, reddening.

“There are two women folks up at the house,” said the doctor dryly; “being a nameless child—out he goes!”

“Well, I don’t care,” said the nurse fiercely, “I feel so myself; there’s the foundling asylum.”

“He’ll fall on the stove here in the morning,” remarked the doctor.

The woman shut her mouth.

“Zeb’s drunk,” the old man added.

“I won’t take him,” she said flatly; “if I do, nobody’ll take him away. It’s the same with a baby as it is with a stray kitten, once you take it you keep it. I ain’t goin’ to take Jean Bartlett’s brat.”

“Don’t!” snapped the doctor, “for of such is the kingdom of heaven!”

Then he went out, turning his collar up again to his ears. “I’m going for the undertaker, Caleb.”

They stopped as he spoke and looked down at Jean’s boy. He lay with his arm across his face; he had not been undressed and one foot hung pendent in a forlorn and heelless shoe.

“The end of the drama,” commented the doctor dryly, “the sufferer.”

Caleb stooped down and gently lifted the sleeping child; he wrapped the old quilt about him, and bore him to the door. The doctor followed, then he reached over and put his hand on the latch.

“What are you doing?” he asked sharply.

“I’ve taken him,” said Trench calmly; “open the door.”

“You’ve no one to care for him.” Dr. Cheyney eyed him keenly.

“No,” he replied; “so much the better, the place is lonely.”

“You know what they’ll say?”

The young man’s face stiffened. “What?”

“That he’s your child,” said the doctor.

“Open the door,” said Caleb Trench.

The doctor opened it, then Trench stood straight, Sammy’s tousled head on his shoulder.

“Dr. Cheyney,” he said sternly, “if every stone in Paradise Ridge rose up to accuse me, I’d still do as I pleased.”

William Cheyney smiled grimly. “I believe you would,” he said, “but let me tell you, Caleb, you’ve got your fate by the forelock now!”

Yet he helped Trench put the sleeping child into the carriage, and as they did it a new sound gurgled into the night, the voice of the tippler in the attic, who had been shut up there alone and frightened, but was sipping and sipping to keep up his spirits. Now he sang, one kind of spirits rising as the other kind went down. And the song that followed them through the night, as they drove away from the house of death, with the nameless child between them, was “After the Ball.”

“The Lord forgive us!” said the doctor musingly; “it’s ‘after the ball’ with most of us, and then the straight house! G’long with you, Henk!”



## XIV

JUNIPER'S spouse, Aunt Charity, was in the habit of sweeping out Caleb's office and washing his windows, and the morning after Jean Bartlett's death was her morning for scouring the premises. She was a stout old woman, nearly black, with a high pompadour, the arms and shoulders of a stonemason, and "a mighty misery" in her side. She stopped five times in the course of sweeping the inner office and stood, leaning on her broom, to survey the bundle of indiscriminate clothes on the floor, which was Sammy.

The transfer had disturbed him so little that, after his first screams of surprise, he had renewed his insatiable demands for pennies, and having one clasped tightly in either fist he sat in the middle of the floor viewing the world in general, and Aunt Charity in particular, with the suspicion of a financier. On her side, suspicion was equally apparent.

"Fo' de Lawd!" she said, and swept another half yard, then stopped and viewed the intruder. "Fo' de Lawd!" she said again.

Sammy heard her and clasped his pennies tighter; he read enmity in her eye and doubted. Aunt Charity swept harder, her broom approaching the rear end of Sammy's calico petticoat. "Git up, yo' white trash, yo'," she commanded, using the broom to emphasize her order.

"Won't!" wailed Sammy, "won't! Shan't have my pennies!"

"Git up!" said Aunt Charity; "w'at yo' heah for, ennyway?"

"Yow!" yelled Sammy, wriggling along before the broom and weeping.

On this scene entered Caleb Trench, grave, somewhat weary, and with a new stern look that came from a night's wrestle with his own will. "What's all this, Aunt Charity?"

"Ain't noffin," said she aggressively; "I'se sweepin'. I ain't doin' noffin an' I ain't gwine ter do noffin to dat pore white trash."

"Yes, you will," said Caleb calmly; "you'll give him a bath and put some decent clothes on him."

“N-o-o-o-o-o!” shrieked Sammy.

“’Deed I ain’t!” retorted Aunt Charity, with indignation. “Ain’t dat Jean Bartlett’s chile?”

Trench nodded, looking from the old black woman to the small aggressive bundle on the floor. Aunt Charity tossed her head. “I ain’t gwine ter touch him!”

A sudden fierce light shone in Caleb’s gray eyes, a light that had a peculiarly quelling effect on the beholder. Aunt Charity met it and cowered, clasping her broom. “You’ll do what I say,” he replied, without raising his voice.

“Fo’ de Lawd!” gasped Aunt Charity and whimpered; “yo’ sho ain’t gwine ter keep dat chile heah?”

“And why not?” asked Caleb.

“Lawdy me, suh, ain’t yo’ gwine ter know w’at folks’ll say? Dere’s gwine ter be a talkation.”

“Very likely, poor little devil!” Caleb retorted grimly, “and your tongue to help it, but you’d better hold it, Charity; you’re here to do what I want—or to go elsewhere, see?”

“Yass, suh,” she replied hastily, “I’s gwine ter do it, but I sure wishes yo’d let me take de chile where he b’longs.”

“Where he belongs?” Caleb turned sharply.

“I ain’t sayin’,” cried Aunt Charity, thoroughly frightened, “I ain’t saying —” Then she stopped with her mouth open, for she had seen the figure in the outer room that Caleb did not see.

Her look made him turn, however, to come face to face with Jacob Eaton. He went out and closed the door on the inner office sharply, not conscious that Aunt Charity promptly dropped on her knees and put her eye to the keyhole.

Meanwhile, the two men measured each other with peculiar enmity. Jacob thrust his hands into his pockets and stood smiling, a smooth face but not a pleasant one.

“I came to see you on a matter of business,” he drawled, “but I’m afraid I disturb you.” He had seen the scene in the inner room.

Caleb’s height was greater than his, and he looked down at him with an inscrutable face; his temper was quick, but he had the rare advantage of not showing it.

“I am quite at leisure,” he said coldly, without the slightest attempt at courtesy.

“I had the pleasure of reading your Cresset speech,” said Jacob amusedly, “and I regret that I didn’t hear it. I congratulate you, it was excellent reading.”

Trench looked at him keenly. “You didn’t come here this morning to tell me that,” he said. “Come, Mr. Eaton, what is it?”

“No,” said Jacob, still smiling, “I didn’t come for that, you’re right. I came to make a business proposition.”

There was a pause, and Trench made no reply. Jacob began to find, instead, that his silence was a peculiar and compelling weapon.

“You have made me the butt of your speeches,” he continued, with his first touch of anger, “and your attacks are chiefly aimed at the Land Company of which I am the president. I suppose you are fully aware of this?”

Caleb smiled involuntarily. “I could not be unaware,” he observed.

“Then, perhaps, you are not unaware of what I came for,” Jacob said.

“Possibly,” replied Trench, folding his arms and leaning back against the wall, and studying Eaton with a coolly indifferent scrutiny that brought the color to Jacob’s face.

“Ah, you have probably been expecting my visit?” he said; “in other words, I suppose you’ve had an object in stirring up this excitement, in directing this attack upon me.”

“I have undoubtedly had an object,” Caleb Trench replied, after a moment’s silence.

Jacob’s smile was a sneer. “We’re business men, Mr. Trench,” he said; “I’m here this morning to know the size of that object.”

Caleb moved slightly, but his arms were still folded on his breast and he still leant against the wall; his cool, unwinking gaze began to dash Eaton's composure; he could not be the finished and superior gentleman he thought himself, under those relentless eyes. He shifted his own position restlessly, drawing nearer to his adversary.

"Come," he said, "name your price."

"My what?" demanded Trench.

"Your price," Eaton sneered openly, his smooth face crimson. In some way, to his own consciousness, he seemed to be shrinking into insignificance before the other man's strong personality, his force, his coolness.

"Do you suppose, because I have sold goods and handled merchandise, that I am also on a level with my trade?" Caleb asked coolly, so coolly that Jacob was blinded to his peril.

"You are a trader," said he bitingly, "a petty tradesman and a petty politician; as such you have your price."

Caleb turned his face full toward him, and suddenly Eaton realized the terrible light in his eyes. "You lie," he said slowly, deliberately, each word like a slap in the face; "you are a liar."

Jacob sprang at him, fury in his own face, and prudence gone. But as he sprang Trench met him with a blow straight from the shoulder. It caught Eaton fairly and sent him sprawling, full length on the floor.

"By the Lord Harry, you got it, Jacob!" cried Judge Hollis from the door, where he had appeared unheard.

As Jacob rose foaming, Caleb saw Aaron Todd's head behind the judge, and after him Peter Mahan.

There was no time to speak. Eaton flew at him again, his head down, and for the second time Caleb landed him on his back. Then the judge intervened.

"That's enough," he said dryly. "I reckon he needed it, but he's got it. Get up, Jacob, and keep quiet."

But Jacob would not; he got up to his feet again and made a rush forward, only to find himself clasped tight in Aaron Todd's strong arms.

“Be quiet,” said Todd, “you’ll go down again like a sack of salt, you idiot! You’re too full of booze to risk a blow on your solar plexis.”

Eaton swore. “Let me go,” he said, “do you think I’ll take it from that fellow? You’re a prize-fighter!” he added between his teeth, lowering at Trench, and wriggling helplessly in Aaron’s arms, “you’re a common prize-fighter; if you were a gentleman you’d settle it with pistols!”

“Tut, tut!” said the judge.

“I will, if you like,” said Caleb coolly, his own wrath cooled by victory.

Jacob’s eyes flashed; he was a noted shot. “I’ll send some one to you later,” he said, the perspiration standing out on his forehead, as he wrenched himself from Todd’s arms.

“I’ve a mind to report you both to Judge Ladd,” said Judge Hollis, but his fiery old soul loved the smoke of battle.

Jacob, panting and disheveled, reached for his hat. “It will be to-morrow,” he said, “and with pistols—if you consent.”

Caleb looked at Todd and Mahan. “Will you represent me, gentlemen?” he asked quietly, something like a glint of humor in his eyes.

Todd nodded, and Peter Mahan, a keen-visaged Irish Yankee, beamed. To his soul a battle was the essence of life, and a duel was not unreasonable west of the Mississippi.

“Folly,” said Judge Hollis, secretly exultant, “rotten folly; let it drop.”

Jacob turned at the door, his face livid. “Not till I’ve sent him to hell,” he said, and walked out.

The judge brought his fist down on his knee. “By the Lord Harry,” he said, “it was this day twenty-odd years ago that Yarnall shot Jacob’s father.”

“I shan’t shoot Jacob,” said Caleb dryly.

Judge Hollis turned quickly. “What do you mean?” he began, but was interrupted.

The door between the rooms opened suddenly, after much restless but unnoticed wriggling of the knob, and Sammy, in his plaid petticoat and his

brass-buttoned jacket, came in on wobbly legs. He stopped abruptly and viewed the group, finger in mouth.

“My God, what’s that?” exclaimed Judge Hollis blankly.

Caleb laughed. “My ward,” he said, and then he looked up and met three pairs of curious eyes. “It’s Jean Bartlett’s child,” he explained simply; “she died last night, and Dr. Cheyney threatened the Foundling Asylum, so I just brought the kid here; there’s room.”

Judge Hollis leaned forward, both hands on his knees, and viewed the child. “What did you do it for, Caleb?” he asked, in the midst of the pause.

“Heaven knows!” said Caleb, smiling, as he filled his pipe. “I fancy because the poor little devil had no home, and I’ve known what it was to want one.”

The judge rubbed his chin. “I’m beat!” he said.

The other two men looked on silently while Caleb lit his pipe. Sammy picked up the judge’s cane from the floor and tried slowly and solemnly to swallow the gold knob on the top of it. The judge sank slowly back into his chair, the old worn leather chair. “And there’ll be a duel to-morrow!” he remarked; then, looking at the child, he added feelingly, “It beats the band!”

## XV

THE time for the duel was an hour before sunrise the following day, and to Caleb Trench, the Quaker, it was a gross absurdity. He had knocked down Jacob Eaton as he would have knocked down any man who insulted him, and he would have fought Jacob with his fists, but to shoot him down in cold blood was another matter; not that Trench was over merciful toward a man like Eaton, nor that he lacked the rancor, for an insult lingers in the blood like slow poison.

Eaton had selected two young men from the city, and the cartel had been delivered with all the care and joy of an unusual entertainment. To Aaron Todd, the farmer, it was a matter as ridiculous as it was to Trench, though he could understand two men drawing their weapons on each other in a moment of disagreement. But Peter Mahan loved it as dearly as did Willis Broughton, a grand-nephew, by the way, of old Judge Hollis. The place chosen was Little Neck Meadow, and the seconds made their arrangements without any personal qualms. A fight, after all, in that broad southwestern country was like the salt on a man's meat.

Meanwhile the news that Caleb Trench had taken in Jean Bartlett's child dropped like a stone in a still pool, sending the ripples of gossip eddying into wider circles until the edges of the puddle broke in muddy waves, for no one had ever really known who was the father of Jean's boy. So, before Caleb rose at daybreak, to go to Little Neck Meadow, his adoption of Sammy was as famous as his Cresset speech, and as likely to bear unexpected fruits.

Old Judge Hollis had remonstrated against both the child and the duel, but not so warmly against the last as the first, and when he went away there was a new look in his eyes. After all, what manner of man was the shopkeeping lawyer of the Cross-Roads? The judge shook his head, wondering; wondering, also, that he loved him, for he did. The power of Caleb Trench lay deeper than the judge's plummet, and, perhaps, it was that which lent the sudden sweetness to his rare smile.

But there was no smile on Caleb's face when he went out, in the white mist of the morning, to fight Jacob Eaton with pistols. He took the woodland road on foot, alone, for he had sent his strangely assorted seconds ahead of him. As he walked he was chiefly aware of the soft beauty of the morning under the trees, and he caught the keen glint of light on the slender stem of a silver birch that stood at the head of the path, and he heard the chirp of a song-sparrow. A scarlet hooded woodpecker was climbing the trunk of the tall hickory as he passed, and a ground squirrel dashed across the trail. Caleb walked on, thinking a little of the possibility of death, and a great deal of the gross incongruity of his act with his life and his parentage. Through the soft light he seemed to see his mother's face, and the miracle of her love touched him again. At heart he was simple, as all great natures are, and tender; he could not have left Jean Bartlett's child in the woodbox. Yet he had no mind to show that side of his nature, for he was shy in his feelings, and he had borne the hurt of solitude and neglect long and in silence; silence is a habit, too, and bears fruit.

He walked slowly, looking through the trees at the river which, now before sunrise, was the color of lead, with a few ghostly lily-pads floating at its edges. Beyond, he saw the high swamp grass that fringed the edge of the delta; below lay Little Neck Meadow. The other thought that haunted him, the picture of Diana in the old leather chair beside his own hearthstone, with the kindling glow of the wood fire on her face, he thrust resolutely aside. After all, he was nothing to Diana but the petty tradesman of Eshcol, and now—if she knew—the intending murderer of her kinsman. Yet it was Diana who walked before him along the narrowing path. Thus do our emotions play us tricks to our undoing, even in life's most vital moments.

But to the group waiting in the meadow, Caleb Trench appeared as unmoved as stone. He was prompt to the moment and accepted their arrangements without a question.

Afterwards Aaron Todd told the story of the duel at the tavern. Eaton and his seconds were in faultless attire and eager for the fray. At the last moment Todd had sent for Dr. Cheyney; his early arrival meant an explosion against dueling, and no one thought of waiting for him except Peter Mahan.



It ended in the two taking their places just as the whole eastern sky ran into molten gold; it lacked but a few moments, therefore, of sunrise, and there was still a light mist.

Jacob Eaton, who was a noted shot, had been drinking the night before, against the best efforts of his friends. Trench stood like a pillar of stone. The word was given, and both men raised their weapons. Jacob fired and missed, then Caleb very deliberately fired in the air. He had never even glanced at his challenger. It was at this that Jacob Eaton lost his temper and his wits and fired again, deliberately attempting to shoot down his enemy. The bullet went through Caleb's left arm, missing his heart, and Willis Broughton threw himself upon Eaton and disarmed him.

When Dr. Cheyney came, Caleb had tied up his own arm with Todd's help, and was the calmest person there. Eaton was hustled off the field by his seconds, and the story—told a hundred ways—was thrown into the campaign.

Old Dr. Cheyney drove Caleb home. "I reckon the fool killer wasn't out this morning," he remarked dryly, as he set him down before the office door, "or else he only winged you out of compassion. Caleb Trench, for a man of common horse sense, you can be the biggest fool west of the Mississippi. Adopted Sammy, I suppose?" he added, cocking an eyebrow aggressively.

Trench smiled. "Might as well," he said.

"Precisely," said the doctor, "if you want anything more, let me know. I've got one old rooster and a gobbler, that's tough enough to be Job's. G'long, Henk!"

## XVI

"I TELL you, David Royall, I can't understand I how you ever let that man come to your house," Mrs. Eaton said; "a common man in the first place, and now—why, there can't be any doubt at all about Jean Bartlett! Hasn't he got the child?"

Colonel Royall tilted his chair against the pillar of the veranda and looked at her mildly. "That's where the doubt comes in, Jinny," he remarked.

"I can't understand you!" she retorted tartly, dropping a stitch in her crocheting and struggling blindly to pick it up. "I can't in the least understand your doubts—it's obvious."

"Which?" said the colonel, "the doubt or Sammy?"

"Both!" said she.

"Well, Dr. Cheyney told me about it," said the colonel, "and I'm not sure that I believe all the other things I hear. Give him the benefit of the doubt, Jinny."

"There isn't any doubt," declared Mrs. Eaton; "everybody says he's the father of that child."

Colonel Royall shook his head slowly. "It isn't like the male critter, Jinny," he argued mildly, "to take in the child; he'd most likely ship it."

"Some women do that!" said Mrs. Eaton sharply, shutting her thin lips.

The colonel turned a terrible face upon her. "Jinny!"

Mrs. Eaton reddened and her hands shook, but she went on without regarding his anger. "At least, he's the father of the Cresset speech, you'll admit that, and, if you please, here is this duel with Jacob—with my son!"

"I believe Jacob was the challenger," said Colonel Royall.

"He couldn't stand being insulted by such trash!" said the indignant mother.

The colonel smiled broadly. "Come, Jinny, why did he go there?"

“How should I know?” she retorted hotly; “some political reason, of course, and Trench took advantage of it, as a common man would.”

The colonel began to whittle a stick, man’s resource from time immemorial. “Jinny,” he said, “you’re the greatest partisan on earth; if you could lead a political party you’d cover your antagonist with confusion. When I see Jacob beating his head against a wall I always remember he’s your son.”

Mrs. Eaton’s face relaxed a little. “Jacob takes after my family,” she admitted, smiling; “he’s like them in looks and he has all their charm.”

“Why don’t you say yours, Jinny?” asked the colonel, twinkling.

“I don’t think you half appreciate that,” she replied, with a touch of coquetry; “if you did, you wouldn’t quarrel with me about Caleb Trench.”

“Do I?” said the colonel.

She let her crochet work drop in her lap and looked at him attentively. “Do you mean to say you agree with me?” she demanded.

The colonel laughed. “I’m not a violent man, Jinny; since the war I’ve been a man of peace. I’m not sure that I’ve got all the faith I ought to have in these young iconoclasts.”

“Faith in that man!” Mrs. Eaton threw up her hands. “If you had, David, I wouldn’t have any in you!”

“Your conversation has rather led me to assume that you had lost faith in my opinions,” he retorted, amused.

“Well, sometimes, Cousin David, I think you’re too willing to have the wool combed over your eyes!” she said severely; “you’re so broad-minded, I suppose, that you don’t think enough of the natural prejudices of our own class.”

“Well, Jinny,” said the colonel dryly, “I’m a little tired of our class.”

Mrs. Eaton raised her head to reply with indignation, but utterance was suspended by Diana’s approach. Her appearance always had the effect of breaking off a conversation in the middle. She was still a vision in pink muslin, with a wide straw hat trimmed with roses. She swept out, fresh and sweet and buoyant.

“What are you two quarreling about?” she asked. “I can’t leave you alone together any more; you fight like game cocks. Of course it’s politics or social customs; you haven’t got to religion yet, thank heaven! When you do I shall have to send for the bishop.”

“It’s about that wretched man,” said Mrs. Eaton fretfully. “I told David that he ought not to be received here!”

“Well,” said the colonel thoughtfully, “I’m not sure he could be after this fight with Jacob; blood’s thicker than water. But do you know, Jinny, I don’t believe he’ll come?”

“Come!” cried Mrs. Eaton; “dear me, do you imagine that a poor creature like that would lose the chance?”

Colonel Royall smiled whimsically. “Jinny,” said he, “your grandfather made his money selling molasses in New Orleans.”

She gazed at him coldly. “It was wholesale,” she said, with withering contempt.

The colonel shook with silent laughter.

All this time Diana had not opened her lips; she stepped down from the piazza into the grass now and unfurled her parasol.

“I hope you’re not going to make my unfortunate grandfather a reason for inviting Caleb Trench here,” said Mrs. Eaton biting, her eyes fixed on the colonel’s flushed face.

“Cousin Jinny, he won’t come,” said Diana suddenly.

Both her father and Mrs. Eaton looked at her astonished. “How do you know?” the latter asked unconvinced.

“I asked him,” said Diana, and blushed.

Mrs. Eaton was amazed. “You asked that man—that person—and he refused your invitation?”

“Yes,” replied Diana, scarlet now.

Her elderly cousin dropped her hands helplessly in her lap. “Diana Royall, I’m ashamed of you!”

“I was ashamed of myself,” said Diana.

The colonel rubbed the back of his head thoughtfully. “I reckon he had a reason, Di,” he said at last.

“I have a reason for not asking him again,” replied his daughter.

“Thank heaven!” ejaculated Mrs. Eaton devoutly.

The girl turned away and walked slowly across the lawn. Two of the setters followed her half-way, but, unencouraged, fell back lazily to lie in the cool grass. As she went the murmur of indignant voices died away, and she passed into the cool shadow of the horse-chestnuts. Her face still burned with the blush of vexation that Mrs. Eaton had summoned, and her heart beat a little faster at the thought that she had never asked any man to accept their hospitality before in vain. It was preposterous and rude, yet, in her heart, she respected Caleb Trench for refusing it. Even at Kitty Broughton’s ball he had been accepted only on tolerance and because of Judge Hollis. She had seen him slighted, and then the prejudice had been against his poor little shop at the village Cross-Roads and his black Republicanism, in a section that was rankly Democratic. Now they had a greater cause, the Cresset speech, the attacks upon Eaton, the duel at Little Neck Meadow—of which no one could get the truth, for no one knew socially Peter Mahan or Aaron Todd—and last of all the scandal of the child. The story of poor Jean Bartlett had passed from lip to lip now that Sammy played on the door-step of the most unique figure in local politics.

Gossips had promptly decided that Sammy was Caleb’s child, and Jean’s had been a peculiarly sad case. The story lost nothing in transmission, and Diana tried not to recall details as she walked. Why should she? The man was nothing to her! Her father did not believe all he heard, and neither did she, but she was more tormented than if she had believed the worst. Certainty carries healing in its wings; doubt is more cruel than a whip of scorpions. She had tried to understand the man and she could not; one thing contradicted another, but he was strong, his figure loomed above the others, and the storm was gathering about it, as the clouds sweep around the loftiest peak.

The hottest contest for years was brewing in the conventions, and it was known—and well-known—that Caleb Trench had an immense influence

with the largest element of the party. He was convinced that Aylett's government was weak and permeated with corruption, and he was making his conviction public, with a force and certainty that were bewildering far older politicians. In fact, the man was no politician at all; he was a born reformer, and he was making himself felt.

Diana, too, had felt his force and resented it. She resented also his duel with her cousin. The cheap sensationalism of a duel irritated her, and she did not place the whole blame upon Jacob, for she knew—Aunt Charity had spread it—that Caleb had knocked Jacob down. She was ashamed that she almost tingled with joy at the thought of him towering in wrath over Jacob, for she could divine the insulting tone that must have provoked him beyond endurance. She could divine it, but she would not accept it. Jacob was her own relation, and Jacob had been knocked down. It was maddening from that point of view, and Diana felt that nothing but blood could have atoned to her for being laid in the dust. Yet she thrilled at the thought that Caleb Trench had dealt the blow, that the son of the Philadelphia Quaker was a man. Thus contradictory is the heart of woman!

Meanwhile, she had left the confines of Broad Acres and was walking slowly up the trail to Angel Pass. Not far away was the spot where she had stood and talked with Caleb in the sweet twilight. Below her, as the path climbed, was the long slope of rolling meadows which lay between this spot and Paradise Ridge. Around her the tree trunks stood in serried ranks, and here and there, where the wild grapevines hung in long festoons, she noticed the tight clusters of green grapes. She wished devoutly that she could think of something beside the slightly awkward figure, the sharp lines of the clean-cut face, as it had looked in the twilight. Since then they had met more than once, but it was that picture of him which haunted her, and she was scarcely startled when she turned the corner by the pines and saw him ahead of her with Shot.

He heard her footstep, and when she would have turned to avoid him, he prevented it by facing about and greeting her. Both were conscious of constraint. Jacob Eaton's bullet had not broken the bone of his arm, but the arm was still bandaged under the sleeve and stiff, and the fact of the duel seemed to materialize between them. The other thought, the thought of Jean Bartlett and her child, sprang up unbidden in her heart, and she was woman enough to wince. A torrent of feeling swept through her like a whirlpool,

and she would not have told what it was, or whence it came. Her face crimsoned, and unconsciously she drew back. Something in his face, in the compelling light in his eyes, made her catch her breath. On his side, he saw only reluctance and repulsion, and mistook it for rebuke. He remembered that report said she was to marry Jacob Eaton, and he had knocked Jacob Eaton down. He would have been less than human had he not experienced then one instant of unholy joy to think that he had done it. Neither spoke for a full moment, then he did ceremoniously.

“Pardon me,” he said, “I ought not to intrude upon you, Miss Royall. I see that I am doubly unfortunate, both unexpected and unwelcome.”

Diana struggled with herself. “Unexpected, certainly,” she said, conscious that it was a falsehood, for had he not haunted her? “but unwelcome—why? This is a public place, Mr. Trench.”

He smiled bitterly. “Fairly answered,” he said; “you can be cruel, Miss Royall. I am aware that to you—I merely cumber the earth.”

“I believe you refused an invitation to come to our house,” she retorted.

He swung around in the path, facing her fully, and she felt his determination, with almost a thrill of pride in him.

“Miss Royall—I have no right to say a word,” he said, “but do you think—for one instant—that if you gave that invitation sincerely I would refuse it? You know I would not. I would come with all my heart. But—because I know how absurd it is, because I know how you feel, I will not. I am too proud to be your unwelcome guest. Yet I am not too proud to speak to-night. God knows I wish I could kill it in my heart, but I will say it. I love you.”

Diana stretched her hand out involuntarily and rested it against the slender stem of a young pine; she clung to it to feel reality, for the world seemed to be turning around. She never opened her lips and she dared not look at him; she had met that light in his eyes once and dared not raise hers. If she had! But she did not—and he went on.

“It is madness, I know it,” he said bitterly, “and if I could strangle it—as a living thing—I would, but I cannot. I love you and have loved you from the first. It would be mockery indeed to accept your chary invitations. I suppose you think that it is an insult for me to speak to you, but”—he smiled bitterly

—“to myself I should seem a little less than a man if I did not. However, I beg your pardon, if it seems an affront.”

Diana tried twice to speak before she could utter a word. Then she seemed to hear her own voice quite calm. “I do not consider it so. I—I am sorry.”

He turned away. “Thank you,” he said abruptly, “I would like to be, at least, your friend.” He added this with a reluctance that told of a bitter struggle with his own pride.

Diana held out her hand with a gesture as sweet as it was involuntary. “You are,” she said, quite simply. “Mr. Trench, I—I take it as an honor.”

He held her hand, looking at her with an amazement that made her blush deeply. She felt her emotion stifling her, tears were rushing to her eyes. How dreadful it was for him to force her into this position. They were as widely sundered as the poles, and yet she no sooner met his eyes than she wavered and began to yield; she snatched her hand away.

“Thank you a thousand times for saying that!” he murmured.

She fled; she was half-way up the path; the sunshine and the breeze swept down from Angel Pass. She was conscious of him still standing there and turned and looked back. “Good-bye!” she called softly over her shoulder, and was gone.



## XVII

IT was in the heat of midsummer that Judge Hollis walked into Caleb's inner office.

"Caleb," he said, "I'm hanged if I haven't changed the color of my coat and come to your opinion. After this I'm for Yarnall."

Caleb smiled, leaning back wearily in his chair and glancing unconsciously at Sammy, the innocent cause of much scandal in Eshcol, who lay asleep beside Shot on the floor, his chubby arms around the dog's neck.

The smoke of the two great conventions was still in the air. Two weeks before the Republicans had peacefully and hopelessly nominated Peter Mahan for Governor, and the Democrats, after a deadlock and a disgraceful collapse of the opposition, had nominated Aylett. Every politician in the State knew that it had cost the Eaton faction nearly two hundred thousand dollars. There had been a storm of indignation, and Yarnall had come back and put his case in the hands of the Republican lawyer, Caleb Trench! The indignation and chagrin of the older Democratic lawyers added nothing to the beauty of the situation, but Caleb had grasped it silently and was dealing with it. In ten days he had forced the Grand Jury to indict both Aylett and Eaton, along with half a dozen of their lieutenants, and the hour of the great trial was approaching. Feeling ran so high that there were threats on both sides, and it was a common saying that men went armed.

The judge banged his broad-brimmed Panama down on the table. "Caleb," he said grimly, "how much more packing is there to come out of this?"

This time Trench laughed. "Not a great deal, Judge," he replied easily, "I've got most of it out. We're going to prove both our cases against Aylett and Eaton. Aylett's used more money, but Eaton has intimidated. The convention was packed. They threw in Eaton as a third candidate to split Yarnall's strength; they knew all the investors in his get-rich-quick schemes would follow him, and they'd been warned to do it. I've got the evidence. Of course, when Yarnall got them deadlocked, even with that break in his

strength, Eaton withdrew and, throwing all his votes suddenly to Aylett, nominated him on the fifth ballot.”

The judge scowled at him from under his heavy brows. “What’s this about the Todd test case?” he growled.

“Aaron Todd got hold of one of the delegates and found out that he’d been offered a bribe by Eaton. Todd suggested to him to take it and get the matter witnessed; it was done and will be used in court.”

“Damned shabby!” said the judge.

Caleb smiled. “I call it a harder name, Judge,” he said simply. “I shan’t use it, but, after all, I’m only the junior counsel.”

The old man looked at him over his spectacles. “I understand that Yarnall has picked you out as a kind of red flag to the bull, and means to wave you in Eaton’s face.”

“So he does, I fancy,” said Trench, “but we’re going to call Judge Hollis.”

The judge stared; a dull red crept up to his hair. He had felt the slight when Caleb was chosen, and he suspected that the younger man knew it. Yet the temptation to be in the thick of the fray was like the taste of fine wine in the mouth of the thirsty. “By gum, sir,” he said, “I don’t believe I’ll do it.”

“Yes, you will,” said Trench decisively, “we need you. Besides, Mr. Yarnall has written a formal request to you: we want influential men on our side. We’ve got a clear case, but we want the people to understand that we’re not demagogues. And”—Trench suddenly used all his persuasive powers, which were great—“Judge, I lack your experience.”

It was a touch of modesty that went to the judge’s heart. He took Diana’s chair—Caleb always called it that in his heart—and they fell to discussing the situation and the most salient points in the case, for it had divided the State and it would affect the election of the United States Senator later.

Meanwhile, Sammy slept, with his yellow curls mingling with Shot’s yellow hair; they were boon companions and no one troubled the child. Once or twice Zeb Bartlett had come, bent on making trouble, but he had been sent away. Sammy found his new home wholly desirable; Aunt Charity was even growing fond of him, and Dr. Cheyney brought him toys. But between Caleb and himself there was a complete understanding; the

child followed him about as patiently as did Shot, and as unquestioningly. In some mysterious way he had grasped the meaning of his adoption, and he understood the silent, preoccupied man as well as the dog did. With both it was an instinct that recognized kindness and protection. Left to amuse himself from babyhood, Sammy made little trouble. He would lie on his stomach by the hour working a toy train of cars to and fro in one spot, and he had destroyed only one brief which had been left within his reach.

Judge Hollis talked for over an hour, going over the case which was to come up before Judge Ladd in ten days. He saw that Trench had prepared every inch of it, and that he was chiefly wanted as a notable figurehead, yet he was nothing loath to be the figurehead. When he had fully grasped the evidence, and saw before him one of the biggest cases on record in the State courts, he threw back his head like an old war-horse snuffing the battle afar.

“By the Lord Harry!” he said, slapping his knee, “we’ll whip them to kingdom come, Caleb, and shear the sheep at that!” Then his eye suddenly lighted on the sleeping child, and his shaggy brows dropped; he stooped over and looked at him, thrusting out his underlip. “Caleb,” he said, “send that brat to St. Vincent’s.”

Caleb, who was making notes, looked up. “Why?” he asked dryly.

The judge growled. “You’re a tarnation fool!” he replied. “I’m not asking whose child he is! What I say is—send him packing.”

Caleb turned and glanced at the child, and the judge, watching him, was astonished at the softening of his face. “Poor little devil,” he said quietly, “I fancy he’ll stay as long as I do, Judge Hollis. I’ve had no home, I’ve been in desperate straits, now I’ve got this roof. That dog was a stray, so is the child—they’re welcome.”

The judge was silent for a long while. Then he drew a pattern on the floor with his cane. “Caleb,” he said, more kindly, “that kid has raised Cain for you. Jinny Eaton is blowing the news to the four winds of heaven, and everybody believes it. You might as well hang an albatross around your neck. If you’re not the child’s father—by gum, sir, you might as well be!”

Caleb set his teeth hard, and the light came into his eyes,—the light that some people dreaded. “Judge,” he said sternly, “I’m accountable to no man,

neither am I a coward. Mrs. Eaton may say what she pleases; being a woman, she is beyond my reach.”

The judge got up and drove his hat down hard on his head with his favorite gesture, as though he put the lid on to suppress the impending explosion. “By gum!” he said, and walked out.

That evening Caleb found Sammy asleep in the old leather armchair with his yellow head on the arm, and he snatched him out of it, in spite of Sammy’s vigorous protests, and put him to bed. He never thought that Diana’s arms might have held the child as pitifully, for Diana had a noble heart.

Then followed the greatest case of disputed nomination ever contested west of the Mississippi. The old court-house was packed to its limit, and there were one or two hardy spirits who climbed the tree outside and listened through the open windows. Feeling ran so high when Aaron Todd testified that there was a column of militia in Townhouse Square. It was hot; they were cutting oats in the fields and the rye was nearly ripe, while all the grapes were coloring like new wine.

Aylett and Eaton fought step by step, inch by inch, and the court sat from early morning until candle-light, yet it was three weeks before it went to the jury, and they had been twenty-nine days getting that jury!

Two brilliant lawyers from the East spoke for the defense, and Judge Hollis opened for the plaintiff. It was afternoon; the judge had made an able if somewhat grandiloquent plea, and the court-house was so thronged that men stood on the window-sills, shutting out the view from the trees. Caleb Trench closed the case for Yarnall, and men, remembering his Cresset speech, had refused to leave the court-room for dinner, fearful of losing their seats—or their standing room. Eaton alone left abruptly when he began to speak.

Trench had a peculiarly rich voice, low-toned but singularly clear; he used no gestures, and his attitudes were always easy and unembarrassed when he forgot himself in his work. His personality counted, but it was neither that nor his eloquence which held the court-room spellbound; it was the force of his logic, the power to get down to the root of things, to tear away all illusions and show them the machine as it had existed for nearly twenty

years. Incidentally, as it seemed to some, he showed them, beyond all doubt, the fraud and intimidation that had renominated Governor Aylett.

The lights were burning in the court-room and outside in the square when Judge Ladd charged the jury. Not a man left his place as the jurors filed out, except Trench. He went to send a message to Aunt Charity about his two waifs at home, who must not go supperless. He was still out, and Judge Hollis sent for him hastily when the jury came back in twenty minutes. They brought in a verdict of guilty as indicted; the illegal use of money, corruption in office, and intimidation were the charges against Aylett and Eaton and ten others.

At half-past nine that night the militia had to charge in the court-house square to disperse the crowd.

## XVIII

COLONEL ROYALL and Diana drove into town in the morning; it was a long drive from Eshcol, and the road led past Paradise Ridge. Diana, from her side of the carriage, noticed the little cabin where Jean Bartlett had died, and saw the shambling figure of Zeb leaning against the door-post. Zeb was talking to a well-dressed man whose back was toward her. A low-growing horse-chestnut partly hid his figure, but afterwards she remembered a curious familiarity about it. At the time her heart was bitter. She had heard nothing but Mrs. Eaton's version of the scandal of Paradise Ridge for a month, and once, when she drove past the Cross-Roads, she had seen Sammy's chubby figure sprawling under the trees beside Caleb Trench's office.

If he were the child's father, he had certainly taken up the burden squarely. Diana pushed all thought of it out of her mind by main force, yet two hours later it would come back. She remembered, too, that meeting on the trail, and her heart quaked. In some mysterious, unfathomable way the man loomed up before her and mastered her will; she could not cast him out, and she stormed against him and against herself. Outwardly she was listening to Colonel Royall. At heart, too, she was deeply concerned about her father; the colonel was failing, he had been failing ever since spring set in. All her life Diana had felt that, in spite of their devotion to each other, there was a door shut between them, she had never had his full confidence. Yet, she could not tell how she knew this, what delicate intuition revealed the fact of his reticence. She had twice asked Dr. Cheyney what secret trouble her father had, and the old man had looked guilty, even when he denied all knowledge. Diana felt the presence of grief, and she had assumed that it was especially poignant at the season when he kept the anniversary of his wife's death. Yet, lately, she wondered that he had never taken her to her mother's grave. Mrs. Royall had died when Diana was three years old, and was buried in Virginia. More than this Diana had never known, but she did know that her room at Broad Acres had been locked the day of her death and that no one ever went there except her father and the old negro woman who kept it spotless and "just as Miss Letty left it."

Neither Colonel Royall nor old Judy ever vouchsafed any explanation of this room, its quaintly beautiful furniture and the apparently unchanging spotlessness of the muslin curtains and the white valance of the mahogany four-poster. Once, when she was a child, Diana had crept in there and hidden under the bed, but hearing the key turn in the lock when old Judy left the room, her small heart had quaked with fear and she had remained crouching in a corner, still under the bed, not daring to look out lest she should indeed see a beautiful and ghostly lady seated at the polished toilet-table, or hear her step upon the floor. She stayed there three hours, then terror and loneliness prevailed and she fancied she did hear something; it was, perhaps, the rustle of wings, for she had been told that angels had wings, and if her mamma were dead she was, of course, an angel. The rustle, therefore, of imaginary wings was more than Diana could bear, and she lifted up her voice and wept. They had been searching the house for her, and it was her father who drew her out from under the bed and carried her, weeping, to the nursery. Then he spoke briefly but terribly to the mammy in charge, and Diana never crept under the white valance again.

She remembered that scene to-day as the carriage drove on under the tall shade trees, and she remembered that Colonel Royall had never looked so ill at this time of the year since the time when he was stricken with fever in midsummer, when she was barely fifteen. Then he had been out of his head for three days and she had heard him call some one "Letty!" and then cry out: "God forgive me—there is the child!" He had been eighteen months recovering, and she saw presages of illness in his face; his eyes were resting sadly and absently, too, on the familiar landscape. Diana winced, again conscious of the shut door. It is hard to wait on at the threshold of the heart we love.

They were crossing the bridge when a long silence was broken. Below them some negroes were chanting in a flatboat, and their voices were beautiful.

"Away down South in de fields of cotton,  
Cinnamon seed and sandy bottom,  
Look away, look away,  
Look away, look away!"

"Pa," said Diana suddenly, "do you believe in the verdict?"

The colonel took off his hat and pushed back his thick white hair. "I reckon I've got to, Di," he replied reluctantly.

"Then you think Jacob is a bully and a fraud," said Diana, with the unsparing frankness of youth.

"Heaven forbid!" said the colonel gently.

"I thought you wanted me to marry him," she pursued, victory in her eye.

The colonel reddened. "Diana," he said, "I don't want you to marry anybody."

She smiled. "Thank you," she said; "after all, the verdict has done some good in this State, Colonel Royall."

They were at the court-house door now, and there was a crowd in the square. The colonel got down and helped out Diana, and they walked into the arched entrance of the basement together. "I didn't want to leave you out there to be stared at by that mob," said the colonel; "people seem to know us at a glance."

Diana laughed softly. "Of course no one would remember you," she said maliciously; "they're looking at my new hat."

"I reckon they are," said her father dryly; "we'll have to find a place to hide it in."

As he spoke they passed the last doorkeeper, and walked down the stone-paved corridor toward the elevator. It was absolutely still. On the left hand was a small room with one large window looking out into the court where a tree of heaven was growing. It had sprung from a seed and no one had cut it down. The window was barred, but the cool air of the court came in, for the sash was open. It was a room that they called "the cage," because prisoners waited there to be summoned to the court-room to hear the verdict, but Colonel Royall did not know this. There were a narrow lounge in it, two chairs and a table.

"Wait here," he said to Diana, "I shan't be ten minutes. I want to see Judge Ladd, and I know where he is up-stairs. Court has adjourned for luncheon, and you won't be disturbed."



Diana went in obediently and sat down in the chair by the window. She could see nothing but the court enclosed on four sides by the old brick building, and shaded in the centre by the slender tree of heaven. There was no possible view of the street from this room. Opposite the door was the blank wall of the hall; on the other side of that wall were the rooms of the Registrar of Wills and the Probate Court. Outside the door a spiral iron staircase ascended to the offices of the State's attorney; around the corner was the elevator and to this Colonel Royall went.

Diana leaned back in her chair and surveyed the chill little room; on the walls were written various reflections of waiting prisoners. None were as eloquent as Sir Walter Raleigh's message to the world, but several meant the same thing in less heroic English. The colonel had been gone ten minutes, and his daughter was watching the branches of the tree as they stirred slightly, as if touched by some tremulous breath, for no wind could reach them here.

It was then that she heard a quick step in the corridor and knew it intuitively. She was not surprised when Caleb Trench stopped involuntarily at the door. They had scarcely met in two months, but the color rushed into her face; she seemed to see him again in the spring woods, though now the hedgerows were showing goldenrod. Involuntarily, too, she rose and they stood facing each other. She tried to speak naturally, but nothing but a platitude came to her lips.

"I congratulate you," she said foolishly, "on your victory."

"Miss Royall, I am sorry that everything I do seems like a personal attack upon your people," he replied at once, and he had never appeared to better advantage; "like the spiteful revenge of a foolish duellist, a sensational politician. Will you do me the justice to believe that my position is painful?"

Diana looked at him and hated herself because her breath came so short; was she afraid of him? Perish the thought! "I always try to be just," she began with dignity, and then finished lamely, "of course we are a prejudiced people at Eshcol."

"You are like people everywhere," he replied; "we all have our prejudices. I wish mine were less. There is one thing I would like to say to you, Miss

Royall—” He stopped abruptly, and raised his head. Their eyes met, and Diana knew that he was thinking of Jean Bartlett; she turned crimson.

There was a long silence.

“I shall not say it,” he said, and his strong face saddened. What right had he to thrust his confidence upon her? “You are waiting for your father?” he added; “may I not escort you to another room? This—is not suitable.” He wanted to add that he was amazed at the colonel for leaving her there; he did not yet fully understand the old man’s simplicity.

“I prefer to stay here,” Diana replied, a little coldly; “my father knows I am here.”

It was Caleb’s turn to color. “I beg your pardon.” He stopped again, and then turned and looked out of the window. “I fear I have lost even your friendship now,” he said bitterly.

She did not reply at once; she was trying to discipline herself, and in the pause both heard the great clock in the tower strike one.

“On the contrary, I thank you for offering to find me a pleasanter place to wait in,” Diana said, with an effort at lightness. “It is a little dreary, but I’m sure my father must be coming and—”

She stopped with a little cry of surprise, for there was suddenly the sharp sound of a pistol shot, followed instantly by a second. The reports came from the other side of the hall, and were followed by a tumult in the street.

“What can it be?” she cried, in sudden terror for her father.

Caleb Trench swung around from the window with an awakening of every sense that made him seem a tremendous vital force. He divined a tragedy. Afterwards the girl remembered his face and was amazed at the fact that she had obeyed him like a child.

“Wait here!” he exclaimed, “your father is safe. I will see what it is. On no account leave this room now—promise me!”

She faltered. “I promise,” she said, and he was gone.

It seemed five minutes; it was in reality only ten seconds since the shots were fired. Meanwhile, there was a tumult without, the shouting of men and

the rush of many feet. Diana stood still, trembling, her hands clasped tightly together. Even afar off the voice of the mob is a fearsome thing.

## XIX

MEANWHILE Colonel Royall and Judge Ladd had been in consultation in the judge's private office, behind the court-room.

Governor Aylett and Jacob Eaton had definitely decided to appeal the case, and a slight discrepancy in the stenographer's notes had made it necessary for Colonel Royall to review a part of his testimony. Having disposed of these technicalities, the colonel found it difficult to depart. He and Judge Ladd had been boys together; they met infrequently, and the present situation was interesting.

The colonel stood with his thumbs inserted in the armholes of his marseilles waistcoat, his hat on the back of his head, and a placid smile on his lips. The judge sat at his table, smoking a huge cigar and meditating. In his heart he rather resented the rapid rise of the unknown young lawyer; he had worked his own way up inch by inch, and he had no confidence in meteoric performances, and said so.

"Well," said the colonel slowly, "I reckon I'd better not say anything, Tommy, I'm on the wrong side of the fence; I'm Jacob's cousin, though I feel like his grandfather."

The judge knocked the ashes from his cigar and said nothing. It was not in his province to discuss the defendant just then.

"I'd give something handsome," the colonel continued, "to know how in mischief Trench got such a hold on the backwoodsmen. Todd follows him about like a lapdog, too, yet he doesn't hesitate to condemn Todd's methods of getting evidence."

The judge grunted. "Heard about personal magnetism, haven't you?" he asked tartly; "that's what he's got. I sat up there on the bench and listened when he began to address the jury. I've heard hundreds do it; I know the ropes. Well, sir, he took me in; I thought he was going to fall flat. He began as cool and slow and prosy as the worst old drone we've got; then he went on. By George, David, I was spellbound. I clean forgot where I was; I sat and gaped like a ninny! He cut right through their evidence; he knocked

their witnesses out one by one; he tore their logic to pieces, and then he closed. There wasn't a shred of 'em left. I charged the jury? Yes, hang it! But I knew what the verdict would be, so did every man-jack in the court-room."

"Remarkable!" exclaimed the colonel. "I admit it, Tommy; I was there."

"Then why the devil didn't you say so?" snapped the judge.

"Thought you saw me; I was in the front row," replied the colonel, with a broad smile.

"See you?" retorted the judge fiercely, "see you? I didn't see a damned thing but that young shyster, and before he got through I could have hugged him, yes, sir, hugged him for making that speech."

The colonel shook with laughter. "Tommy," he began.

But just then there were two sharp reports of a pistol near at hand, followed by a tumult in the street below. Both men hurried to the window, but the jutting wing of the court-room hid the center of interest, and all they could see was the crowd of human beings huddled and packed in the narrow entrance of the alley that led to the Criminal Court-room. There were confused cries and shoutings, and almost immediately the gong of the emergency ambulance.

"Some one's been shot," said Judge Ladd coolly; then he turned from the window and halted with his finger on the bell.

The door from the court-room had opened abruptly and Judge Hollis came in. Both Ladd and Colonel Royall faced him in some anxiety; there was an electric current of excitement in the air.

"Yarnall has been shot dead," he said briefly.

"My God!" exclaimed Judge Ladd.

Colonel Royall said nothing, but turned white.

"Have they got the assassin?" the judge demanded, recovering his self-control.

"No," replied Judge Hollis, a singular expression on his face. "No, the shot was fired from the window of the court-room; the room was empty,

everybody at dinner, and the windows open; the pistol is on the floor, two chambers empty. Only one man was seen in the window, a negro, and he has escaped.”

“A negro?” the judge’s brows came down, “no, no!” Then he stopped abruptly, and added, after a moment, “Was he recognized?”

“They say it was Juniper,” said Judge Hollis stolidly.

“Wild nonsense!” exclaimed Colonel Royall.

Hollis nodded. His hat was planted firmly on his head and he stood like a rock. “Nevertheless, there’s wild talk of lynching. Ladd, I think we’d better get the lieutenant-governor to call out the militia.”

The storm in the street below rose and fell, like a hurricane catching its breath. Colonel Royall looked out of the window; the crowd in the alley had overflowed into the square, and swollen there to overflow again in living rivulets into every side street. He looked down on a living seething mass of human beings. The sunlight was vivid white; the heat seemed to palpitate in the square; low guttural cries came up. The names of Yarnall and Eaton caught his ear. He remembered suddenly the significance of Judge Hollis’ glance at him, and he did not need to remember the blood feud. Suddenly he saw the crowd give way a little before a file of mounted police, but it closed again sullenly, gathered the little group of officers into its bosom and waited.

The old man had seen many a fierce fight, he had a scar that he had received at the Battle of the Wilderness, he had a gunshot wound at Gettysburg, but he felt that here was the grimmest of all revelations, the slipping of the leash, the wild thing escaping from its cage, the mob! The low fierce hum of anger came up and filled their ears, he heard the voices behind him, the rushing feet of incoming messengers, the news of the lieutenant-governor’s call for the militia. Then he suddenly remembered Diana, and plunged abruptly down-stairs.

She had been waiting all this while alone in the lower room, yet, before the colonel got there, Caleb Trench came back. He had just told her what had happened when her father appeared.

“My dear child,” said the colonel, “I clean forgot you!”

Diana was very pale, but she smiled. “I know it,” she said, glancing at Caleb. “Once father got excited at the races at Lexington and when some one asked him his name, he couldn’t remember it. He paid a darkey a quarter to go and ask Judge Hollis who he was! Colonel Royall, I must go home.”

“So you must,” agreed the colonel, “but, my dear, the crowd is—er—is rather noisy.”

“It’s a riot, isn’t it?” asked Diana, listening.

They heard, even then, the voice of it shake the still hot air. Then, quite suddenly, a bugle sounded sweetly, clearly.

“The militia,” said the colonel, in a tone of relief. “I reckon we can go home now.”

“You can go by the back way,” said Caleb quietly; “stay here a moment and I’ll see that some one gets your carriage through the inner gate. The troops will drive the mob out of the square.”

He had started to leave the room when Colonel Royall spoke. “Is—is Yarnall really quite dead?”

“Killed instantly,” said Caleb, and went out.

Diana covered her face with her hands; she had been braving it out before him. “Oh, pa!” she cried, “how dreadful! I was almost frightened to death and—and I always thought I was brave.”

“You are,” said the colonel fondly; “I was a brute to forget you—but—well, Diana, it was tremendously shocking.”

Diana’s face grew whiter. “Pa,” she said suddenly, “where—where is Jacob?”

The colonel understood. “God knows!” he said, “but, Diana, he wasn’t in the court-room!”

“Oh, thank God!” she said.

It was then that Caleb came back, and she noticed how pale he looked and how worn, for the long weeks of preparation for the trial and the final ordeal had worn him to the bone. “The carriage is waiting,” he said simply,

and made a movement, slight but definite, toward Diana. But she had taken her father's arm. The colonel thanked the younger man heartily, yet his manner did not exactly convey an invitation. Caleb stood aside, therefore, to let them pass. At the door, Diana stopped her father with a slight pressure on his arm, and held out her hand.

"Good-bye," she said quietly, "and thank you."

Caleb watched them disappear down the corridor to the rear entrance where two policemen were on guard. Then he went out, bareheaded, on the front steps and glanced over the heads of the troopers sitting like statues on their horses in front of the court-house. Yarnall's body had been carried in on a stretcher, and a detachment of the governor's guard filled the main entrance. Beyond the long files of soldiers the streets were packed with men and women and even children. No one was speaking now, no sounds were heard; there was, instead, a fearful pause, a silence that seemed to Trench more dreadful than tumult. He stood an instant looking at the scene, strangely touched by it, strangely moved, too, at the thought of the strong man who had been laid low and whose life was snapped at one flash, one single missile. Death stood there in the open court.

Then some one cried out shrilly that there was Caleb Trench, the counsel for Yarnall, the dead man's victorious defender, and at the cry a cheer went up, deep-throated, fierce, a signal for riot. The silence was gone; the crowd broke, rushed forward, hurled itself against the line of fixed bayonets, crying for the assassin.

A bugle sounded again. There was a long wavering flash of steel, as the troopers charged amid cries and threats and flying missiles. A moment of pandemonium and again the masses fell away and the cordon of steel closed in about the square.

At the first sound of his name Caleb Trench had gone back into the court-house. On the main staircase he saw Governor Aylett, Jacob Eaton and a group of lawyers and officers of the militia. He passed them silently and went up-stairs. Outside the court-room door was a guard of police. The door of Judge Ladd's inner office was open and he saw that it was crowded with attorneys and officials. Judge Hollis came out and laid his hand on Caleb's shoulder.



“My boy,” he said, “this is the worst day’s work that has ever been done here, and they want to lay it on a poor nigger.”

“I know,” replied Caleb, “he was the only one seen at the window.”

“Yes,” assented Judge Hollis, “but, by the Lord Harry, I’d give something handsome to know—who was behind Juniper!”

## XX

IT was almost morning when Caleb Trench reached home, and the low building where he had his office—he had closed his shop a month before—was dark and cheerless.

The news of the shooting of Yarnall, and the subsequent rioting, had traveled and multiplied like a reed blown upon the winds of heaven. Aunt Charity had heard it and forgotten her charge. Shot was on guard before the dead ashes in the kitchen stove, and Sammy lay asleep in his little bed in the adjoining room. Fortunately the child seemed to have slept through the hours that had elapsed since the old woman's departure. Caleb found some cold supper set out for him, in a cheerless fashion, and shared it with Shot, strangely beset, all the while, with the thought of the charm and comfort of Broad Acres, as it had been revealed to him in his infrequent visits.

Diana's presence in the basement of the court-house had changed his day for him, and he recalled every expression of her charming face, the swift shyness of her glance, when his own must have been too eloquent, and every gesture and movement during their interview. At the same time he reflected that nothing could have been more unusual than her presence there in the prisoner's cage, as it was called, and he was aware of a feeling of relief that no one had found them there together at a time when his smallest action was likely to be a matter of common public interest.

But predominant, even over these thoughts, was the new aspect of affairs. Yarnall was dead, and as a factor in the gubernatorial fight he was personally removed, but his tragic death was likely to be as potent as his presence. He had already proved to the satisfaction of one jury that his defeat in the convention was due solely to Aylett's fraud and to Eaton's hatred, and it was improbable that, even in a violently partisan community, justice should not be done at last. Besides, the frightful manner of his taking off called aloud for expiation. The tumult at the court-house testified to the passions that were stirred; the old feud between the Eatons and the Yarnalls awoke, and men remembered, and related, how Yarnall's father had shot Jacob Eaton's father. A shiver of apprehension ran through the herded

humanity in squares and alleys; superstition stirred. Was this the requital? The old doctrine, an eye for an eye, a tooth for a tooth,—how it still appeals to the savage in men's blood. The crowd pressed in around the court-house where Yarnall's body lay in state, and outside, in a stiff cordon, stood sentries; the setting sun flashed upon their bayonets as the long tense day wore to its close.

In the court-house Caleb Trench had worked tediously through the evening with Judge Ladd and Judge Hollis. A thousand matters came up, a thousand details had to be disposed of, and when he returned home at midnight he was too exhausted physically and mentally to grapple long with a problem at once tiresome and apparently insoluble. He dispatched his supper, therefore, and putting out the light went to his own room. But, before he could undress, Shot uttered a sharp warning bark, and Caleb went back to the kitchen carrying a light, for the dog was perfectly trained and not given to false alarms.

His master found him with his nose to the crack of the outer door, and the slow but friendly movement of his tail that announced an acquaintance. At the same time there was a low knock at the door.

"Who is there?" Caleb demanded, setting his light on the table and, at the same time, preparing to unfasten the lock.

"Fo' de Lawd, Marse Trench, let me in!" cried a muffled voice from the outside, and, as Caleb opened the door, Juniper nearly fell across the room.

"Shet de doah, massa," he cried, "lock it; dey's after me!"

It was intensely dark, being just about half an hour before dawn, and the scent of morning was in the air. It seemed to Caleb, as he glanced out, that the darkness had a softly dense effect, almost as if it actually had a substance; he could not see ten yards from the threshold and the silence was ominous. He shut the door and locked it and drew down the shade over the kitchen window; afterwards he remembered this and wondered if it were some impulse of secretiveness that prompted a movement that he had not considered.

Meanwhile Juniper had fallen together in a miserable huddled heap by the stove. His head was buried in his arms and he was sobbing in terror, long-drawn shivering sobs that seemed to tear his very heart out. Trench stood

looking at him, knowing fully what suspicions were against the black, and the terrible threats that had filled the town, seething as it was with excitement and a natural hatred of the race. That Juniper had plotted Yarnall's death was an absurdity to Trench's mind; that he might have been the tool of another was barely possible. On the other hand, his chances of justice from the mob were too small to be considered. His very presence under any man's roof was a danger as poignant as pestilence. This last thought, however, had no weight with Caleb Trench. The stray dog guarded his hearth, the nameless child lay asleep in the next room, and now the hunted negro cowered before him. It was characteristic of the man that the personal side of it, the interpretation that might be put upon his conduct, never entered his calculations. Instead, he looked long and sternly at the negro.

"Juniper," he said, "you were the only person seen in the window of the court-house before the assassination of Mr. Yarnall. Were you alone there?"

Juniper cowered lower in his seat. "Fo' de Lawd, Marse Trench, I can't tell you!" he sobbed.

"Who was in the room with you?" asked Trench sharply.

"I can't tell!" the negro whimpered; "I don' know."

"Yes, you do," said Caleb, "and you will be forced to tell it in court. Probably, before you go to court, if the people catch you," he added cold-bloodedly.

Juniper fell on his knees; it seemed as if his face had turned lead color instead of brown, and his teeth chattered. "Dey's gwine ter lynch me!" he sobbed, "an' fo' de Lawd, massa, I ain't done it!"

Caleb looked at him unmoved. "If you know who did it, and do not tell, you are what they call in law an accessory after the fact, and you can be punished."

Juniper shook from head to foot. "Marse Caleb," he said, with sudden solemnity, "de Lawd made us both, de white an' de black, I ain't gwine ter b'lieb dat He'll ferget me bekase I'se black! I ain't murdered no one."

Caleb regarded him in silence; the force and eloquence of Juniper's simple plea carried its own conviction. Yet, he knew that the negro could name the

murderer and was afraid to. There was a tense moment, then far off a sound, awful in the darkness of early morning,—the swift galloping of horses on the hard highroad.

“Dey’s comin’,” said Juniper in a dry whisper, his lips twisting; “dey’s comin’ ter kill me—de Lawd hab mercy on my soul!”

Nearer drew the sound of horses’ feet, nearer the swift and awful death. Caleb Trench blew out his light; through the window crevices showed faint gray streaks. Shot was standing up now, growling. Caleb sent him into the room with little Sammy, and shut the door on them. Then he took the almost senseless negro by the collar and dragged him to the stairs.

“Go up!” he ordered sternly; “go to the attic and drag up the ladder after you.”

Juniper clung to him. “Save me!” he sobbed, “I ain’t dun it; I ain’t murdered him!”

“Go!” ordered Caleb sharply.

Already there was a summons at his door, and he heard the trample of the horses. Juniper went crawling up the stairs and disappeared into the darkness above. Caleb went to his desk and took down the telephone receiver, got a reply and sent a brief message; then he quietly put his pistol in his pocket and went deliberately to the front door and threw it open. As he did it some one cut the telephone connection, but it was too late. In the brief interval since he had admitted the fugitive, day had dawned in the far East, and the first light seemed to touch the world with the whiteness of wood ashes; even the cottonwoods showed weirdly across the road. All around the house were mounted men, and nearly every man wore a black mask. The sight was gruesome, but it stirred something like wrath in Caleb’s heart; how many men were here to murder one poor frightened creature, with the intellect of a child and the soul of a savage!

Caleb’s large figure seemed to fill the door, as he stood with folded arms and looked out into the gray morning, unmoved as he would look some day into the Valley of the Shadow. Of physical cowardice he knew nothing, of moral weakness still less; he had the heroic obstinacy of an isolated soul. It cost him nothing to be courageous, because he had never known fear. Unconsciously, he was a born fighter; the scent of battle was breath to his

nostrils. He looked over the masked faces with kindling eyes; here and there he recognized a man and named him, to the mask's infinite dismay.

"Your visit is a little early, gentlemen," he said quietly, "but I am at home."

"Look here, Trench, we want that nigger!" they yelled back.

"You mean Juniper?" said Caleb coolly. "Well, you won't get him from me."

"We know he's about here!" was the angry retort, "and we'll have him, d'ye hear?"

"I hear," said Caleb, slipping his hand into his pocket. "You can search the woods; there are about three miles of them behind me, besides the highroad to Paradise Ridge."

"We're going to search your house," replied the leader; "that's what we're going to do."

"Are you?" said Caleb, in his usual tone, his eyes traveling over their heads, through the ghostly outlines of the cottonwoods, past the tallest pine to the brightening eastern sky.

Something in his aspect, something which is always present in supreme courage,—that impalpable but strenuous thing which quells the hearts of men before a leader,—quenched their fury.

"Look here, Caleb Trench, you were Yarnall's lawyer; you ain't in the damned Eaton mess. Where's that Eaton nigger?"

Caleb's hand closed on the handle of his revolver in his pocket. "Gentlemen," he said quietly, "I happen to know that the negro, Juniper, did not shoot Mr. Yarnall, and if I know where he is now I will not tell you."

"By God, you shall!" yelled the nearest rioter, swinging forward with uplifted fist.

He swung almost on the muzzle of Caleb's revolver.

"One step farther and you're a dead man," Trench said.

The would-be lyncher lurched backward. In the white light of dawn Caleb's gaunt figure loomed, his stern face showed its harshest lines, and there was fire in his eyes. A stone flew and struck him a little below the shoulder,

another rattled on the shingles beside the door; there was a low ominous roar from the mob; right and left men were dismounting, and horses plunged and neighed.

“Give up that damned nigger or die yourself!” was the cry, taken up and echoed.

Within the house Shot began to bark furiously, and there was suddenly the shrill crying of a child.

“Jean Bartlett!” some one shouted.

“Ay, let’s hang him, too—for her sake!”

There were cheers and hisses. Caleb neither moved nor shut the door.

“Give us that nigger!” they howled, crowding up.

By a miracle, as it seemed, he had kept them about three yards from the entrance in a semicircle, and here they thronged now. From the first they had surrounded the house, and the possibility of an entrance being forced in the rear flashed upon Caleb. But he counted a little on the curiosity that kept them hanging on his movements, watching the leaders. He saw at a glance that there was no real organization, that a motley crowd had fallen in with the one popular idea of lynching the negro offender, and that a breath of real fear would dissolve them like the mists which were rolling along the river bottoms.

“Where’s that nigger?” came the cry again, and then: “It’s time you remembered Jean Bartlett!”

One of the leaders, a big man whom Caleb failed to recognize, was still mounted. He rose in his stirrups. “Hell!” he said, “he’s got the child; if he hadn’t, I’d burn him out.”

“Gentlemen,” said Caleb coolly, raising his hand to command attention, “I will give the child to your leader’s care if you wish to fire my house. I do not want to be protected by the boy, nor by any false impression that I am expiating an offense against Jean Bartlett.”

There was a moment of silence again, then a solitary cheer amid a storm of hisses. A tumult of shoutings and blasphemies drowned all coherent speech. Men struggled forward and stopped speechless, staring at the unmoved

figure in the door, and the grim muzzle of his six-shooter. It was full day now, and murder and riot by daylight are tremendous things; they make the soul of the coward quake. There were men here and there in the crowd who shivered, and some never forgot it until their dying day.

“Give us the nigger!”

Caleb made no reply; his finger was on the trigger. There was a wild shout and, as they broke and rushed, Caleb fired. One man went down, another fell back, the mob closed in, pandemonium reigned. Then there was a warning cry from the rear, the clear note of a bugle, the thunder of more horses' hoofs, the flash of bayonets, and a file of troopers charged down the long lane; there was a volley, a flash of fire and smoke. Men mounted and rode for life, and others fell beneath the clubbed bayonets into the trampled dust.

In the doorway Caleb Trench stood, white and disheveled, with blood on his forehead, but still unharmed.



## XXI

COLONEL ROYALL was reading an extra edition of the morning paper; it contained a full account of the attempted lynching, and the timely arrival of the militia. The colonel was smoking a big cigar and the lines of his face were more placid than they had been for a week, but his brow clouded a little as he looked down the broad driveway and saw Jacob Eaton approaching. Jacob, of late, had been somewhat in the nature of a stormy petrel. Nor did the colonel feel unlimited confidence in the younger man's judgment; he was beginning to feel uneasy about certain large transactions which he had trusted to Jacob's management.

The situation, however, was uppermost in the colonel's mind? He dropped the paper across his knee and knocked the ashes out of his cigar. Jacob's smooth good looks had never been more apparent and he was dressed with his usual elaborate care. Nothing could have sat on him more lightly than the recent verdict, and the fact that he was out on bail. Colonel Royall, who was mortified by it, looked at him with a feeling of exasperation.

"Been in town?" he asked, after the exchange of greetings, as Jacob ascended the piazza steps.

"All the morning," he replied, sitting down on the low balustrade and regarding the colonel from under heavy eyelids.

"How is it? Quiet?" The colonel was always sneakily conscious of a despicable feeling of panic when Jacob regarded him with that drooping but stony stare.

"Militia is still out," said Jacob calmly, "and if the disturbances continue the governor threatens to call on Colonel Ross for a company of regulars."

"He's nervous," commented the colonel reflectively. "I don't wonder. How in the mischief did Aylett happen to be near Yarnall?"

Jacob looked pensive. "I don't know," he said; "I was in the rear corridor by the State's Attorney's room. They say Aylett was crossing the quadrangle just in front of Yarnall."

The colonel smoked for a few moments in silence, then he took his cigar from between his teeth. "What were you doing in the corridor?" he asked pointedly.

Jacob took a cigarette out of his pocket and lit it. "I was going to Colonel Coad's office, and I was the first to try to locate the shots outside the courthouse."

"I was in Judge Ladd's room," said Colonel Royall deliberately, "and I reckon that was as near as I want to be. I see by this"—he touched the paper with his finger—"that Caleb Trench induced Juniper to surrender to the authorities, and he says that he's sure he can prove the negro's innocence."

Jacob laughed, showing his teeth unpleasantly. "Probably he can," he remarked; "he's under arrest himself."

The colonel swung around in his chair. "Caleb Trench? What for?"

"For the assassination of Yarnall."

"By gum!" said the colonel in honest wrath, "what rotten nonsense!"

Jacob said nothing; he continued to smoke his cigarette.

The colonel slapped the paper down on his knee. "When men's blood is heated, they run wild," he said. "Why, Trench was Yarnall's counsel; he'd won the case for him—he—"

"Just so," replied Jacob coolly; "you forget that Aylett had insulted Trench twice in court, that he despised him as heartily as I do and that Aylett was almost beside Yarnall!"

The colonel pushed his hat back on his head and thought. He knew that Eaton hated Trench, but his mind did not embrace the enormity of a hatred that could revel in such an accusation. "The charge then must be that he meant to hit Aylett," he said, after a long moment, "and that makes him take big risks. These Yankees aren't good shots, half of 'em."

Jacob laughed unpleasantly. "Well, I reckon he wasn't," he remarked, and as his thoughts went back to a certain gray morning in Little Neck Meadow, his face reddened.

The colonel wriggled uncomfortably in his chair. "What did he want to shoot Aylett for?" he demanded.

“You’ve forgotten, I suppose, that Aylett called him a liar twice in court,” said Jacob dryly.

“He didn’t shoot you for a greater provocation,” retorted the colonel bluntly.

“He was the only man found in the court-room with the smoking weapon,” said Jacob. “Juniper ran away, and he’s been protecting Juniper,—buying him off from testifying, I reckon.”

“I can’t understand why either he or Juniper was in the court-room,” declared the colonel, frowning.

“Had good reason to be,” replied Jacob tartly, tossing his cigarette over the rail.

“See here, Jacob,” said the colonel solemnly, “I’m an old man and your relation, and I feel free to give you advice. You keep your oar out of it.”

Jacob laughed. “I’ve got to testify,” he drawled.

“Good Lord!” exclaimed the colonel.

Then followed several moments of intense silence.

“Where’s Diana?” asked the young man at last, rising and flipping some ashes off his coat.

“In the flower garden,” replied her father thoughtfully, “she’s seeing to some plants for winter; I reckon she won’t want you around.”

Jacob looked more agreeable. “I think I’ll go all the same,” he said, strolling away.

The colonel leaned forward in his chair and called after him. “Jacob, how about these stocks? I wanted to sell out at eight and three quarter cents.”

Eaton paused reluctantly, his hands in his pockets. “You can next week,” he said; “the market’s slumped this. You’d better let me handle that deal right through, Cousin David.”

“You’ve been doing it straight along,” said the colonel. “I reckon I’d better wake up and remember that I used to know something. I’m equal to strong meats yet, Jacob, and you’ve been putting me on pap.”

“Oh, it’s all right!” said Jacob. “I’ll sell the shares out for you,” and he departed.

The colonel sat watching him. The old thought that he would probably marry Diana no longer had any attractions for him; he had lost confidence in Jacob’s sleek complacency, and the recent testimony in court had shaken it still more. Besides, he had a fine pride of family, and the verdict against Jacob had irritated and mortified him. Nothing was too good for Diana, and the fact that there was the shadow of a great sorrow upon her made her even dearer to her father. He had never thought that she had more than a passing fancy for Jacob, and lately he had suspected that she disliked him. The colonel ruminated, strumming on the piazza balustrade with absent fingers. Before him the long slope of the lawn was still as green as summer, but the horse-chestnut burs were open and the glossy nuts fell with every light breeze. Across the road a single gum tree waved a branch of flame.

He was still sitting there when Kingdom-Come brought out a mint julep and arranged it on the table at his elbow.

The colonel glanced up, conscious that the negro lingered. “What’s the matter, King?” he asked good-humoredly.

“News from town, suh,” the black replied, flicking some dust off the table with his napkin. “Dey’s tried ter storm de jail, suh. De militia charged, an’ deyer’s been right smart shootin’.”

Colonel Royall looked out apprehensively over the slope to the south which showed in the distance the spires and roofs of the city. A blue fog of smoke hung low over it and the horizon beyond had the haze of autumn. “Bad news,” said he, shaking his head.

“It suttinly am, suh,” agreed Kingdom-Come, “an’ dey do say dat Aunt Charity ez gwine ter leave Juniper now fo’ sho.”

“She’s left him at intervals for forty years,” said the colonel, tasting his julep; “I reckon he can stand it, King.”

The negro grinned. “I reckon so, suh,” he assented. “Juniper dun said once dat he’d gib her her fare ef she’d go by rail an’ stay away!”

Just then Miss Kitty Broughton stopped her pony cart at the gate and came across the lawn. The colonel rose ceremoniously and greeted her, hat in

hand.

“Where’s Diana?” Kitty asked eagerly.

“In the rose garden with Jacob, my dear,” said the colonel.

Kitty made a grimace. “*Noblesse oblige*,” she said; “I suppose I must stay here. Colonel, isn’t it all dreadful? Grandfather can’t keep from swearing, he isn’t respectable, and Aunt Sally has Sammy.” Kitty blushed suddenly. “I took Shot, the dog, you know; they won’t let Mr. Trench have bail.”

“It’s the most inexplicable thing I know of,” said the colonel, stroking his white moustache. “Why Caleb Trench should shoot his own client—”

Kitty stared. “Why, Colonel, you know, don’t you, that the arrest was made on Jacob Eaton’s affidavit?”

Colonel Royall leaned back in his chair, and Kitty found his expression inexplicable. “How long have you known this?” he asked.

“Since morning,” said Kitty promptly. “Grandpa told us; he’s furious, but he says it’s a good case. It seems Mr. Eaton saw Mr. Trench first in the court-room. The two shots were fired, you know, in quick succession. Juniper was seen by some one at the window just before; no one saw who fired the shots, but Mr. Eaton met Caleb Trench leaving the room. No one else was there, and Mr. Trench says that Juniper did not fire the shots. Juniper is half dead with fright, and in the jail hospital; he went out of his head this morning when the mob tried to rush the jail. It’s awful; they say six people were killed and three wounded.”

“Caleb Trench wounded two last night,” said the colonel. He had the air of a man in a dream.

“They won’t die,” replied Kitty, cold-bloodedly, “and it’s a good thing to stop these lynchers. Wasn’t Mr. Trench grand? I’m dying to go and see him and tell him how I admired the account of him facing the mob. What does Di think?”

“She hasn’t said,” replied the colonel, suddenly remembering that Diana’s silence was unusual. He looked apprehensively toward the rose garden and saw the flutter of a white dress through an opening in the box hedge. “Kitty,” he added abruptly, “you go over there and see Diana and ask her yourself.”

“While Mr. Eaton’s there?” Kitty giggled. “I couldn’t, Colonel Royall; he’d hate me.”

The colonel looked reflectively at the young girl sitting in the big chair opposite. She was very pretty and her smile was charming. “I don’t think he’d hate you, my dear,” he remarked dryly, “and I know Diana wants to see you.”

Kitty hesitated. “I don’t like to interrupt,” she demurred.

“You won’t,” said the colonel, a little viciously.

Kitty rose and descended the steps to the lawn, nothing loath; then she stopped and looked over her shoulder. “Mr. Trench will be tried immediately,” she said; “the Grand Jury indicted him this morning.”

The colonel’s frown of perplexity deepened. “I call it indecent haste,” he said.

“Grandpa is to defend him,” said Kitty, “and we’re proud of him. I think Caleb Trench is a real hero, Colonel Royall.”

The colonel sighed. “I wish Jacob was,” he thought, but he did not speak.

## XXII

JUDGE HOLLIS was writing in his office. He had been writing five hours and the green shade of his lamp was awry, while his briar-wood had just gone out for the ninety-ninth time. Some one knocked twice on the outer door before he noticed it. Then he shouted: "Come in!"

After some fumbling with the lock the door opened, and Zeb Bartlett's shambling figure lurched into the room. He came in boldly, but cowered as he met the judge's fierce expression. The old man swung around in his chair and faced him, his great overhanging brows drawn together over glowing eyes, and his lip thrust out.

The boy was stricken speechless, and stood hat in hand, feebly rubbing the back of his head. The judge, who hated interruption and loathed incompetence, scowled. "What d'ye want here?" he demanded.

Zeb wet his parched lips with his tongue. "I want the law on him," he mumbled; "I want the law on him!"

"What in thunder are you mumbling about?" demanded the old man impatiently; "some one stole your wits?"

"It was him did my sister wrong," Zeb said, his tongue loosed between fear and hate; "it's him, and I want him punished—now they've got him!"

Judge Hollis threw the pen that he had been holding suspended into the ink-well. "See here, Zeb," he said, "if you can tell us who ruined your poor crazed sister, why, by the Lord Harry, I'd like to punish him!"

Zeb looked cunning; he edged nearer to the desk. "I can tell you," he said, "I can tell you right cl'ar off, but—I want him punished!"

"May be the worst we can do is to make him take care of the child," said Judge Hollis.

"That won't do," said Zeb, "that ain't enough; he left her to starve, and me to starve—she tole me who it was!"

Judge Hollis was not without curiosity, but he restrained it manfully. He even took his paper-cutter and folded the paper before him in little plaits. "Zeb," he said, "it's a rotten business, but the girl's dead and Caleb Trench has taken the child and—"

"It's him, curse him, it's him!" Zeb cried, shaking his fist.

Judge Hollis dropped the paper-cutter and rose from his chair, his great figure, in the long dark blue coat, towering.

"How dare you say that?" he demanded, "you cur—you skunk!"

But Zeb was ugly; he set his teeth, and his crazy eyes flashed. "I tell you it's him," he cried; "ain't I said she tole me?"

"Damn you, I don't believe you," the judge shouted; "it's money you want, money!" He grabbed the shaking boy by the nape of the neck, as a dog takes a rat, and shook him. "You clear out," he raged, "and you keep your damned lying, dirty tongue still!" and flung him out and locked the door.

Then, panting slightly, he went back to his seat, swung it to his desk again, rolled back his cuffs and wiped the perspiration from his forehead. Then he pulled his pen out of the ink-well and shook the surplus ink over the floor and began to write; he wrote two pages and dropped his pen. His head sank, his big shoulders bowed over, he was lost in thought. He thought there for an hour, while nothing stirred except the mouse that was gnawing his old law-books and had persistently evaded Miss Sarah's vigilance. Then the judge brought his great fist down on his desk, and the ink-well danced, and the pen rolled off.

"My God!" he exclaimed to himself, "I've loved him like a son, the girl was treated like hell—it can't be true!"

He rose, jammed his hat down on his head and walked out; he walked the streets for hours.

It was very late when he was admitted to the old jail. It was past time to admit visitors, but the judge was a privileged person. The warden gave up his private room to him and sent for the prisoner. The lamp burnt low on the desk, and the old judge sat before it, heavy with thought. He looked up mechanically when Caleb came in with his quick firm step and faced him.



The two greeted each other without words, and Caleb sat down, waiting. He knew his visitor had something on his mind.

Judge Hollis looked at him, studying him, studying the clear-cut lines, the hollowed cheeks, the clear gray eyes, the chiseled lips,—not a handsome face, but one of power. The sordid wretchedness of the story, like a foul weed springing up to choke a useful plant, struck him again with force and disgust.

“I’ve just seen Zeb Bartlett,” he said; “he’s raving to punish the man who wronged his sister. He says you did it!” The old man glared fiercely at the young one.

Caleb’s expression was slightly weary, distinctly disappointed: he had hoped for something of importance. The story of Jean Bartlett was utterly unimportant in his life. “I know it,” he said briefly; “it is easy to accuse, more difficult to prove the truth.”

The judge leaned forward, his clasped hands hanging between his knees, his head lowered. “Caleb,” he said, “maybe it’s not right to ask you, but, between man and man, I’d like to know God’s truth.”

Caleb Trench returned the old man’s look calmly. “Judge,” he said, “have you ever known me to steal?”

The judge shook his head.

“Or to lie?”

Again the judge dissented.

“Then why do you accuse me in your heart of wronging a half-witted girl?” he asked coldly.

The judge rose from his chair and walked twice across the room; then he stopped in front of the younger man. “Caleb,” he said, “by the Lord Harry, I’m plumb ashamed to ask you to forgive me.”

Caleb smiled a little sadly. “Judge,” he said, “there’s nothing to forgive. Without your friendship I should have been a lost man. I understand. Slander has a hundred tongues.”

“Zeb Bartlett is shouting the accusation to the four winds of heaven, I presume,” said the judge, “and there’s the child—you—”

“I’ve taken him,” said Caleb, “and I mean to keep him. I’ve known poverty, I’ve known homelessness, I’ve known slander; the kid has got to face it all, and he won’t do it without one friend.”

The judge looked at him a long time, then he went over and clapped his hand down on his shoulder. “By the Lord Harry!” he said, “you’re a man, and I respect you. Let them talk—to the devil!”

“Amen!” said Caleb Trench.

## XXIII

WHEN the case of the Commonwealth versus Caleb Trench was called, it was found necessary to convene the court in the old criminal court-room in the northeast corner of the quadrangle. The room from which Yarnall had been shot, known as Criminal Court Number One, was too open to the square, and too conveniently located as a storm center. The old court-room facing northeast was smaller, and so poorly lighted that dull mornings it was necessary to burn lights on the judge's desk and at the recorder's table. It opened on the inner court, and the only thing seen from the window was the tree of heaven, which was turning a dingy yellow and dropping its frond-like leaves into the court below. During half the trial Aaron Todd's son and another youngster sat in this tree and peered in the windows, the room being too crowded for admittance; but when Miss Royall testified even the windows were so stuffed with humanity that the two in the tree saw nothing, and roosted in disappointment.

In the quadrangle before the court-house, and in a hollow square around it, were the troops, through the whole trial, and after a while one got used to the rattle of their guns as they changed at noon. Men fought for places in the court-room, and the whole left-hand side was packed solid with young and pretty women. The figure of Caleb Trench, since his famous Cresset speech, had loomed large on the horizon, and the account of the frustrated lynching added a thrilling touch of romance. Besides, Jacob Eaton was to testify against him, and that alone would have drawn an audience. The thrill of danger, the clash of the sentry's rifle in the quadrangle, the constant dread of riots, added a piquancy to the situation that was like a dash of fine old wine in a *ragout*. The room was packed to suffocation, and reporters for distant newspapers crowded the reporters' table, for the case was likely to be of national interest. The doors and the corridors were thronged, and a long line waited admission on the staircase. Some failed to get in the first or the second day, and being desperate stayed all night outside, and so were admitted on the third day.

Judge Hollis had charge of the defense, and it was expected that he would ask a change of venue, but he did not. Instead he tried to get a jury, using all his privileges to challenge. It was almost impossible to get an unbiased juror and, at the end of a week, he had exhausted two panels and was on another. On the fifteenth day he got a jury and the public drew breath. Judge Ladd was on the bench,—a fair but choleric man, and known to be rather unfavorable to the prisoner. Bail had been absolutely refused, and Caleb Trench shared the fate of the other prisoners in the jail, except, indeed, that he was doubly watched, for the tide of men's passions rose and fell. He had been almost a popular idol; he was, therefore, doubly likely to be a popular victim, and Aylett went far and wide declaring that he believed the shot was intended for him, and that Yarnall had suddenly passed between him and the window at the fateful moment.

On the other hand Jacob Eaton spoke freely of Jean Bartlett and her child. The scandal traveled like a fire in prairie grass, and Jean, who had been in life the Shameful Thing of Paradise Ridge, became now a persecuted martyr, and Trench the monster who had ruined her life. The fact that he had taken the child, instead of being in his favor, recoiled strongly against him. He was watched as he sat in the prisoners' dock, and every expression of his stern and homely face was noted; the slight awkwardness of his tall figure seemed more visible, and men were even startled by his eyes. It may be added that the women found them most interesting, especially when that sudden light flashed into them that had cowed so many of the weaker brethren. Like all strong, blunt men, Caleb had made his enemies, and now, in the hour of his need, they multiplied like flies. Misfortune breeds such insects as readily as swamplands breed mosquitoes.

"I'd be ashamed to say I knew that shyster," one of the Eaton faction said in the crowded court-room at noon recess, and Dr. Cheyney heard him.

The old man snorted. "I'm almighty glad he don't know you," he said dryly.

The next day they began to take testimony. Juniper, the one person who had been in the court-room at the time of the assassination, could not be called at once, as he was still in the hospital, but he had made a deposition that he did not know who fired the shots, that his back was turned and that when he heard the reports he ran. This impossible statement could not be shaken even by threats. Later, he would go on the stand, but Judge Hollis had given

up hope of the truth; he believed, at heart, that Juniper was crazed with fright. Had he been hired to fire the shots? The judge could not believe it, for he felt tolerably certain that Juniper would have hit nothing.

The general belief outside, however, was that Caleb had used his opportunity well and threatened or bribed the negro into making his remarkable affidavit. In fact, Caleb was himself profoundly puzzled, yet the testimony of Eaton, given clearly and apparently dispassionately, was damaging. He had been in Colonel Coad's office, he was coming along the upper corridor, heard the shots and ran to the court-room, reaching the door immediately before Sergeant O'More of the police; both men met Caleb Trench coming out of the room, and on the floor, by the window, was the revolver. No one else was in sight. Juniper's flight had been made at the first shot, and seven minutes only had elapsed before any one could reach the court-room. Caleb Trench had been seen to enter the building at twenty-five minutes to one o'clock, and his time up to the assassination was unaccounted for. He said that he had been in the basement of the building, but his statement did not give any legitimate reason for the length of time between his entrance and his appearance in the court-room. It took, in reality, just two minutes to reach the court-room from the lower door by the staircase. Trench made no explanation of the use of that twenty-five minutes, even to his counsel. Judge Hollis stormed and grew angry, but Caleb pointed out the fact that the pistol was not his, and he could prove it; this made the judge's language absolutely profane. The obstinacy of the prisoner resulted in a distinct collapse at that point in the trial; it was evident that the time must be accounted for, since the circumstantial evidence was strong.

The public prosecutor, Colonel Coad, was pressing in, scoring point by point, and Judge Hollis fought and sparred and gave way, inwardly swearing because he had to do so. Meanwhile, the prisoner was serene; he took notes and tried to help his counsel, but he showed no signs of trepidation and he would not admit any use for that time in the basement of the court-house. Judge Hollis could not, therefore, put him on the stand on his own behalf, and the old man grew purple with wrath.

"Look here, Mr. Trench," he said, with bitter formality, "what damned crotchet have you got in your head? What fool thing were you doing?"

Working a penny-in-the-slot machine in the basement? Out with it, or I walk out of this case.”

“And leave me to the tender mercies of my enemies,” said Caleb quietly; “no, Judge, not yet! I can’t see my way clear to tell you.”

“Then I’m darned if I see mine to defend you!” snapped the judge.

They were in the prisoner’s cell at the jail, and Caleb got up and went to the little barred window which overlooked the dreary courtyard where the prisoners were exercising. After a moment, when he seemed to mechanically count the blades of grass between the flagstones, he turned. The judge was watching him, his hat on like a snuffer, as usual, and his hands in pockets.

“Judge Hollis,” said Caleb quietly, “if I told you where I was, another witness would have to be called, and neither you nor I would wish to call that witness.”

The judge looked at him steadily; Caleb returned the look as steadily, and there was a heavy silence.

“By the Lord Harry!” said the judge at last, “I believe you’d let ’em hang you rather than give in a hair’s breadth.”

Then Caleb smiled his rare sweet smile.

The second long week of the trial wore to its close, and the web of circumstantial evidence was clinging fast about the prisoner. Witnesses had testified to his character and against it. The name of Jean Bartlett ran around the court, and some men testified to a belief that Caleb was the father of the child he had befriended. Judge Hollis did not attempt to have the testimony ruled out; he let it go in, sitting back with folded arms and a grim smile. He cross-examined Jacob Eaton twice, but made nothing of it. Jacob was an excellent witness, and he showed no passion, even when witnesses described the duel and his conduct to show his motive in attacking Trench.

Sunday night Judge Hollis received a telephone message from Colonel Royall, and, after his early supper, the judge ordered around his rockaway and drove over, with Lysander beside him to hold the reins. He found Mrs. Eaton in the drawing-room with Diana, and was coldly received by Jacob’s mother; she resented any attempt to line up forces against her son, and she

regarded the defender of Caleb Trench as an enemy to society. The judge bowed before her grimly.

“I thought you were in the city, madam,” he remarked.

Mrs. Eaton threw up her hands. “With that mob loose, and the soldiers? My dear Judge! I wouldn’t stay for a million, and I’m a poor woman. Good gracious, think of it! It’s just as I’ve always said,—you go on letting in the shiploads of anarchists and we’ll all be murdered in our beds.”

“Madam,” said the judge grimly, “the only thing I ever let in is the cat. Sarah and the niggers look after the front door.”

Mrs. Eaton raised her eyebrows. “I can’t understand you,” she said, with distant politeness; “I refer to immigration.”

“And I refer to immoderation, madam,” snapped the judge.

Diana intervened. “Pa wants you,” she said sweetly, and went with him across the hall to the library. At the door she paused. “Judge Hollis,” she said, “does the trial hinge on the question of the time in the basement—before—before Mr. Trench went up-stairs?”

The judge scowled. “It does,” said he flatly, “and Caleb’s a fool.”

Diana smiled faintly; she looked unusually lovely and very grave. “Judge,” she said, “no matter what pa says, I’ll do it all; he’s demurred,” and with this enigmatical sentence she thrust the judge inside the door and closed it.

Monday the court met at noon and the throng was greater than ever. Report had it that the case was going to the jury, and men had slept on benches in the square. The morning papers reprinted Caleb’s famous speech at Cresset’s and the account of the stand he had made in the face of the would-be lynching party. Fed with this fuel, party feeling ran high; besides, the Yarnall faction was deeply stirred. It seemed as if this change in events had swept away the chance of punishment for Jacob Eaton, who was figuring largely and conspicuously in this trial and who had caught the public eye. Moreover, he had been industrious in circulating the scandalous tale of Jean Bartlett. The court-room buzzed. Three times Judge Ladd rapped for order and finally threatened to clear the court-room. This was the day that the crowd in the windows shut off all view for those in the tree of heaven. It

was a hot autumn day and the air was heavy. Stout men like Judge Hollis looked purple, and even Caleb flushed under the strain.

Colonel Coad cross-examined two witnesses in a lengthy fashion that threatened to exhaust even the patience of the court, and Judge Hollis was on his feet every few minutes with objections. The judge was out of temper, nervous and snappy, yet triumph glowed in his eyes, for he scented battle and victory at last.

The dreary day wore to an uneventful end, and there was almost a sob of disappointment in the packed and sweltering mass of humanity. One woman fainted and the bailiffs had to bring ice-water. Outside, the rifles rattled as the guards changed.

At five o'clock, just before the belated adjournment hour, Judge Hollis rose and asked the clerk to call a new witness for the defense. There was a languid stir of interest, the judge looked irate, the jurors shifted wearily in their chairs. The clerk called the witness.

“Diana Royall.”

The sensation was immense; the court-room hummed, the weariest juror turned and looked down the crowded room. Very slowly a way was made to the witness-stand, and a tall slight figure in white, with a broad straw hat and a light veil, came quietly forward.

Caleb Trench turned deadly white.

In a stillness so intense that every man seemed to hear only his own heart beat, the clerk administered the oath and the new witness went on the stand.



## XXIV

JUDGE HOLLIS, standing before the witness-stand, looked at Diana with fatherly eyes; his manner lost its brusqueness and became that of the old-fashioned gentleman of gallantry. Diana herself looked across the courtroom with a composure and dignity of pose that became her. Every eye was riveted upon her. For days the papers had reeked with the story of Jean Bartlett and her child, yet here—on the stand for the prisoner—was one of the first young ladies in the State.

Judge Hollis had been taking notes, and he closed his notebook on his finger and took off his gold-rimmed spectacles.

“Where were you on the afternoon of Tuesday, August eighteenth, about one o’clock, Miss Diana?”

Diana answered at once, and in a clear low voice. “In this building, Judge, in a small room on the lower floor.”

“A small room on the lower floor? Let us see, Miss Diana,”—the judge tapped his book with his spectacles,—“the room to the right, was it, at the end of the west corridor?”

Diana explained the position of the room and the vicinity of the staircase.

“Ah,” said the old lawyer, with the air of having made a discovery, “to be sure; it’s the room we call ‘the cage’—on the basement floor. Rather a dreary place to wait, Miss Diana: how long were you there?”

“I am not sure,” she replied, coloring suddenly, “but certainly an hour. It was a little after twelve when we reached the building, and I heard the clock strike one just before the shots were fired.”

“Ah! You heard the shots?”

“I did.”

“How many did you hear, Miss Diana?” the judge asked in his easiest, most conversational tone.

“Two, Judge, two reports in quick succession.”

“And you heard only two?” his tone was sharp, incisive; it cut like a knife.

Diana threw him a startled glance, but she was still composed, though the breathless silence in the room was deeply affecting.

“I heard but two,” she said firmly.

“How soon after one o’clock?” he demanded, his bony forefinger following her testimony, as it seemed, across the cover of the book he held.

“The clock in the hall had just struck.” Diana was holding every instinct, every thought, in hand. Her eyes never left his rugged face, yet, all the while, she was conscious of the court-room, growing dim in the early twilight, of the rows of upturned eager faces, but more conscious still of the pale face of Caleb Trench.

Judge Hollis made some notes, then he looked up suddenly. “Miss Royall,” he said formally, “do you know the prisoner at the bar?”

Diana drew a deep breath; she was aware of a hundred pairs of curious eyes. The awful silence of the room seemed to leap upon her and bear her down. She turned her head with an effort and met Caleb’s eyes. For a single second they looked at each other, with the shock of mutual feeling, then she answered, and her low voice reached the farthest corner of the crowded room.

“I do.”

Judge Hollis waited an instant; he let every word she said have its full effect and weight. “Did you see him upon the morning of the assassination?”

“I did.”

“In the basement of the court-house?”

“In the room which you call the cage, Judge Hollis,” she replied quietly, though she colored again; “I saw him there twice.”

“At what time?” the old man’s harsh voice rang, like the blow of a sledge-hammer.

“He was with me in that room when the clock struck one, and we both heard the shots fired.” Diana spoke gently, but her voice thrilled; she knew

that, in the face of the scurrilous attacks upon Caleb Trench, her position was at once courageous and perilous.

“He was in the room in the basement with you then, when Yarnall was shot,” said Judge Hollis, his eyes kindling with triumph.

“He was.”

She had scarcely uttered the words, and Caleb Trench’s white face had flushed deeply, when some one cheered. In an instant there was a wave of applause. It swept through the room, it reached the corridors and descended the stairs; the sentries heard it in the quadrangle. Men stood up on the rear benches and shouted. Then Judge Ladd enforced silence; he even threatened to clear the court by force and lock the doors, and like a wave of the sea, the wild enthusiasm receded, only to gain force and roll back at the first opportunity.

Meanwhile Colonel Royall sat behind the witness-stand, leaning on his cane, his head bowed and his fine aristocratic face as bloodless as a piece of paper. There were many who pointed at him and whispered, and the whisper traveled. “Was he thinking of his girl’s mother?” That foul hag, the world, has a heart that treasures scandal, and the lips of malice!

The court-room seethed with excitement, but silence reigned again; the lights were flaring now on the judge’s desk and on the reporters’ table; the busy scratch of the stenographers’ pens was audible. Diana was still on the stand, and she explained how Caleb Trench left her to ascertain the results of the shots, and how he returned and got her father and herself into their carriage. Her testimony was simple and direct, and, though she was briefly cross-examined by Colonel Coad, the prosecuting attorney, she sustained her position and suffered nothing at the hands of that pompous but courteous gentleman.

When Diana rose from the witness-stand and walked back to her seat between her father and Miss Sarah Hollis, there was another ripple of the wave of applause, but it was quickly suppressed. She leaned back in her chair and clasped her hands tightly in her lap, struggling with herself, for she was conscious of a new tumult of feeling that submerged even thought itself; and it seemed to her that her heart beat, not only in her bosom, but in every quivering limb. Was it possible, she asked herself, that the tumult in

the court-room had frightened her? Or the fact that on her word alone hung a man's life? No, no, not altogether; in that moment, when their eyes met, she had seen again the lonely trail and heard the dull passion in the man's voice when he told her that he loved her; and suddenly, in one of those supreme moments of self-revelation, she knew that nothing mattered to her, neither his humble struggle, his poverty, the accusation against him, not even Jean Bartlett's story, nothing—nothing counted but that one primitive, undeniable fact of his love for her. Before it she felt suddenly defenseless, yet another self was awakening to vigilance in her heart and summoning her back to the battle of resistance. She had testified for him, and every face in the court-room turned toward her, strained to watch her, told her how great had been the weight of her testimony. She had deceived herself with the thought that only her duty brought her, her honor, her determination that justice should be done. Yet she knew now that it was not that, but something mightier, deeper, more unconquerable,—something that, to her shame, refused even to consider the charges against him, and, instead, drew her to him with a force so irresistible that she trembled. She fought it back and struggled, resisted and tried to fix her attention on the proceedings of the court. But what was there in the man? What power that had won its way even with men and made him in so short a time a leader, and now—was it casting its spell over her?

Then she heard her father testifying briefly to the time that he left her, to his own visit to Judge Ladd's room, the announcement of the shooting, and his return to Diana. It was in the order of sustaining her testimony, but it was unnecessary, for she had already established an *alibi* for Trench.

Then followed a tilt between counsel on the admission of testimony from Dr. Cheyney as to the character of the defendant. Colonel Coad resisted, fighting point by point. Judge Hollis was determined and vindictive; he even lost his temper and quarreled with the Commonwealth attorney, and would, doubtless, have become profane if the court had not intervened and sustained him. In that moment the old lawyer triumphed openly, his eyes flashing, his face nearly purple with excitement. But the tilt was not over when the doctor was put on the stand. It became evident, in a moment, that Judge Hollis was bent on the story of Jean Bartlett, and Colonel Coad got to his feet and objected. Again silence reigned in the court-room, and they heard the tree of heaven creak under its weight of human fruit. Inch by inch

Colonel Coad fought and Judge Hollis won. Testimony had been admitted to damage the character of the prisoner; he was offering this in sur-rebuttal. It was half-past six when Colonel Coad gave up and the old judge put on his spectacles and stared into the spectacled eyes of the old doctor. The two eager, lined old faces were as wonderful in their shrewd watchfulness as two faces from the brush of Rembrandt. The dingy, green-shaded lights flickered on them, and the suppressed excitement of the room thrilled about them, until the very atmosphere seemed charged.

“You have heard the prisoner charged with the ruin of Jean Bartlett, Dr. Cheyney?” asked the judge.

“I have, sir.”

“You knew Jean Bartlett before and after the birth of her child; what was her mental condition at those times?”

“Before the birth of her child she was sane; afterwards she was ill a long time and never fully recovered from the fever and delirium.”

“Did she make any statement to you before the birth of the child?”

Colonel Coad objected; Judge Hollis said that he intended to show that the prisoner was not the father of the child. Objection not sustained. The judge looked sideways at Colonel Coad and coughed; the colonel sat down. The judge repeated his question.

“She did,” said Dr. Cheyney slowly, leaning a little forward and looking intently at the old lawyer. A breathless pause ensued.

“Please state to the court the condition and nature of that statement.” Judge Hollis’ tone was dry, rasping, unemotional.

Dr. Cheyney took off his spectacles, wiped them and put them in his pocket. “She was of sound mind and she stated her case to me, and I made her repeat it and write it down, because”—the old doctor’s face twisted a little into a whimsical grimace,—“I thought likely the child might be handed around considerable.”

A titter ran through the room. Judge Ladd rapped for order. Dr. Cheyney unfolded a slip of paper and smoothed it out.

“If it please the court,” he said quietly, “I have been very reluctant to produce this evidence.”

Colonel Coad rose. “Does it incriminate any person, or persons, not on trial before this court?” he asked.

“It does.”

“Then, your Honor, I object!” shouted the indignant Coad.

Judge Hollis turned to speak.

“The objection is sustained,” said the court.

The old lawyer for the defense turned purple again, and flashed a furious glance at Dr. Cheyney. The doctor smiled, his face puckering. The tense excitement and curiosity in the room found utterance in a sigh of disappointment. Judge Hollis slammed his papers on his desk and turned the witness over to the prosecution. Colonel Coad did not press the examination, and the old doctor went calmly back to his seat with his secret untold.

Hollis turned to the court. “Your Honor, I waive the right to sum up, and rest the case for the defense.”

An hour later Colonel Coad had closed for the prosecution and Judge Ladd charged the jury.

There had been no recess, and the crowded room was packed to suffocation. Everywhere were faces, white, haggard, intent with excitement, and the labored breathing of men who hung upon a word. A thunderstorm was coming on, and now and then a vivid flash flooded the room with light. At half-past eight Judge Ladd gave the case to the jury. The foreman rose and stated that the jury had reached a verdict without leaving the box.

There was an intense moment, and then Judge Ladd spoke slowly.

“Have you agreed upon a verdict?”

“We have, your Honor.”

“Is the prisoner at the bar guilty, or not guilty, as charged in the indictment?”

“Not guilty.”

The wave of passion and excitement broke, the court-room rose as one man; the shout was heard ten squares away, and the echo reached the farthest corner of the city. The bailiffs fought and struggled to keep order, for men would have carried the prisoner on their shoulders. He was the only one unmoved. He stood like a rock amid the surging crowd, and it seemed to Diana that he towered, with a certain simplicity and strength that made him seem at once apart from other men and above them. In her heart she wondered at her own temerity, when she had treated him with discourtesy. Here was a primitive man, and the primitive strength, the righteous force in him, held other men, as that strange gift of magnetism that wields and binds and moves millions till they seem but one.

She turned away, holding tightly to her father's arm, eager to escape, and begrudging the slow and tortuous passage to the door. Behind her and before her, on every hand, from lip to lip, ran the prisoner's name.

The colonel almost lifted Diana from the crowd into the carriage. Then he took his seat beside her and closed the door; slowly the horses made their way through the throng in the quadrangle. It was raining hard, and the wind blew the moisture across their heated faces.

"By gum!" said Colonel Royall, "they'll make him governor! But Jacob Eaton—Jacob Eaton!"

The old man was bewildered; he passed his hand over his face. Diana said nothing; the night blurred itself into the rain.

## XXV

IT was long past midnight when Mrs. Eaton went down-stairs for the fourth time to see if her son had returned home.

She was alone with the servants in the old Eaton house, which was three miles from Broad Acres, and she had not ventured out in the storm, which had been raging since early evening. The wind shook the old house at intervals with the moan of autumn in the gale, yet the roll of thunder recalled midsummer. Once she had looked out and, in a blinding flash, saw the old cottonwoods in front of the house stripped naked by the wind. There was a weird aspect to the world in that one fierce moment of illumination, and the tumult of sounds without, the creaking of the old house within, and the interminable ticking of the clocks recalled to her shrinking mind a memory of that other night, long ago, when she had been summoned home from Lexington, to find her husband's dead body in the long west room, and hear the whisperings of the terrified servants on the stairs. She knew that even now the negroes were locked in the wing, for they believed that on such nights Eaton walked, demanding the blood of the Yarnalls, and since Yarnall's death, violent as his own, they had shrieked at shadows.

Though she realized the folly of their superstitions, poor Jinny Eaton, alone and vaguely terrified, shivered too. Once she caught herself looking over her shoulder, and at last she cried hysterically. The wind, sweeping a long branch against the window, rattled the pane, and she started up, white with fright. In a sudden panic she rang for her maid, but no one answered, though she heard the blurred sound far in the distance; a glance at the clock told her it was nearly two. There was no light except in the hall and the library, where she herself had turned the electric switch, and she walked through all the other dim rooms, starting at a shadow, and looking over her shoulder when the floors creaked behind her. The house was much more richly furnished than Broad Acres, and everywhere she was surrounded with the luxuries that she loved. But alone there, in those desolate hours before the dawn, poor Jinny found no comfort in the things that had always seemed so comforting. In a vague way at first, and constantly resisting even



her own convictions, she had begun to feel a doubt of Jacob,—Jacob, who had been almost omnipotent to her, who had represented all her hopes and aspirations for years, and was, in her own eyes, the achievement of her life. To have her faith in him shaken was more bitter than death. And where was he? A premonition of evil oppressed her, as she wandered from place to place in restless unhappiness. Earlier in the night she had tried in vain to reach him over the telephone: now her only resource was to wait. She went from window to window, peeping out, her face drawn and haggard, and all the well-preserved traces of her former beauty lost in her pathetic dishevelment. She watched the morning dawn over the long fields that smoked with moisture, and she saw the broken limbs of the trees and the dead leaves that scurried before the wind, like the shriveled ghosts of summer. Then, just as she had given up the vigil, and sank in a disconsolate heap in the nearest chair, she heard his latch-key in the door, and running into the hall fell on his neck in a fit of hysterical weeping.

“Oh, Jacob,” she sobbed, “where have you been?”

“Don’t be silly!” he said crossly, and loosened her arms from his neck. “I’m dead beat; where’s Davidson? I want something.”

“The servants are not up yet,” his mother faltered. “I’ll get you some whiskey and soda, dear, and I’ll ring up Davidson. I’ve been up all night.”

Jacob flung himself into a chair and sat there waiting for her to bring the liquor and wait on him, as she had waited on him all his life. But, if she thought of this at all, it was only with an alarmed perception of the haggard moodiness of his expression. She saw that he had been drinking heavily already, but she dared not deny him more, and, in a way, she had faith in his own judgment in the matter. She had never known him to drink more than he was able to bear, and she did not know that Will Broughton said that Trench owed his life to Eaton’s tippling, and steadier nerves and a firmer hand would have dealt certain death. She came back at last, after a lengthy excursion to the pantry, and brought him some refreshments, arranged hastily on a little tray by hands so unaccustomed to any sick-room service that they were almost awkward. She put the things down beside him on the table and fluttered about, eager to help him and almost afraid of him, as she was in his ungracious moods. But her desire for news, the certainty that he could settle all her doubts, lent a pleasurable thrill of excitement to her

trepidation. Her news from the city had been vague, and the announcement of Caleb's acquittal had only filtered to her over a belated telephone to the housekeeper, but here was the fountainhead of all her information.

Meanwhile Jacob drank the liquor, but scarcely tasted the food, and his lowering expression disfigured his usually smooth good looks. He leaned back in his chair, staring absently at the bottle, and saying nothing, though he slowly closed and unclosed his hands, a trick of his when angry or deeply distraught. His mother, seeing the gesture, experienced another throb of dismay; something had happened, something which struck at the root of things, but what? She fluttered to the window and opening the shutter let in the pale gray light of morning, and as she did it she heard the servants stirring in the wing. At last she could endure suspense no longer.

"For heaven's sake, Jacob!" she cried, "what is the matter?"

He gave her a sidelong look from under heavy lids and seemed to restrain an impulse to speak out. "I suppose you know that rascal is acquitted?" he said curtly.

"I could scarcely believe it!" she replied, dropping into the chair opposite and pushing back her long full sleeves and loosening the ribbons at her throat, as if she suddenly felt the heat. "It seems impossible—after your evidence, too, and Governor Aylett's! That jury must have been full of anarchists."

"Full of asses!" snapped Jacob. "I fancy that you don't know that Diana Royall got up on the witness-stand and made a public exhibition of herself to clear him?"

"Diana?" Mrs. Eaton could not believe her ears.

"Yes, Diana," mocked her son, "our Diana. She went on the stand and created a sensation, took the court by storm and the city. Good Lord! Her name's in every club in the place."

"I—I can't believe it!" gasped his mother: "it's incredible—Diana Royall?"

"Incredible?" He rose, his face was white with fury. "Is it incredible? Do you remember her mother?"

Mrs. Eaton collapsed. "Jacob!" she breathed, "don't! It makes me shiver to think you might have married her."

“By God, I would to-day!” he cried, unable to restrain himself, “if only to break her spirit, to make her pay for this!”

“I can’t see what she knew,” Mrs. Eaton protested, “she—a young girl—and all this awful scandal about Jean Bartlett in the papers. In my day, a young girl would have been ashamed to show her face in the court.”

“Well, she wasn’t,” said Jacob dryly; “she appeared and told the court that at the hour of the shooting she was alone with Caleb Trench in the prisoners’ cage!”

“Merciful heavens!” ejaculated Mrs. Eaton faintly, “was David crazy to let her do it?”

“He’s an old fool!” said Jacob fiercely, “a damned old fool!”

Mrs. Eaton clasped her hands. “I’m only too thankful, Jacob, that you never married her!” she said devoutly.

“She’s refused me twice,” said Jacob grimly.

His mother uttered an inarticulate sound. And at that instant Davidson, an old gray-headed negro, appeared and Jacob called him. “Tell James to pack my suit-case,” he said sharply. “I’m going to Lexington this morning on the eight-forty.”

“Doctor Cheyney’s at the doah, suh,” said Davidson, “and would like ter see yo’.”

“What does that old fool want, I wonder?” Jacob remarked, as he rose to follow the negro into the hall.

“What are you going so soon for, Jacob?” his mother asked tremulously, “and can you—the bail—”

“I’ve arranged that,” said Jacob shortly, and flung himself out of the room.

Dr. Cheyney was looking out from under the cover of his buggy, and old Henk was breathing as if they had ascended the hill at an unusual gait.

“Morning, Jacob,” said the doctor pleasantly, “I stopped by to leave that book for your mother; Mrs. Broughton asked me to bring it when I passed yesterday and I clean forgot it.”

Jacob took the volume gingerly and looked politely bored. What in the world did the old fool mean by bringing books before seven o'clock in the morning?

Dr. Cheyney gathered up the reins: conversation seemed improbable, but he noticed that Davidson had gone back into the house. They were quite alone under the leaden sky, and the fresh wind blew moist across their faces.

"By the way," said the old man carelessly, "Judge Hollis has been with Juniper all night and at six this morning I heard he had a confession."

Jacob looked up into the doctor's eyes, his own narrowing. "Ah," he said, "I presume Judge Hollis makes out that Juniper did the shooting?"

"Don't know," said Dr. Cheyney, slapping the reins on Henk's broad back, "heard there would be an arrest to-day," and he drove slowly off, the old wheels sinking in first one rut and then another, and jolting the carriage from side to side.

Jacob Eaton stood looking after it a minute, then he turned and went into the house. It was now seven o'clock in the morning.

That evening, at the corresponding hour, Colonel Royall and Diana were dining alone at Broad Acres. The fact that Diana had been drawn into an undesirable publicity through her unexpected connection with the celebrated case troubled Colonel Royall profoundly. He was an old-fashioned Southern gentleman, and believed devoutly in sheltering and treasuring his beautiful daughter; every instinct had been jarred upon by the mere fact of her appearance on the witness-stand, and the circumstances, too, which made it practically his own fault. He blamed himself for his carelessness in ignorantly leaving her in a room used by the prisoners and, in fact, for taking her there at all. Yet he fully sympathized with her in her courage. Behind it all, however, was a memory which stung, and the knowledge that an old scandal is never really too dead to rise, like a phoenix, from its ashes.

All through the latter part of the summer the colonel had been unwell, and lately Diana had watched him with deep concern. Dr. Cheyney pooh-poohed her solicitude, said the colonel was as sound as a boy of ten, and only advised a cheerful atmosphere. But Diana, sitting opposite to him that day at dinner, saw how white and drawn his face was, how pinched his lips,

how absent his gentle blue eyes. She felt a sudden overwhelming dread and found it difficult to talk and laugh lightly, even when he responded with an eagerness that was an almost pathetic attempt at his natural manner.

They were just leaving the dining-room when Judge Hollis was announced, and Diana was almost glad, even of this interruption, though she was conscious of a sharp dread that they were to hear more of the trial. A glance at the judge's face as he stalked into the room confirmed this impression; he was no longer wholly triumphant, his rugged jaw was locked, and his shaggy brows hung low over his keen eyes. He walked into the center of the room as usual and banged his hat down on the table.

"David," he said abruptly, "how deep are you in with Jacob Eaton?"

Colonel Royall leaned forward in his chair, his hands clasping the arms. "Pretty well in," he said simply, "unless he's sold out my shares for me. I asked it, but he didn't do it last week."

"Oh, Lordy!" said the judge.

Diana went around the table and put her hand on her father's shoulder; her young figure, drawn to its full height, seemed to stand between him and impending misfortune.

"Juniper confessed this morning," said Judge Hollis harshly, forcing himself to his unpleasant task. "He was hired by Jacob Eaton to stand in the window of the court-room while Jacob fired from behind him and killed Yarnall."

Colonel Royall rose and stood, white as ashes. "My God!" he said.

Diana flung one arm around him. Judge Hollis stood looking at them a moment, then he cleared his throat, choked and went on.

"Caleb Trench to-day gave me the proofs that Aaron Todd and others have collected in regard to the Eaton Investment Company. The shares are not worth the paper they're written on, the company is a name, a bubble, a conspiracy. Not one cent will ever be recovered by the stockholders. Before nine o'clock this morning Jacob Eaton jumped his bail and ran. He can't be found—he—"

Diana suddenly stretched out a white arm before her father, as if she warded off a blow.

“Not another word, Judge,” she said sternly, “not a word—on your life!”

Judge Hollis uttered an exclamation and went over to the colonel’s side.

“Royall,” he said, “I’m a brute—but it’s God’s truth.”

“I know it,” said Colonel Royall, “and Jacob is of my blood—I feel the disgrace. Hollis, I feel the disgrace!” and he sat down and covered his face with his hands.

## XXVI

TWO mornings later Dr. Cheyney finished his breakfast in abstracted silence; not even Miss Lucinda's best rice griddle-cakes calling forth a word of approval. He had been talking over the telephone with Diana Royall. He finished his perfunctory examination of the daily paper, which was full of the flight of Jacob Eaton, the collapse of the Eaton Investment Company, the ruin of many prominent citizens, and the illness of Mrs. Eaton, who had been sent at once to a private sanitarium in the city.

The absorbing topic of Eaton had almost swallowed up the hitherto absorbing topic of Caleb Trench, though Caleb once more loomed up, directing the forces of the opposition.

The doctor folded the paper viciously and put it in his pocket, then he went out and climbed into his old buggy; he remembered quite distinctly that other morning when he had climbed into it at six o'clock to drive past the Eatons at a convenient hour. It might be said that the old man was so hardened in kindly iniquity that his conscience never suffered a single twinge. He and old Henk traveled more slowly up the hill, however, than on that previous occasion. As he approached Broad Acres he was struck with the dreary aspect of the autumn, and noticed that even the house itself looked less cheerful. He had seen Colonel Royall's name on every quotation of losses in the Eaton Company, and he drew his own conclusions.

At the door Diana met him. She was very pale.

"Dear Dr. Cheyney," she said, holding out both hands, "it's a relief to see you! I couldn't tell you over the 'phone—but—" She stopped, her lips trembled.

"What is it, Diana?" the old man asked gently.

"You know the Shut Room?" She looked up imploringly.

The silence of the house behind her seemed impenetrable; the long hall was vacant.

“I know,” said the doctor, and Diana understood that he knew even more than she did.

“He’s been sitting there alone; he will not let me stay with him,” she explained.

Dr. Cheyney stood a moment in some doubt, his hand at his chin in a familiar attitude of thought. His gospel refused to intrude into the confidence of any one, but there were cases where it might be an absolute necessity to interfere; the question which confronted him was whether or not this was one of these rare instances.

“How long has it been?” he asked finally.

“Two whole days,” replied Diana, “and he has scarcely eaten a mouthful. This morning he took only one cup of coffee; he looks like death. And you know how it is,—that room always affects him so, he never seems himself after he has been there. Sometimes,” she added passionately, “sometimes—I wish I could wall it up!”

“I wish you could!” said Dr. Cheyney devoutly.

“He sits there and looks out of the window: and twice he has forbidden me to come there,” Diana went on. “What can I do? It—it breaks my heart to see him so, and I’m sure my mother would not wish it, but he will not listen to that.”

The old doctor’s lips came together in a sharp line: without another word he turned and went up the stairs, reluctance in his step. At the landing was a stained glass window, the work of a famous European artist, and the doctor glanced at it with a certain weariness: personally he preferred plate glass and a long glimpse of level fields. He had reached the head of the second broad flight now, and the second door to the left of the wide hall was ajar, the door which was usually shut and locked. Where the doctor stood he could see across the room, for one of the window shutters was open, and it looked still as it had looked twenty-three years before, when Diana was born. There were the same soft and harmonious coloring, the same rich old furniture, the deep-hued Turkey rug on the polished floor, the spotless ruffled curtains. It was unchanged. Life may change a thousand times while these inanimate things remain to mock us with their endurance. The doctor moved resolutely forward and pushed open the door. Colonel Royall was



sitting erect in a high-backed chair in the center of the room, his hands clasping the arms, his head bowed, and his kindly blue eyes staring straight before him. He was singularly pale and seemed to have aged twenty years. Dr. Cheyney walked slowly across the room and laid his hand on his old friend's shoulder,—they had been boys together.

“Is it as bad as that, Davy?” he asked.

Colonel Royall roused himself with an apparent effort, and looked up with an expression in which patient endurance and great grief were strongly mingled. There was a touch, too, of dignity and reluctance in his manner, yet if he resented the doctor's intrusion he was too courteous to show it. “I'm pretty hard hit, William,” he said simply, “pretty hard hit all around; there's not much more to be said—that hasn't been said already on the street corners and in the market-place.”

His wounded pride showed through his manner without destroying his delicate restraint.

The doctor drew a chair beside him and sat down unasked. His sympathy was a beautiful thing and needed no voicing; it reached out imperceptible feelers and made him intuitively aware of the raw cut where not even tenderness may lay a finger.

“It's not all gone, David?” he inquired.

Colonel Royall ran his fingers through his thick white hair. “Pretty much all, William,” he said mechanically; “the place here is free, unmortgaged, I mean, and I reckon I can hold the property in Virginia, but the rest—” He raised his hands with a significant and pathetic gesture; he had fine old hands, and they had saved and directed from his youth up until now—to this end! To have trusted too deeply to an unworthy relative. William Cheyney leaned back in his chair; the awful actuality of the calamity was borne in upon him, and he remembered, even at that moment, his feeling of confidence in the stability of Colonel Royall's fortune, though, sometimes, he had doubted the colonel's money sense. There was sometimes, too, a terrible synchronism between ruin and mental collapse. He looked keenly at the old man before him, who seemed suddenly shrunken and gray, and he was troubled by the absent expression of the mild blue eyes; it was almost a look of vacancy. He laid his hand tenderly on the other's arm.

“Davy, man,” he said, “cheer up; there are worse things than financial losses.”

The colonel recalled himself apparently from very distant scenes and gazed at him reproachfully. “No one can know that better than I,” he said, with a touch of bitterness.

The doctor stretched out his hand with a bowed head. “Forgive me, David,” he said simply.

“There’s nothing to forgive,” replied Colonel Royall. “I let you say things, William, that other men could not say to me. But this is a bitter hour; my youth was not idle, I never knew an idle day, and I laid up a fortune in place of my father’s competence; I wanted to spend my old age in peace, and I trusted my affairs to a rogue. By gum, I hate to call my cousin’s son a rascal, but it seems he is! Not half the burden, though, lies in my own loss; it’s the thought of all these poor people he has ruined. Women and girls and old men who had savings—all gone in the Eaton Investment Company. What was it Caleb Trench stated about that company? It seems as if I couldn’t understand it all, I’m—I’m dizzy!” The colonel touched his forehead apprehensively.

The doctor regarded him thoughtfully over his spectacles, but he made no reservations. “Well, there isn’t any investment company; that’s about the size of it, David,” he said reluctantly. “People bought their shares and got—waste paper. They say Jacob used lots of the money campaigning; it isn’t charged that he wanted it for himself.”

“I’ve always held that blood was thicker than water,” said Colonel Royall, “and Jacob is a thief—a thief, sir!” he added, putting aside an interruption from the doctor with a wide sweep of the hand. “He’s robbed hundreds in this State because his name, his family, stood for honesty, business reputation, honor—and once I thought him fit to be my confidant!”

“We’re all deceived sometimes, David,” said the doctor soothingly, watching him with his keen skillful look, “we’re not omniscient; if we were, there’d be a lot more folks in jail, I reckon. I wouldn’t take it to heart; Jacob was on his own responsibility; they can’t blame you.”

“They ought to,” declared the colonel passionately. “I’m an old man, I’m his relative; it was my business to know what he was doing. And there’s

poor Jinny! I wanted her to come here, so did Diana, and you packed her off to a sanitarium.”

“To be sure,” said Dr. Cheyney grimly; “there’s no need of having three lunatics instead of one. Jinny’s nerves were about wrecked, she needs quiet, and she’ll come out well enough; it’s not Jinny I’m worried about. You let Jacob go, don’t you shoulder Jacob; no one thinks you’re to blame!”

Colonel Royall let his clenched hand fall on the arm of his chair. “The disgrace of it!” he said, and his lips trembled. “I’ve had my share of disgrace, William!”

Dr. Cheyney rose abruptly and walked to the window. Through the open shutter he could see, from this side of the house, the distant river, and near at hand was a tall jingo tree, yellow as gold with autumn. The other trees stood half naked against the sky. Below him a few white chickens strayed on the lawn unrebuked.

“You see more of the river since the railroad cut that last crossing,” Colonel Royall remarked irrelevantly, “and have you noticed how late the jingo stays in leaf? It was so the year that—” He stopped.

The doctor turned and fixed an irate eye upon him.

Colonel Royall was leaning forward, his eyes fixed absently on the window, yet he had felt instinctively the doctor’s attitude. “It may be folly,” he pleaded, as if in extenuation, “but I don’t want the place changed; it was like this when she was happy here and”—his head sank lower—“I’ve got to sell it! I’ve got to sell it—oh, my God!”

The doctor went over and took hold of him. “Davy!” he said fiercely, “Davy, you’ve got to get out of here! I’m glad it’s to be sold; have done with it! You’ve got to eat and drink and sleep or you’ll—”

He stopped, his hands still on his old friend’s, for Colonel Royall had slipped gently into unconsciousness, and lay white and helpless in the high-backed chair.

## XXVII

IT was late that night before Dr. Cheyney drove away from Broad Acres. Colonel Royall had rallied a little, and the doctor and the servants had put him to bed, not in the Shut Room, but in his own old four-poster that had belonged to his mother.

Before the doctor went away he had sent for a trained nurse and received and answered telegrams for Diana, who would not leave her father. At half-past ten the old doctor drove up to his own door, overtaxed and weary. As he climbed down from his old buggy his quick eye detected a brighter light than usual in his study window, and Miss Lucinda Colfax met him at the door.

"There's been a lady waiting to see you for two hours," she whispered, pointing mysteriously at the study door.

The doctor sighed as he slipped off his overcoat. It was some belated patient, of course, and a stranger, or Miss Lucinda would have named her. He looked pale and worn, and his white head was bowed a little with care, and the thought of old David, whom he loved, as he opened the study door and came into the circle of light from the student's lamp on the table. A fire burned on the hearth, and a woman sat in the great old-fashioned winged chair before it. As he entered she rose and stood facing him. There was a certain grace and ease in the tall figure and the black gown, but she wore a thick veil covering both her large hat and her face and throat. She made a movement, an involuntary one, it seemed, as the old man came toward her, and she saw the pallor and age in his face, a face which was full of a rare sweetness and strength. But, whatever her first impulse was, the sight of him seemed to arrest it, to turn it aside, and she drew back, laying her hand on the high chair and saying nothing.

"I am sorry that you had to wait so long, madam," Dr. Cheyney said, "but I was with a very sick man. What can I do for you? Will you be seated?" he added, drawing forward another chair.

“Thank you,” she replied in a low voice, sinking into the chair by which she stood. “I wanted to speak to you—about—about—some old friends.”

“Ah?” The doctor looked curiously at the veil. He could not distinguish a feature under it, but he seemed to be aware of the feverish brightness of her eyes.

“I—I used to know people here,” she began and stopped, hesitating.

He did not offer to help her.

“I was born near here; I used to know you.” She leaned forward, clasping her hands on her knee, and he noticed that her fingers trembled.

“I am an old man and forgetful,” he said pleasantly; “you must jog my memory. Who are the friends you wish to ask for?”

“Friends?” she repeated in a strange voice.

“You said friends,” he replied mildly.

She turned her face toward him, lifting her veil. “Don’t you know me?” she asked abruptly.

Dr. Cheyney, looking over the tops of his spectacles, eyed her gravely. It was a handsome face, slightly pale, with large eyes and full red lips, beautiful, no doubt, in its first youth, but lined now and hardened, with an indefinable expression which was elusive, fluttering, passionate, and most of all unhappy. The old man shook his head. She rose from her seat and crossing the room quickly, laid her large white hand on his arm. She was close to him now; he could see her breathing stir the laces on her bosom, and was sharply conscious of the agitation that possessed her and seemed to thrill her very touch upon his sleeve. She looked into his eyes, her own wild and sorrowful.

“Is it possible? Don’t you know me?”

He returned her gaze sorrowfully, his face changing sharply. “Yes,” he said soberly, after a moment, “I do now, Letty.”

“Letty!” She bit her lips, with a little hard sob, and her fingers fell from his arm. “My God!” she cried, “how it all comes back! No one has called me that in twenty years.”

Dr. Cheyney made no responsive movement or gesture; he stood looking at her quietly, curiously, a little sadly. He noted the dignity of figure, and certain fine lines of beauty that had rather matured than diminished, yet the change in her was for the worse in his eyes. Whatever there had been of passion and vanity and waywardness in her face in her youth had crystallized with maturity; there was a palpable worldliness in her manner which sharpened his conception of her as she must be now. The long gap in the years since he had known her as she was, until now, when she must be another person, was opened suddenly by the realization of the change in her, and it seemed to him that only a woman could change so much. Deeply moved herself, she was only half conscious of the criticism of his glance; she came back across the room after a moment and stood beside him, looking at the falling embers, the glow of the fire acting weirdly in its illumination of her face.

“Tell me about him,” she said in a low voice; “I know he has lost nearly everything.”

Dr. Cheyney’s lips tightened a little, and he frowned. “Why do you want to know?” he asked gravely.

She blushed deeply and painfully. “You mean I have no right?”

He nodded, looking at the fire.

“Perhaps, I haven’t,” she admitted quickly, pleadingly. “But there is Diana—has he made her hate me?”

“She thinks you dead,” Dr. Cheyney replied quietly.

“Dead?” She shuddered, looking up with frightened eyes. Then her face blazed angrily. “What right had he to do it? What right—to make her believe a falsehood?”

The old man’s eyes met hers gravely, rebukingly. “Wasn’t it the best way, Letty?” he asked gently.

Her blush deepened again, her brow, her chin, even her throat were crimson. She bit her quivering lip until the blood came. “You are very cruel,” she said bitterly, “you righteous people!”

Dr. Cheyney leaned heavily on the mantel, his eyes on the fire. “Would you have had us tell a little innocent child that, Letty? Tell her that her mother

had deserted her and brought shame upon her?”

“Do you mean that she has never known?” she cried, amazed.

“Never. David did not wish her to know, and we respected his wish. She believes her mother died when she was three years old; she even has a deep and constant tenderness for the Shut Room.”

She looked at him bewildered. “I do not understand.”

“Your room,” he explained simply; “he closed the door on it that day, and for twenty years it has been unchanged. Yesterday I saw the very book you laid face downwards on the table, the handkerchief you dropped. He has mourned you as dead. In his gentleness, his humility, his greatness of soul, he chooses to believe you died that day. He loved you before it, he has loved and mourned you ever since. No one has ever heard a reproach from his lips, no one ever will. You broke his heart.”

She covered her face with her hands and burst into tears.

The old man stood looking at her unmoved, though the storm of her emotion shook her from head to foot. Still weeping, she threw herself into the chair by the fire and bowed her head on her arms.

“It is twenty years,” she said at last, “and I have suffered—have you never forgiven me, William Cheyney?”

The old man’s face saddened yet more deeply. “There was nothing for me to forgive; we all had his great example.”

She looked up with swimming eyes, her lips twitching with pain. “It’s twenty years—he married me after David got the divorce, you knew that?”

The doctor nodded.

“He’s dead. Oh, he knew I had suffered, he wearied of me, and now he’s dead and I’m all alone. Oh, don’t you understand?” she held out both hands toward him, “don’t you know why I came?”

The old man shook his head sadly. “God knows,” he said.

“I want Diana!” she cried, “I want my daughter—I want her love!”

Dr. Cheyney looked at her thoughtfully. “She’s twenty-three, Letty,” he said simply, “and she loves her father.”

She winced, turning her eyes from his to the fire. "I have seen her," she said, in subdued tones, "once or twice when she did not know it. She looks—don't you think she looks as I did?" she added eagerly.

"No," he said sternly, "no, she's like David's mother."

She flushed angrily. "Oh, never!" she exclaimed. "She is like me—but you won't admit it."

Dr. Cheyney shook his head.

Disappointed, she dropped her chin into her hand and looked again into the fire. "David has lost everything," she said after a moment. "I know, I heard in New York."

Dr. Cheyney, looking down at her, wondered what her secret thought was, how far remorse had touched her? "I'm afraid he's badly hit," he admitted slowly.

She rose and went to him, her hands trembling. "Help me," she said with feverish eagerness, "help me to get Diana. I want her to come to me; I can take care of her. It would help him, too. Oh, don't you see I could do that much?"

The old doctor's penetrating eyes met hers. "You can take care of her," he repeated; "you were not wealthy, Letty; have you grown so?"

"You have always been hard in your judgment of me," she cried bitterly. "I am not a bad woman—I know, oh, I know I sinned! I married David so young; I found out my mistake, and when Fenwick came—I loved him, I ran away from my husband and my child, I was wicked—oh, I know it! But I suffered. I am not poor. He left me well off, almost rich. I have a right to it, he married me, I am his widow."

Dr. Cheyney said nothing; he moved away from her a little and again leant his elbow on the mantel.

"Will you help me, will you go to Diana?" she pleaded, following him with sorrowful eyes.

He shook his head. "Never!"

She wrung her hands unconsciously. "You think I have no right to Diana?"



“Have you?” he asked quietly.

She hung her head, and the intensity of her suffering touched him without shaking his resolve.

“Have you any right to spend a dollar of that money on her?” he added; “surely you know that she could not receive it?”

There was a long silence. She turned, and hiding her face against the high back of the chair, sobbed convulsively. “You want to rob me of the last thing I have in the world!” she said at last.

“You deserted her,” he replied more gently.

She raised her face, wet with her passionate tears, and held out both hands to him. “Will you help me, will you tell her I am not dead? I am her mother; she has a right to know it.”

Dr. Cheyney still regarded her. “He is very ill, Letty,” he said, “he may die; would you rob him of his daughter?”

“No, oh, no!” she cried impetuously, “but I—I want her, too; I have wanted her for twenty years. Oh, Dr. Cheyney, there is joy in heaven over one sinner that repenteth!”

“Diana will not go with you,” he said quietly. “I know it, and if she would, I would not tell her.”

“You refuse?” She leaned forward, still holding the chair with one hand and the other pressed against her heart.

“Absolutely.”

She shivered. “Cruel!” she whispered bitterly.

He turned to his medicine cabinet and began to unlock the door. “Stay a moment,” he said kindly, “you need something, you will be ill.”

But she fastened her wraps at her throat and let her veil fall over her face again. “I am not ill,” she said bitterly, “only heart-broken.”

He urged her to taste the cordial in his hand, but she put it aside and went to the door. The old man followed her.

“Letty,” he said, “David Royall is very ill; do not lay another sin against him on your conscience.”

She had opened the door and, at his words, turned and laid her cheek against the lintel with a hard dry sob. “I will see Diana,” she said.

The doctor made no reply; his quick ear had caught the sound of a step on the veranda, and almost at the same moment Caleb Trench appeared in the lighted space before the open door.

“What is it, Caleb?” the doctor asked quickly.

The young man glanced at the tall woman who still leaned against the door. “I’ve just got back from town,” he said, “and I wanted to ask you about Colonel Royall. I hear that he is ill.”

The woman started and drew away, and Caleb saw it.

Dr. Cheyney shook his head apprehensively. “Very ill,” he said; “he was taken with a sinking spell about noon. Come in, Caleb, and I’ll tell you about it.”

Trench stood aside to let the veiled woman pass out, and then he followed Dr. Cheyney into the study with a face of some anxiety. He looked worn and old for his years, but resolutely calm. “How do you think he really is?” he asked.

Dr. Cheyney sank down into his easy-chair by the fire. “I’m not sure that he’ll live,” he said despondently.

Trench frowned, making an inarticulate sound. The firelight flared on his face now, and its expression was significant. Dr. Cheyney bent down and began a desultory search for his carpet slippers; even in the most interesting moments of life, physical discomforts pinch the unwary, and the old man’s feet ached. “He’s worn out, broken-hearted,” he said, referring to his old friend and removing his boots absently. “He’s taken this affair to heart, too.”

“Jacob Eaton?”

The doctor nodded. “Smooth young scamp,” he said bitterly, “I always wanted to deal out the husks to him, but I reckon he’ll get ’em in the Lord’s good time. It’s pretty bad, I suppose, Caleb.”

“Worse than we thought,” replied Caleb. “The Harrisons’ bank closed its doors to-night; he’s wrecked it and there’s a terrible panic in the city. I wonder if he took much with him?”

“All he could get, I reckon,” mused the doctor, his mind dwelling not on Jacob but on Letty, and the climax which he saw impending.

Meanwhile Caleb Trench sat staring into the fire. “I’m afraid Colonel Royall will suffer heavily,” he said; “he wasn’t so deeply involved, it appears, but—as soon as he heard of the wide-spread ruin—he offered to redeem a number of Jacob Eaton’s pledges. His offer was accepted, the papers signed, and now all these claims are rolling up. I honor him for what he did,” Trench added simply; “it was noble, but it was quixotic. I fear greatly for the consequences.”

Dr. Cheyney settled himself back in his winged chair and put the tips of his fingers together. “I think likely he’ll escape it all,” he remarked gravely; “he was unconscious twenty minutes to-day and David isn’t as young as he was. He may be fortunate enough to pass beyond this trouble.”

Trench moved uneasily, then he rose and stood, his back to the fire. “And Miss Royall?” he said.

“She’s with her father,” replied Dr. Cheyney. “Caleb, I never saw anything so fine as she was at your trial.”

Trench was silent for a moment, and his face in the shadow eluded scrutiny. “I would have given my right hand to save her that notoriety,” he said at last.

Dr. Cheyney looked thoughtful, but there was the shadow of a smile in the depths of his mild eyes. “You’ve never asked me to finish my testimony,” he remarked. “I’m in the possession of a secret that would clear up all this scandal about poor little Sammy; I’ve waited three weeks and you don’t ask me. I wonder if you’re human, Caleb Trench?”

Trench swung around and faced him. The expression of his face, its power and its mastery and self-control had never been more poignant. “Dr. Cheyney,” he said, “it doesn’t concern me; let them say what they please.”

“On my soul!” said Dr. Cheyney, “I won’t tell you! You’re too pesky proud to live. I reckon they’ll say all you want and more too, young man.”

“Let them!” said Caleb.

## XXVIII

IT was two days after this that Judge Hollis came into Caleb's little office and found him at work in his shirt sleeves. The table and desk were covered with papers and open telegrams. The judge eyed the place critically. Order showed in the neat pigeonholes and the rows of packed shelves.

"In two years you'll have me beat," remarked the judge, "then I'll take down my shingle."

Caleb smiled wearily. "You forget that this only shows how far behindhand I am," he replied; "you were never on trial for your life, Judge."

The old man shook his head. "No," he said, "and I was never the most conspicuous figure in the State. Caleb, you've been threatened?"

"Some letters, yes," the younger man admitted, without emotion, "from cranks, I fancy."

"No," said the judge flatly, "there's feeling. Some of these ignorant people have got a notion that your campaign against Eaton, your attack on his company, destroyed his credit and drove him to the wall. They've got the idea that he'd have saved himself, and their investments, if you'd let him be. They're wild about it; money loss goes to the quick, when a man can't pay for his bacon he wants a scapegoat. The better sort know it's not your doing, and, I'll say it for 'em, the newspapers have been decent, but there's feeling, Caleb; you'd better go armed."

Caleb laughed. "Judge, I was bred a Quaker. I only used my pistol here in self-defense; I never went out with one in my pocket in my life."

The judge rubbed his chin. "You'd better now," he remarked shortly.

Caleb leaned back in his chair and looked out of the window thoughtfully. "I wonder what my father would have said to his son carrying weapons?" he reflected, amused.

"Good deal better than to get a hole in you," the judge retorted; "you know how to use it!"

Trench colored. "My blood was up, Judge," he said, "a mob's a cowardly thing; I never felt such disgust in my life."

"Humph!" ejaculated the judge eloquently.

Caleb smiled involuntarily. "I don't think there's any danger," he said pleasantly.

"Of course not!" snapped the judge. "Trench, why don't you clear up this talk about that kid in yonder? Cheyney knows who the father is; make him tell. By the Lord Harry," he added, thumping the table with his fist, "I wanted it out in court."

Caleb Trench turned slightly away, his face inscrutable. "Judge," he said, "I wouldn't stir a finger. I took in the kid just as I took in the dog. Let them talk."

The judge stared at him angrily, uncomprehendingly. "I reckon you're a crank," he said; "you're worse than David Royall."

"How is the colonel to-day?" Caleb asked, to change the subject; he knew, for he had asked Dr. Cheyney over the telephone.

"He's better," retorted the judge shortly; "you're not, and you'll be worse if you don't watch out. There are snakes in the grass."

Caleb smiled. "Judge," he said, "if I listened to any one in the world I would to you; I'm not ungrateful."

"Nonsense!" retorted the judge, and jammed his hat down harder than usual.

At the door he stopped and waved his cane aggressively. "I've warned you," he said harshly, "and if you were not an idiot, sir, you'd make Cheyney speak. It's some dratted crank of his about his professional honor!"

"How about a lawyer's, Judge?" asked Caleb, amused.

"Humph!" grunted the old man, and went out and slammed the door.

Later that afternoon business took Caleb up to Cresset's Corners to see Aaron Todd. He had been twice to Broad Acres to inquire for Colonel Royall without seeing Diana; he had refrained from asking for her. Dr.

Cheyney had told him that she would not leave her father, and he knew that, as yet, he could scarcely express all he felt about the ordeal of her testimony. He had forbore to account for that time to spare her the publicity of the witness-stand, and his very silence only made her evidence more significant. To see her and thank her without saying all that was in his heart was no easy matter. He had driven back his love for her, and battled against it, denied it a right to exist, because he knew that she regarded him as an inferior. But now, by her own act, when she acknowledged him as her friend and defended him at the cost of a hundred uncharitable rumors, it seemed that he might have misunderstood her natural pride of birth and affluence for a repugnance to his poverty. When their eyes met in the courtroom with that inevitable shock of mutual feeling that leaves a startled certainty behind it, he had felt almost sure that she loved him. But since then he had plunged back again into his old doubts, arguing that her testimony had been merely a matter of duty, and that his own feeling had deceived him into imagining that her heart was likewise touched. He had no right to suppose that her evidence was otherwise than involuntary, the exact rendering of the truth to save a man's life. If he went further and believed that she loved him, he was overstepping the bounds of probability. Love is an involuntary passion, says an honored moralist: we cannot help it, but we can starve it out. And Caleb had set himself to starve it out but it may be said that he found the battle an unequal one. He was like a man who had walked persistently, and of his own choice, in a sullen fog, and saw suddenly, through a vast rent in the mist, the golden sunshine of another day. The fog of his doubts and his unbelief had lifted on that afternoon in court, only to settle down again in denser gloom.

Meanwhile, the tumult of battle went on. He was once more leading the anti-Eaton forces, leading them triumphantly now, and crash after crash in financial circles told of the complete collapse of that bubble which had been called the Eaton Investment Company. There is no keener incentive to anger than money loss, as Judge Hollis said; there were many who cried out against Caleb as the instigator of an investigation which had culminated in almost universal ruin in the county. The wave of popularity that had swept around him at the hour of his acquittal was receding, and leaving him beached on the sands of public criticism.

None of these things, however, greatly troubled the man himself; he pursued his course with the same determination with which he had begun it. He had foreseen unpopularity and met it with unshaken purpose. What immediately concerned him was his plain duty, and his experience at the time of his arrest and trial had inspired him with a pessimistic unbelief in the clamorous plaudits of the masses. For, in a day, he had dropped from the height of the popularity of his Cresset speech to the degradation of a despised and suspected prisoner. Like all those who have tasted the vicissitudes of life, they had no longer the same terrors for him. He was stronger in his position now than ever, his reputation was already growing beyond the borders of the State, but he was less popular in doing an unwelcome duty than he had been as the exponent of the new theories of investigation. A vivid recollection of all that had passed in the last few weeks stirred his mind as he walked up the trail to Broad Acres. Shot, who had become devoted to Sammy, had followed him only a little way and then returned to his new playmate, so Caleb was alone. He had avoided the road and ascended the trail, because the woodland solitudes left his mind free to his own meditations, and the bleak and russet aspect of the woods, the naked trees and the brown leaves underfoot, in some delicate and subtle manner, harmonized with his sober mood. The keen blue of the river below him and the purple of the distant hills rested his eyes. He swung on, his long easy stride carrying him fast, and in a few moments he saw Kingdom-Come leaning on the fence at the side of the Broad Acres vegetable garden. The negro was stripping the leaves off a cauliflower and gazing curiously at Caleb Trench.

“How’s the colonel?” Caleb asked, stopping a moment, and his glance wandered toward the old house where even the jingo tree had dropped its last golden leaves upon the grass.

“He’s bettah, suh,” said Kingdom, “so de doctah says. I’s e not so sure; seems mighty po’ly ter me, Mistah Trench.”

Caleb remembered that a negro never admits perfect health and felt reassured. “Say to the colonel that I would be glad to be of any service to him,” he said, and wanted to add Diana’s name but restrained the impulse.

“I sho will, Mistah Trench,” said Kingdom. “Cool day, suh, gwine ter be cold, too; de moon dun hangs ter de north.”



“I suppose that’s an infallible sign,” smiled Trench, as he turned away.

“Fo’ de Lawd, ain’t yo’ nebber heerd dat?” Kingdom patted the cauliflower affectionately, having squared off the remaining green petals. “De moon hung north means cold, suh, an’ south et means hot, jest ez sho’ ez yo’ gets er disappointment ef yo hangs annything on er doah knob.”

“I’ll try to remember both signs,” said Caleb good-naturedly.

“Miss Diana’s up in de woods,” volunteered the negro, with that innocence which sits so naturally on a black face.

Caleb made no reply this time. He walked on, choosing the road, nor did he look again toward the house. He had the unpleasant consciousness that the negro had read him as easily as he himself read more profound riddles in the exact sciences.

He passed the last confines of Broad Acres and turned, involuntarily, into the trail which led him to the spot where he had stood months before with Diana and told her that he loved her. Afterwards he had wondered at himself, that his pride had not revolted at the confession, yet he had never altogether repented of it. There had been some comfort in telling her the truth, the naked truth. He recalled the look in her eyes in the court-room! He put that thought steadily away and walked rapidly on. Another turn would show him the long glimpse of Paradise Ridge. Before him the trail ascended under sweeping hemlock boughs, beside him the brush rose breast high. Once he thought he heard a crackle of twigs and turned sharply, but there was no one in sight. Then, looking ahead, he saw Diana Royall.

She was coming down the path alone, and the sunset sky behind her darkened the outlines of her tall young figure until it was silhouetted against the sky. He noticed that her dress was gray and that her large black hat framed the fair oval of her face. As she drew nearer he was aware of the gravity and sweetness of her expression. As yet the distance was too great for speech and he did not hurry his step; there was, perhaps, more joy in the thought of this meeting than in its accomplishment. But he saw nothing but this picture, the mellow sky behind it, the hemlock boughs above.

Then, quite suddenly, he felt a stinging shock and heard a loud report, as he reeled and fell back into darkness, the vision going out as though a great black sponge had effaced life itself.

Diana rushed to him; she had seen more than he, but no warning of hers would have reached him in time, and now she did not think of herself, or of any possible danger. She dropped on her knees beside him and bent down to look into his face. His eyes were closed; she could not tell if he breathed, and even while she looked she saw a dark red stain on the breast of his coat. She uttered a low cry, and tried to raise his head on her arm. She realized at last the power that his very presence exerted, the influence that he had had over her from the very first, that had made her yield again and again to a sense of his mastery. She loved him. She no longer tried to deny it to herself, and she felt that it was to her shame that no accusation against him could shake her in her devotion. Whatever he had been she loved him; whatever his faults, in her eyes there must be, there would be, an extenuation; whatever his sins she could forgive them! Class prejudice counted for nothing; she was his, and nothing in the world mattered to her in that one blind moment of agony for his life.

“Oh, God,” she prayed softly, “spare me this!”

She was in despair, his head lay heavy on her arm, his blood stained her hands, and she was alone. The wind stirred and a dead leaf fluttered down. How still it was! To leave him and run for help seemed her only resource, but to leave him! She could not do it! She thought him dead, but not a tear came to her dry eyes; she looked down at his white face and marked the lines of trouble and anxiety, the resolution of the locked mouth and jaw. Did he breathe? “Oh, God!” she prayed again.

She remembered, too, that it was here that he had told her so abruptly that he loved her. She, too, remembered that moment in the court-room, and a dry sob of anguish shook her from head to foot. She bent down suddenly and kissed him, but she could not shed a tear.

Then, in the stillness, she heard wheels, and laying him gently down, she ran through the underbrush and reached the road just below the fork. It was Dr. Cheyney’s old buggy, and she cried to him that Caleb Trench was shot and lying wounded in the trail. The old man got down and followed her without a word, his lips set. They came up the trail and found Trench lying as she had left him; he did not seem to breathe. Dr. Cheyney knelt down and made a brief examination, then he looked for something to stop the bleeding. Diana gave him a long light scarf she had worn around her throat;

she was quick and deft in her touch and worked steadily to help the doctor; she had mastered herself. The old man fumbling over Caleb drew out a bit of blood-stained paper and glanced at it. Then he went on with his task.

“Is he living?” Diana murmured at last.

“I reckon I wouldn’t do this if he wasn’t,” snapped the doctor. Then he rose from his knees. “You get into the buggy, Diana, and drive down to the house for help; telephone to the hospital, we’ll want a stretcher.”

“He’s coming to our house,” said Diana.

Dr. Cheyney gave her a grim look. “All right,” he said, “but a stretcher and two men. I wonder who in hell did this?” he added fiercely.

Diana had risen from her knees. “Zeb Bartlett,” she said. “I saw him too late to cry a warning.”

Dr. Cheyney’s face changed sharply. He handed the paper he had taken from Trench to Diana. “I reckon that’s yours—now run!” he commanded.

It seemed hours to Diana before she got help there. In reality it was twenty minutes. The negroes improvised a stretcher and carried Caleb solemnly down the hill and across the long lawns. Diana had gone ahead to prepare the great west room for him, and when they brought him in, still unconscious, the white bed was ready and the long table for the operation, and she had telephoned for another surgeon from the hospital. At eight o’clock that night they had found the bullet and removed it, and there was a fighting chance for life.

Diana, who had waited on the stairs to know the worst, said nothing. In her own room she had looked at the blood-stained paper which Dr. Cheyney had so strangely given her. Across it was written her own name in her bold handwriting. She looked at it strangely, and then with a stinging sense of shame; it was the receipt for six cents with which she had mocked him long ago. And he had carried it all this time! Diana laid her head down on her arms and burst into tears.

## XXIX

THE agony of the night and the ensuing morning left Diana feeling lifeless. Her only consolation was in the fact that her father was able to be up and in his chair, and by nine o'clock they had received a message that poor Jinny Eaton showed signs of recovering her senses. Of Jacob nothing was heard, to her great relief. A trial and imprisonment would have capped the climax of Colonel Royall's mortification. She did not know that Dr. Cheyney had saved her that. Nor did she tell the doctor, nor any one, that she and Kingdom-Come had gone down the night before to Caleb's house to see to the welfare of Sammy and the dog.

She had found Aunt Charity there and bribed her heavily to stay over night, but Diana had no faith in Charity and another project was shaping itself in her mind. She would have liked to consult her father, but she could not trouble him and the trials of the last few months had been developing Diana. All that was sweet and malleable in the girl's nature had crystallized into greater strength, and a greater sweetness, too; she was no longer a girl, but a woman, and her greatness of heart showed in the breadth of her charity. She had sat down in the old leather chair in Caleb's office and lifted Jean Bartlett's child to her knee without a shudder of repulsion at that shameful story. Instead, she touched the child's head tenderly and crooned over it, womanlike. Oh, if Caleb could have seen her in the old worn chair!

Her own thoughts were filled with him to the exclusion of everything else on earth. She was almost frightened at the strength of her feeling for him, he seemed even to put aside her anxiety for her father, his life was her one passionate petition to Heaven. And she was conscious now that she wanted not only his life, but his love.

Dr. Cheyney had installed a trained nurse, and there was a young surgeon from the hospital in charge. Diana's only privilege was to go to the door and inquire, and wait upon the doctors. She did this to the exclusion of the negroes, who considered it their duty to remonstrate with Miss Diana. In the afternoon Dr. Cheyney told her that Caleb had borne the operation so well that there was much hope. Then Diana went out bareheaded into the

deserted grounds and wandered about them aimlessly, trying to regain her natural composure.

They had arrested Zeb Bartlett, and he had given his sister's disgrace as his reason for shooting Caleb,—a belated vengeance, but one that suited the public appetite for scandal. Diana had heard it unmoved. In that dreadful moment when he lay at her feet, seemingly dead, she had forgotten Jean Bartlett, and even now, nothing in the world mattered to her but his life. Her face flushed with shame for her own indifference, the deadening of every instinct but her agonizing anxiety for his life. She had learned that love is greater than judgment and as great as mercy. She walked slowly along the path between the box-bordered flower-beds; here and there a late rose bloomed in the autumn sunshine, and in the arbor the great ungathered clusters of grapes hung purple, sweetened by frost.

Before her was the same vista which showed from the Shut Room, and she saw the river. That view recalled the room and the days her father had sat there before his illness, and she thought of her mother with that vague sweet regret with which we think of the unknown dead whom we would have loved. Then she looked up and saw a woman coming toward her from the gate. She was a stranger, yet Diana was instinctively aware of a familiarity in her bearing and her gait. She stood waiting for her approach, looking keenly at her face, which was beautiful though it looked a little haggard and worn. The woman came on, looking eagerly, in her turn, at Diana. For one so apparently wealthy and at ease, her manner was almost timid; there was a hesitation even in its eagerness as though she feared her welcome. The girl saw it and was faintly surprised. In another moment the stranger was in front of her, and she saw that she breathed like a person who had been running or was in great trepidation. She stopped, and involuntarily her hand went to her heart.

“You are Diana Royall,” she said abruptly.

Diana looked at her gently, vaguely alarmed, though at what she could not divine. Her first thought, strangely enough, was a message from Jacob, and her manner grew cold. “Yes,” she said quietly, “I am Diana Royall; can I do anything for you?”

The stranger hesitated; then her natural manner, which was full of self-command, asserted itself. “I am Mrs. Fenwick. I know you do not know me,

but”—she glanced down the long garden path—“will you walk with me a moment?” she said. “I have something to say to you.”

Diana assented reluctantly. Her own heart was behind the half-closed shutters in that upper room, and at another time she would have thought the request at once remarkable and unwarranted. They turned and walked together down the garden path, and as Diana stooped to unlatch the wicket gate which shut off the rose garden from the larger grounds, her companion shaded her eyes with her hand and looked off toward the river.

“There have been some changes in this view, I think,” she said abruptly, her eyes on the landscape; “the river was more obscured by trees.”

“The railroad cut cleared a bit of forest and gave us a finer view,” replied Diana, and then she glanced quickly at her visitor, who was evidently familiar with the prospect.

“I thought so,” said Mrs. Fenwick softly, “this view is familiar; it is the same that one sees from your mother’s old room.”

Diana stood still, with her hand on the wicket. “Did you know my mother?” she asked quickly.

The older woman turned and looked fully at her. She had been very beautiful in her first youth, and Diana was conscious of a charm at once subtle and persuasive. “Is your mother dead?” she asked gently.

The girl was deeply perplexed. “She died twenty years ago,” she replied.

“She died twenty years ago?” her visitor repeated dreamily, looking away again. “It may be so! She may have died to this life here, to this place, to these people, but believe me, Diana, she is not dead.”

They had passed through the wicket and were standing on the lower lawn. Instinctively Diana drew further away from her; she did not understand her, and she disliked her familiarity, but as yet she was unalarmed. “My mother died in that room up there,” she said, with gentle dignity, “and my father has mourned her ever since, and has taught me to mourn her, too.”

A deep flush passed over Mrs. Fenwick’s face, and her hands trembled a little as they hung clasped before her. Diana, watching her, noticed it and noticed the grace of her pose. The girl thought that the elder woman never forgot herself, that her actions, even her gestures, were considered, that

there was something artificial in them, yet her emotion was evident and unfeigned.

“It was good of him,” said Mrs. Fenwick slowly, “it was, I suppose, a beautiful idea, but it was an untruthful one. Diana, I am your mother.”

Diana thought her mad. She drew away from her again, and this time with instinctive repugnance, yet she was pitiful. This was evidently a delusion; the woman was insane and to be pitied and dealt with compassionately.

“You are mistaken, Mrs. Fenwick,” she said gently; “my mother is dead.”

“I tell you that I am your mother!” cried Letty, with sudden passion. “Your mother never died; she was wicked, she ran away from your father and from you with another man. I am that wretched woman, Diana; forgive me!”

“I think you are quite mad,” said Diana coldly; “I am sure you are.”

“Good God, she will not believe me!” Letty exclaimed; “how wonderful the web of deception must have been; I did not know before that David Royall was a liar!”

“Silence!” Diana towered. “Do not dare to say one word against my father here!” she commanded.

“Ah, it was for this he wrought so well!” said Mrs. Fenwick bitterly, “to shut out the sinner. Diana, forgive me, look at me; is there no likeness in my face to my own picture? There was a large one of me in my first youth. Don’t you know me?”

Diana was very pale. “There is no picture of my mother,” she said deliberately, “and I do not believe you are my mother.”

Letty Fenwick looked at her despairingly. She had come with the mad impulse of affection, long pent up in her warped and passionate heart; she had wanted her daughter, and she had never dreamed that her daughter would not want her. That, instead, the girl’s outraged feelings would leap up in defense of the deserted father; that, never having known a living mother, her mind had created an image at once beautiful and noble, and that this revelation shocked every instinct of her nature. The older woman was vividly aware of the girl’s instinctive aversion, of her reluctance to acknowledge her dawning conviction, and in that very reluctance Letty read

her own exile and defeat. She was, indeed, dead. Colonel Royall's curious way of guarding her secret from her daughter had absolutely estranged her forever. He had accomplished through forbearance and love what he could never have accomplished through passion and revenge; she was forever dead to her own child. This, then, was the punishment. She stood looking at Diana in a kind of dull despair.

"You are very beautiful," she said, "more beautiful than I was at your age, Diana, and I thank Heaven that you will not be like me. You are stronger, braver, less foolish. I was both foolish and wicked; I deserted you, but, oh, my child, I suffered for it! And I am asking for so little now,—your love, that I may see you sometimes, your forgiveness!"

Her voice was full of pleading; it had a sweetness, too, at once touching and eloquent. Diana returned her look sadly. Conviction had been growing in her heart; a hundred little things sprang to mind to confirm this strange story,—hints, suggestions of Jinny Eaton's, inexplicable actions of her father. It might be true, but she was appalled at the stillness of her heart. She had loved her mother's memory, but, confronted with this strange woman, she found no response. She battled against conviction; the shattering of her beautiful dream of an ideal mother was bitter indeed.

"I cannot believe it!" she exclaimed, "I cannot believe it!"

Her mother drew a long breath. "You mean you will not believe it," she said quietly, "because you would rather repudiate the sinner! I do not blame you. But it is true, I am your mother." She broke off, her parched lips quivered, but she shed no tears. "Diana," she said after a moment, "thank God that you are not like me—and forgive me."

"I cannot believe you!" reiterated Diana.

But as she spoke they both saw Dr. Cheyney crossing the lawn to the house, and her mother beckoned to him. The old man came reluctantly, instinctively aware of the cause of the summons.

"Dr. Cheyney," Mrs. Fenwick said with forced composure, "tell Diana that I am her mother."

The old man stood with his hand at his chin; he was very pale. Diana looked up and met his eyes, and a slow painful blush went up to her hair.



“She is your mother,” said the doctor abruptly, and turned his back.

As he walked away Letty Fenwick held out both hands pleadingly. “Diana,” she said softly, “will you kiss me?”

The hot tears came into Diana’s eyes and fell slowly on her pale cheeks. “Mother!” she said, in a choked voice.

Her mother caught her in her arms and kissed her. “My child!” she murmured, “my child, can you forgive me?”

Diana could not speak, her mother was weeping. “Dear girl,” she said, “I’m rich, I know your father’s in trouble; let me help you, come to me. Oh, Diana, I have longed for you!”

“And leave my father?” Diana’s pale face was stern. “Leave him in sorrow and loss and loneliness? Never!”

“Ah!” said her mother bitterly, “you love him; it is he who has all your heart!”

“I love him dearly,” said the girl, “now more than ever.”

Letty turned away. “He is revenged!” she said passionately.

Diana took a step nearer and laid her hand on her arm. “Mother,” she said quietly, “I will try to love you also, but remember that for twenty years I have known only a beautiful image of you that his love erected to save your memory for me. But I will try to love you, I will certainly come to see you, I will do anything I can, but only on one condition—”

“My God!” cried Letty passionately, “you make a condition? You bargain with me—I must beg for and buy your love?”

“No,” replied Diana, “love you cannot buy, but I will do all I can, if you will promise me never to let this great sorrow mar his life again, if you will help me guard him, if you will remember how beautifully he shielded your name for your child.”

Letty covered her face with her hands. “Alas!” she said, “you have found a way to punish me, but I promise, Diana.”

“He has been ill,” Diana went on hurriedly, “he has been in trouble, he needs me every moment, and I love him dearly; for his sake, because he

wishes it, I love you also.”

Mrs. Fenwick still wept; involuntarily they turned together and walked slowly toward the gate. “I want to see him,” she said at last, “I want to ask his forgiveness.”

“You have it,” said Diana simply. “I dare not take you to him now, not tonight. Dr. Cheyney must tell him, I—I cannot. But his forgiveness, it is yours already.”

Letty looked back over the house. A thousand haunting memories swept over her, and she shivered. “Diana,” she said, “I am rich, I must help you now.”

Diana’s pale face crimsoned; her father’s honor had never seemed more sacred to her. “No,” she said simply, “you cannot.”

Her mother met her eyes and turned away abruptly. At the gate she put out her hand blindly and touched Diana’s; the girl took it and kissed her.

“Forgive me—mother!” she murmured.

Letty clung to her a moment and then turned to go out alone. “My sin has found me out!” she cried bitterly, and dropped her veil over her face.

Diana, standing in the gate, watched her go away alone. In her own anguish she was scarcely conscious of the tragic picture of the exile. In moments so poignant with feeling the great lesson of life is lost. Diana had instinctively obeyed the impulse of love and duty, for once irreconcilable with mercy, and she was unaware that she had been an instrument of one woman’s punishment. She went back to the house and found her father alone. Every impulse of her heart clamored to tell him that she knew, to sympathize, to go to him for comfort, as she had all her life. But he looked up as she entered.

“Diana,” he said gently, “you look to-day as your mother did at your age.”

Diana slipped down on the arm of his chair and threw her arms around his neck. “Was she beautiful, father?” she asked quietly.

“Very, dear, like you,” he said; for twenty years he had woven his simple romance.

Diana laid her cheek against his. “Thank you, dear,” she said, “for her memory—we will always love it together.”

## XXX

WHEN Dr. Cheyney came down-stairs he found Colonel Royall alone, and he was able to reassure him about the patient in the west room.

“He’s going to live,” he said; “he’s had a close squeak, but he’ll pull through unless something else happens. Lucky thing, too, for Zeb Bartlett.”

“That poor boy is an idiot,” said the colonel reflectively. “I can’t see what he did it for?”

“Mad at Caleb for one thing,” said Dr. Cheyney, “has been for some time because he couldn’t beg from him all the while. Then he was set on, had a pistol given him, I reckon.”

“Eh?” exclaimed the colonel, startled.

“Reckon so,” said the doctor mildly; he did not add that in the Commonwealth attorney’s office it was known to be Jacob Eaton’s pistol; “got some fool notion about his sister.”

“That’s a pretty bad business,” said Colonel Royall.

“Quite so!” agreed the doctor dryly.

At that moment the door opened and Diana came in; she was leading a child by the hand, and a dog followed her. Dr. Cheyney took off his spectacles.

“I’ll be jiggered!” he said abruptly.

Colonel Royall smiled faintly. “She would have her way,” he said apologetically. “I objected, but Diana rules the roost.”

Diana’s sad eyes met the doctor’s with a flash of humor. “I shan’t let you stay if you worry him,” she said.

The doctor held out his hand to Sammy, but Sammy refused to leave Diana; he clung to her skirts and hid his face in the folds.

“Seems to take kindly to you, Diana,” remarked the doctor.

She blushed. "He's friendly enough," she explained, "if you give him pennies."

"Wants a penny!" said Sammy instantly, his tousled yellow head appearing from Diana's skirt.

Dr. Cheyney explored his pockets and found a new one. "Come and get it," he said.

Sammy moved over slowly and doubtfully, taking two steps backward to one forward every time.

"Suspicious, eh?" said the doctor, displaying the penny at a nearer view.

Sammy fell upon it and ran back to Diana, clasping it close in his fist.

"An embryo financier," said the colonel, musing, "and the dog isn't what one would call a prize-winner," he added.

"Caleb took 'em both in," said the doctor; "he's made that way. After a while we'll understand him."

"Some people say that he had good reason to take in the boy," remarked Colonel Royall without malice.

"Father," said Diana, "I wouldn't have believed it of you, talking scandal, and he's our guest!"

"That's right, keep him down, Diana," said the doctor; "the fact is there's nothing so cruel as people's tongues. Now I know Sammy's father and sometimes I'm tempted, sore tempted, to go and post it by the wayside."

"I wish you would!" said Diana with sudden feeling, "it's only just to—to Mr. Trench."

"That's so—she's right, William," said her father, half smiling.

Dr. Cheyney reflected; his lined old face lost some of its whimsical humor, but it gained in sympathy and strength. "I've held my tongue to shield others," he said at last, "to spare the feelings of a family I love. What would you do about it, David? Do you think it's right to plaster a scandal on to folks?"

Diana glanced quickly at her father, keenly aware of his concealment and that this all must touch him to the quick. The old man looked very old

indeed.

“I don’t think it’s right to let the thing attach itself to Mr. Trench if you know he’s innocent,” he said at length.

“I reckon he’d be satisfied to be justified here,” said Dr. Cheyney, his eyes resting on Diana as she bent down and caressed Sammy.

“You’ll have to make it public to be of any use to him now,” said Colonel Royall, “the other story has been in every newspaper in the State.”

“I know it,” said Dr. Cheyney, “but, David, it will come home to you here. Sammy’s father is Jacob Eaton.”

There was silence for a few moments, and then Colonel Royall said: “It is singular that that young man has managed to inflict so many mortifications upon his family. Poor Jinny! She was always quoting him as a pink of propriety.”

“The result of a mollycoddle,” said the doctor shortly. “Now you know the facts, David, and it’s up to you. Shall I tell them?”

Colonel Royall meditated. “Poor Jinny!” he said again, “she’s been so proud of him, and now—one blow on another, no wonder she’s given up. Poor Jinny!”

“Father,” said Diana, “we’ve no right to consider even Cousin Jinny, only Mr. Trench.”

The force of her conviction showed through her reserve. She felt that Caleb Trench had borne enough at the hands of their relatives, and that he should be the scapegoat of one of Jacob’s sins was too much.

Colonel Royall raised his bowed head. “She’s right, William,” he said, pathetically resigned; “tell it to the world.”

Dr. Cheyney rose. “Well, it has seemed like kicking a man who was down,” he remarked, “but, as Diana says, there is Caleb Trench.”

Diana followed him out into the hall. “Dr. Cheyney,” she said, “why did no one tell me about my mother?”

The old man put his hand on her shoulder. “Diana,” he said, “it was David’s wish, and we all respected it. I wish”—he paused—“I wish Letty had not

come back. But she wanted to see you. Natural enough, I reckon, only she ought to have been natural in that way at first."

"It was cruel not to tell me," said Diana, "but I will not tell him so—dear father!"

The doctor looked at her thoughtfully. "You're a good girl, Diana," he said.

They walked together to the door. "Doctor, do you believe that—that my mother is unhappy?" she asked at last. "I could not go to her: I will not leave him."

"Unhappy? No, child, not more so than others," said the old man. "She's got to bear her burden, Diana, that's the law of life. Don't you fret; she's rich, courted, influential, I've known it for years."

"I don't see how she could treat my father so!" cried the girl.

"Thank God, you never will!" said the doctor with conviction.

"She wants to see him," the girl faltered, "I—you—"

"I'll tell him," said William Cheyney.

## XXXI

COLONEL ROYALL was sitting by the great fireplace in his library. Daylight was failing fast at the windows, and the long bough of a hemlock sweeping across the one toward the west was outlined against the whitening sky. The colonel watched it as it swayed. Once and awhile he turned and looked toward the door, his fine old hands tightening on the carved arms of his chair.

Twenty years ago he had seen her last in this room, and he was to see her again to-night. A singular feeling tightened about his heart. When we have watched through a long vigil with a great and agonizing sorrow, when we have rebelled against it, and battled and fought with the air, in our vain outcry against its injustice, when we have longed and wept and prayed for release in vain, and then, at last, have laid it in its ashes and stood beside that open grave, which yawns sooner or later in every past, then—the coming of its ghost is bitter with the bitterness of death.

It was the coming of the ghost for which Colonel Royall waited in the gathering dusk, the ghost who must walk over the white ashes of his love and his outraged honor. For twenty years he had hidden the mother's sin from the daughter, he had made her memory sweet to her child. And his requital? She had tried to rob him of that one comfort of his life, to take his daughter away, to estrange them in his hour of need. In that hour even that gentle and simple heart knew its own bitterness. He recalled every incident of that unhappy past, he recalled her beauty and her indifference; again and again he had questioned himself, had the fault been his? He had loved much and forgiven much, yet it might be that he had given her cause for weariness. Had the narrow routine of life which made his happiness fretted her? If he had let her spread her butterfly wings in other and gayer climes, would she have been more content to return at last? Perhaps,—he did not know.

Fallacious thought! No human being can hold captive another's will except by that one magic talisman, and love for David Royall had never really lived in his wife's heart. Marriage to some women is a brilliant fête, and a



preventive of the reproach which they fondly believe would attach to them in single-blessedness; marriage is a poultice for the ills of society, and the latch-key to the social front door, permitting more freedom of entrance and exit. Yet it is a poultice which some are exceedingly anxious to tear off after a short application. The young and beautiful Letty had tried it twice and was still suffering from its effects; she had found it, in both instances, grown cold and lumpy. Yet, so adorable had been her youthful ways, so sweet and engaging her manner, that this poor man, who had been the husband of her youth, sat in the twilight, searching his heart again for reasons for her discontent, no living man having really mastered the ways of woman.

Night had fallen in the room, but the hemlock bough was still outlined against the pane, for the moon was rising. Presently, Kingdom-Come came in softly and lit the tall old candelabrum on the mantel; he was going on, with a noiseless step, to the other lights, but the colonel stopped him.

“Has no one come yet?” he asked, as the negro, leaving the lamps, arranged the fire.

“Not yet, Marse David.”

The colonel sighed inaudibly, and Kingdom retreated, not over pleased. He, too, knew that some one was expected. He had been with the Royalls from his birth.

A light step came down the hall, and the colonel held his breath. It was Diana, but she did not come in; he heard her ascending the stairs. Then, in the long silence, the hall clock chimed seven, the outer door opened, and the colonel again heard steps come across the tessellated floor of the old hall. His long white hands tightened on the arms of his chair, the ghost of his happiness was coming! He had loved greatly, he was to look again on the face of her who, loving him not, had betrayed him. Kingdom opened the library door, stood aside for her, and closed it behind her. After twenty years they stood here alone together—face to face.

The colonel shaded his eyes and looked into the fire; the grave of his love yawned deep, a shudder ran through him. Letitia had remained standing by the door, the mature elegance of her figure, the slightly bent head, recalled nothing when he finally looked up. She had left him a mere girl; she returned a worn woman of the world; the suggestions of her past, gay and

unhappy, seemed to penetrate the classic mask of her still beautiful face. He knew her even less than Dr. Cheyney. He made an attempt to rise, failed and, sinking back, motioned her to a seat.

She took it without a word, turning her face aside to avoid the light of that one tall candelabrum. In the old room, facing the man who had aged so greatly in these heavy years, she was ashamed. She had planned a dozen glib speeches, but her parched lips refused to utter them. She put her ungloved hand to her throat with a gesture that was like one who struggled for breath, and Colonel Royall noticed the flash of the jewels that she wore on her slender fingers. A little thing will sometimes turn the balance of thought, and the flash of Letty's jewels recalled her former husband to himself. He remembered the divorce and her marriage. Between them the white ashes of the past fell thick as snow. He could dimly see through them the outlines of her matured and hardened beauty, and the suggestions of that life in which he had played so small a part. He thanked God devoutly that now they were face to face he saw no likeness to Diana.

To the woman, his silence, his wan age, the lines that suffering had mapped on his proud face, were unendurable. She spoke at last, leaning toward him, her clasped hands trembling on her knee. "David, I have come to ask your forgiveness."

The colonel returned her look with a new sad serenity. "It's a long time to wait," he said.

She made a little involuntary movement, as if she wanted to go to him, for she pitied him all at once, with the same sweep of emotion that she had once abhorred him, loving another man. "I have wanted it for twenty years," she said, and then added impulsively: "I did not half understand how much you loved me—until I heard how you had hidden it all from Diana. At first I was angry, I thought you did it to estrange her from the thought of her mother. Then I realized that you were covering my disgrace, and—and it has broken down my pride!" She stopped with a little sob. "David, will you forgive me?"

"I forgave you twenty years ago, Letitia," he replied; "you are Diana's mother."

The woman looked at him longingly. "She has been—she is much to you?"

“She is all I have,” said Colonel Royall.

The shamed tears welled up in her splendid eyes, her lip trembled like a child’s. “I have nothing!” she sobbed wildly; “I am bankrupt!” and she dropped her head on her hands.

He looked over at her with compassion, once he passed his hand lightly across his eyes. He felt the absolute restraint that comes to one whose love has been lightly prized; he was nothing to her, it was not for him to comfort her, while Letitia, cowering in her chair, thought him cold-hearted, unforgiving, a proud Royall to the core. Thus are we misinterpreted by those who love us not.

“She cares nothing for me!” she sobbed, “you have taught her to love a dead woman!”

“I would gladly have taught her to love her mother,” the colonel said quietly, “but how could I begin the lesson? By telling her that you had deserted her?”

She rose at that and stood looking at him, through her tears. “You have had your revenge!” she said wildly, “you have had it a thousand times over in that one reproach.”

“Letitia,” he said gently, “I never desired revenge. I would have chastised the man who injured me and dishonored you, if I could have done it without dragging your name before the world. Other revenge I never sought.”

“You have it!” she cried again bitterly, “you have it; Diana despises me, I read it in her clear eyes. You have brought her up to hate her mother’s sin, so that when she knew it she would hate her mother.”

The fine old hands tightened convulsively on the carved arms of his chair. “Would you have had me bring her up to condone such sins?” he asked her sternly, his blue eyes kindling.

The shaft went home; its truth bit into her sore heart. “No,” she breathed, hiding her face in her hands, shaking from head to foot.

There was a long silence and then her voice. “I can bear no more!”

He averted his eyes; her struggle hurt him deeply. Now and then he saw her as she used to be; little reminders of her youth, her early beauty, her gayety,

crept through the change in her. His own vision was dimmed with tears. After a while she grew more calm, and began to gather up her belongings, her gloves, her purse, the boa that had slipped from her shoulders, with those little familiar gestures that are a part of a woman's individuality, and yet all women share them. She was gathering up the mantle of her worldliness, putting on the worn mask of conventionality.

"I am going," she said, in a low voice that thrilled with feeling, "I shall never see you again. Will you forgive me, David? I sinned and—I have suffered, I am suffering still."

With an effort the old man rose and held out his hand. In the gesture was all the stately courtesy of his race and his traditions. "I forgave you long ago," he said.

She took his hand a moment, looked into his face, and read there the death warrant of every hope she had that the trouble might be bridged, her daughter come back to her. Her lips quivered and her shoulders rose and fell with her quick breathing.

"Thank you," she said, and passed slowly down the room to the door.

A log fell on the hearth, and the blaze, shooting up a tongue of flame, illumined the colonel's gaunt figure and whitened his face. At the door Letitia turned and looked her last upon the man she had wronged, who had forgiven her and yet, through the love of his daughter, had so deeply smitten her.

She went out weeping and alone.

## XXXII

THREE weeks later Judge Hollis found Caleb able to walk about the library. The wound had healed, but the fever and the struggle for life had told. His tall figure was more gaunt than ever, and there were deep hollows in his cheeks. He had prevailed with Judge Hollis to get the case against Zeb Bartlett dismissed; the boy was half an idiot, and the story of Jacob Eaton's pistol and the money that Jacob had given him before he fled, were too choice bits to get into the newspapers. Dr. Cheyney had put down the scandal which made Zeb's shot a revenge for Jean, and there was an effort now to make things easy for poor Jinny Eaton, who had gone to relatives in Virginia, still bewailing Jacob and the influx of anarchists, which seemed to her to be the real root of the trouble, as these incendiaries must have stirred up the investigation which had wrecked Jacob before he had time to recover his investments. For years she spoke of these alien influences which must be responsible even for the fluctuations on Wall Street. Meanwhile, Jacob had escaped to South America, and was heard of later as a financier in Buenos Ayres.

Judge Hollis announced his escape to Caleb.

"Got off with a cool million, I reckon," said the judge grimly; "by the Lord Harry, I wish I could have laid him by the heels."

Caleb smiled faintly. He was leaning back in a big armchair by the fire, and the window before him commanded a view of the mountain trail where he had told Diana that he loved her. He had not yet recovered from the miracle of finding himself under Colonel Royall's roof. He glanced now about the room and noticed the fine air of simplicity and comfort; the deep-seated leather chairs, the old mahogany table, the portraits of Colonel Royall's mother and his grandfather in the uniform of the Colonial Army on the walls. On the table was a great cluster of roses from Diana's hothouses. "I am glad Jacob went," he said quietly.

"Of course!" said the judge with sarcasm, "it's my belief that William Cheyney warned him in time. It's like the old fool!"

“Dear Dr. Cheyney!” said Caleb warmly.

“Dear Dr. Fiddlesticks!” snapped the judge. “I reckon I know William; we played alleys together when we were boys and I licked him about as often as he licked me.”

“The eternal bond of friendship,” smiled Caleb.

“He’s got off Jacob and you got off Zeb Bartlett,” grumbled the judge, “and if you keep on, at your present gait, you’ll be governor of this State in two years. Then I suppose you and the doctor will empty the penitentiary.”

Caleb laughed. “I’ll get your help,” he said, “your heart isn’t as hard as you pretend it is.”

“A good many people think I haven’t got one,” said the judge; “I reckon they don’t let you see the papers yet?”

Caleb shook his head.

The judge grinned. “And yesterday was the first Tuesday in November. Drat ’em, I call that hard! I’ll tell you,” he leaned forward, his fingers on Caleb’s knee, “the Republicans carried the State by a plurality of ten thousand; Peter Mahan is elected.”

Caleb’s amazement kept him silent.

“Your fault, sir!” said the judge triumphantly, “you ripped the Democracy in two, showed the machine, convicted the governor. By the Lord Harry, boy, I voted the Republican ticket!”

Caleb wrung the old man’s hand. “Now I know you love me, Judge!” he said.

It was then that the door opened and Diana appeared on the threshold, bearing a little tray, Sammy at her skirts and Shot trailing behind her. “Judge,” she said, “the doctor’s orders—twenty minutes and no politics!”

The judge got up and reached for his hat and cane. “I’m guilty, Diana!” he cried.

“Then you’ll have to go,” she said, and smiled across at the patient.

It was only the third time Caleb had seen her, and he did not know how often she had hung over him in agony when he lay unconscious. Diana,

meeting his eyes, turned crimson. She remembered, with a sudden panic, that she had kissed him when she thought that he was dying!

Meanwhile, the judge went out grumbling. He was too full of the election to be silenced, and went to drink a mint julep with Colonel Royall. Diana came back into the library leading Sammy. The dog had bounded to his master and lay now on the hearthrug. Caleb stood by his chair, pale but transformed.

“You must not stand,” ordered Diana, as she set down the little tray on the table and began to arrange his luncheon. “Kingdom is out and I brought you some lunch myself,” she said simply.

“You are very good to me,” said Caleb.

She had turned away, and Sammy, who was devoted to her, had again appropriated her hand. “You must not stand,” she repeated, “I will never come here again if you cannot obey the doctor’s orders.”

Caleb smiled. “I’d rather obey yours, Miss Royall,” he said, his eyes following the two figures, the woman and the child.

Half-way to the door Diana turned and let go the child’s detaining fingers, coming toward him as if with some new resolve. She had never looked more lovely in his eyes, though to him she had always been an exquisite picture. The warm flood of November sunshine filling the room, and the deeper glow on the hearth touched her and vivified the buoyancy and freshness of her personality. Her chin was slightly raised, and the delicate oval of her face glowed with feeling; it seemed to him that her eyes were wonderful.

“I want to ask your forgiveness,” she said.

“My forgiveness?” he was taken aback, “you have done everything for me, been everything to me; it is I who should ask forgiveness for having been a burden here.”

She put aside his thanks with a gesture at once gracious and significant, and the sweetness of her smile arrested the words on his lips. “Nevertheless I ask your pardon,” she said, “for—for my stupidity, my ignorance, my want of manners long ago, when you came here to the house and I treated you

with discourtesy. You were always fine; I was hateful. You must have despised me!”

He smiled sadly. “I think you know that I did not,” he said.

“I deserved it. But since then I have learned to value your friendship, to honor you for the fight you have made.”

He turned toward her; his tall gaunt figure seemed to have lost some of its awkwardness, and the homely sweetness of his haggard face had never been more apparent. “You know,” he paused, and then went on with deep emotion, “I recognized then, I do still, the gap between our lives, but it cannot change the one inevitable fact of my existence, my love for you.”

The color rose from her chin to the arch of her lovely brow, but her lips quivered. “You know that we have lost almost all we had, and—about my mother?”

“I know,” he said simply, “Dr. Cheyney told me, and”—he looked suddenly at Sammy and the dog—“your goodness to these, when you must think—”

She looked up, and their eyes met. “Did you think my heart was not big enough for all?” she asked.

Sudden joy leaped into his face, transfiguring it. “Diana,” he exclaimed, “is it possible that through it all, in spite of it all, you love me?”

She smiled. “I think I always loved you, Caleb,” she said.

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